

SOLICITATION, OFFER AND AWARD		1. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 7900)		RATING	PAGE 1 OF 121 PAGES
2. CONTRACT NUMBER	3. SOLICITATION NUMBER 693KA9-25-R-00011	4. RESERVED	5. DATE ISSUED	6. REQUISITION/PURCHASE NUMBER N/A	
7. ISSUED BY Federal Aviation Administration (FAA) 800 Independence Avenue SW, Washington, DC 20591		CODE AAQ460-AFN	8. ADDRESS OFFER TO (If other than item 7) See Section L.4		

SOLICITATION

9. See Section L for proposal submittal instructions.

CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L of Submittals, AMS 3.2.2.3-14. All offers are subject to all terms and conditions contained in this solicitation.

10. FOR INFORMATION CALL:	A. NAME	B. TELEPHONE (NO COLLECT CALLS)			C. E-MAIL ADDRESS 9-AFN-AWA-AAQ460-Contracting-Team@faa.gov
		AREA CODE 202	NUMBER 267	EXT.	

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OFFER (Must be fully completed by offeror)

NOTE: Item 12 does not apply if the solicitation includes the provisions at AMS 3.2.2.3-2, Minimum Offer Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. DISCOUNT FOR PROMPT PAYMENT (See Section I, AMS 3.3.1-6)	10 CALENDAR DAYS (%)	20 CALENDAR DAYS (%)	30 CALENDAR DAYS (%)	CALENDAR DAYS(%)
14. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):	AMENDMENT NO.	DATE	AMENDMENT NO.	DATE
15A. NAME AND ADDRESS OF OFFEROR	CODE	FACILITY	16. NAME AND THE TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	
15B. TELEPHONE NUMBER	AREA CODE	NUMBER	EXT.	17. SIGNATURE
15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.				18. OFFER DATE

AWARD (To be completed by Government)

19. ACCEPTED AS TO ITEMS	20. AMOUNT	21. ACCOUNTING AND APPROPRIATION	
22. RESERVED	23. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)		ITEM
24. ADMINISTERED BY (If other than Item 7)	25. PAYMENT WILL BE MADE BY		CODE
26. NAME OF CONTRACTING OFFICER (Type or print)	27. UNITED STATES OF AMERICA (Signature of Contracting Officer)		28. AWARD DATE

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

PART I - SECTION B SUPPLIES/SERVICES & PRICE/COST

B.1 GENERAL

The purpose of this Indefinite Delivery Indefinite Quantity contract is to procure advanced flight safety and system safety support for the Federal Aviation Administration's (FAA's) Office of Commercial Space Transportation (AST) in carrying out its public safety responsibilities. This support requires knowledge of the commercial space transportation industry, commercial space transportation regulations, the ability to conduct quantitative and qualitative analyses of risks associated with commercial space transportation, the ability to conduct research on advanced modeling concepts and computational tools, and the ability to support AST's responsibilities in the development of safety requirements and guidance for the commercial space transportation industry. The Contractor must provide all management, supervision, labor, facilities, equipment, material supplies, and services (except as may be expressly set forth in this contract as furnished by the Government) and otherwise do all things necessary for, or incident to, the performance of the requirements set forth in Section C of this contract, as incrementally requested and authorized in the form of individually issued Task Orders (TOs).

B.2 BASE AND OPTION PERIODS

The term of this contract includes a one (1) year base period and four (4) one-year option periods for a total of up to five (5) years. TOs may be issued at any time during the base and/or option periods. The performance periods will be specified in the TOs and may include option periods which extend the TO up to twelve (12) months beyond the expiration date of this contract.

B.3 INDEFINITE DELIVERY INDEFINITE QUANTITY (IDIQ) CONTRACT

(a) This contract is an IDIQ contract. Work under this contract will be ordered by placing TO awards against this contract using the ordering procedures described in Section G, *Contract Administration Data*.

(b) The types of TOs issued against this contract may include Fixed Price and Time-and-Material types of contracts as defined in AMS T3.2.4 - *Types of Contracts*.

(c) Task Orders may include options as defined in AMS T3.2.4 - *Types of Contracts 9: Options*.

B.4 MAXIMUM CONTRACT LIMITATION

The maximum cumulative dollar ceiling value of all contracts awarded under this SIR is \$TBD.

B.5 GUARANTEED MINIMUM QUANTITY OF WORK

The Government guarantees that it will order at least \$25,000 of work (the "Minimum Guaranteed Value") during the term of this contract (the "Minimum Order Guarantee"). The Government has fully met the Minimum Guarantee once the aggregate dollar value of the TOs placed on this contract equals or exceeds the Minimum Guaranteed Value. The Government is not obligated to order above the minimum amount established for this contract.

B.6 CLIN STRUCTURE

The following section provides the Pricing/CLIN structure for this contract. Services performed under all CLINs in this Section must be in accordance with Section C, Statement of Work.

Base Year – CLIN 0001

CLIN 0001 Services - Base Period	
SCLIN 0001A – Labor Services	Per Individual Task Order Requirements
SCLIN 0001B – Travel Support	
SCLIN 0001C – Materials/Other Direct Costs	

Option Year 1 – CLIN 1001

CLIN 1001 Services - Option Period One	
SCLIN 1001A – Labor Services	Per Individual Task Order Requirements
SCLIN 1001B – Travel Support	
SCLIN 1001C – Materials/Other Direct Costs	

Option Year 2 – CLIN 2001

CLIN 2001 Services - Base Period	
SCLIN 2001A – Labor Services	Per Individual Task Order Requirements
SCLIN 2001B – Travel Support	
SCLIN 2001C – Materials/Other Direct Costs	

Option Year 3 – CLIN 3001

CLIN 3001 Services - Base Period	
SCLIN 3001A – Labor Services	Per Individual Task Order Requirements
SCLIN 3001B – Travel Support	
SCLIN 3001C – Materials/Other Direct Costs	

Option Year 4 – CLIN 4001

CLIN 4001 Services - Base Period	
SCLIN 4001A – Labor Services	Per Individual Task Order

SCLIN 4001B – Travel Support	Requirements
SCLIN 4001C – Materials/Other Direct Costs	

B.7 CONTRACT PRICING

The following section describes pricing requirements for Fixed-Price (FP) and Time and Materials (T&M) TOs. T&M TOs will be issued per AMS T3.2.4 6, Time and Material / Labor Hour Contracts. In addition, the FAA reserves the right to establish different pricing requirements for specific TOs.

B.7.1 Time-and-Materials (T&M) Pricing

(a) Billing Rates for T&M Task Orders

Attachment J001, Labor Rate Tables, specifies the fixed hourly rate that the Contractor may charge under T&M TOs under this contract. All TOs issued on a T&M basis will be subject to the labor rates set forth in Attachment J001 - Labor Rate Tables. The labor rates in Attachment J001 reflect fully burdened hourly rates for each labor category and will apply to all labor hours regardless of whether the labor hour is expended by the Contractor or by one of its subcontractors. The labor rates in Attachment J001 are fully burdened and include direct labor and all indirect costs applicable, including fringe benefits, overhead, G&A, and profit. These fixed hourly rates will apply to the Prime Contractor and subcontractors. The Contractor may elect to propose lower hourly rates on a TO-by-TO basis.

(b) No Change to Rates if Subcontractors are Added or Deleted

The fixed hourly labor rates, in Attachment J001, Labor Rate Tables, represent the billing hourly rates of the Contractor and all its subcontractors. The fixed hourly labor rates in Attachment J001 will not change after the contract award even if a subcontractor is removed by the Contractor or a new subcontractor is added by the Contractor to its team.

(c) Time and Material (T&M) TOs

- 1) For T&M type TOs, the quantity of hours ordered from each labor category will be specified as deliverable hours billable at the billing rates specified in Attachment J001, Labor Rate Tables, or as negotiated, if lower rates are proposed for the TO. Unless otherwise specified in the TO, the Contractor may deliver 70% to 130% of the hours specified for each labor category without a formal modification as long as the Contractor does not exceed the obligated funding for the TO.
- 2) Materials (including ODCs and Travel Costs) are cost reimbursable and will be estimated for each TO.
- 3) The cumulative total of all labor categories ordered plus materials/applicable indirect costs establishes the TO ceiling price.
- 4) Payment on Time and Material TOs is governed by AMS clause 3.3.1-5, *Payments under Time and Materials and Labor-Hour Contracts*.

(d) Materials (T&M TOs)

- 1) Materials are defined as:
 - a) Direct materials that enter directly into the end product, or that are used or consumed directly in connection with the furnishing of the end product or service.
 - b) Subcontracts for supplies and incidental services for which there is no labor category specified in the contract.
 - c) Other Direct Costs (ODC) (e.g., incidental services for which there is no labor category specified in the contract, travel, computer usage charges, etc.); and,
 - d) Applicable indirect costs.
- 2) Indirect costs may be applied to materials in accordance with the Contractor's established accounting practices.

(e) Travel (T&M TOs)

If authorized in the TO, the FAA will reimburse the Contractor for travel at actual direct costs in accordance with the limitations set forth in G.10 Travel Reimbursement. No profit is allowed for travel. Indirect costs may be applied to travel in accordance with the Contractor's established accounting practices.

B.7.2 Fixed-Price (FP) TOs

For FP type TOs, the TO proposal instructions will detail how the FP prices will be established based upon the technical requirements, milestones (if applicable) and deliverables.

B.8 ADDITIONAL LABOR CATEGORIES

At any time and throughout the life of the contract, at the request of the Government, the Contractor may propose additional labor categories, rates and descriptions necessary to support requirements of this contract or a specific TO. These additional labor categories, rates, and descriptions will be negotiated on a case-by-case basis. The additional categories, rates and descriptions proposed, upon determination by the Government that they are necessary for the scope of the effort, and that the prices are fair and reasonable, may be incorporated into Attachment J001, Labor Rate Tables or incorporated into a specific TO.

(End of Section B)

PART II - SECTION C

DESCRIPTION/SPECIFICATIONS/WORK STATEMENT AST SAFETY ENGINEERING SUPPORT CONTRACT

C.1.1 Background

By law (the provisions of 51 USC Subtitle V, Ch. 509; and regulations issued thereunder), the Department of Transportation, through AST, is responsible for the protection of public health and safety, the safety of property, and the national security and foreign policy interests of the United States during commercial space launch and reentry activities. AST satisfies these responsibilities by licensing and permitting commercial space launch and reentry vehicle operations, as well as launch and reentry site operations. AST implements legislation that allows the issuance of licenses, experimental permits, and safety approvals, as well as regulates associated safety systems, processes, services, and personnel. AST also supports the FAA's Air Traffic Organization in management of airspace and its approval of amateur rocket activities.

C.1.2 Scope of Work

AST requires advanced flight safety and system safety support in the evaluation of applications for commercial launch and reentry licenses, commercial launch and reentry site licenses, permitted operations, safety approvals, and amateur rocket activities (under CFR Title 14, part 101). AST also requires support for regulatory development, training, tool development, and research on advanced modeling concepts and computational tools.

Quantitative and qualitative analysis of risk is a core element of the AST decision-making process. Understanding and modeling the possible outcomes associated with launch and reentry operations enables AST to make decisions regarding acceptable operational and mission approaches that affect public safety within the regulatory framework.

This support therefore requires significant knowledge of, and, where requested, expertise in, quantitative and qualitative safety analysis of launch and reentry, to include explosive safety, debris risk, toxic risk, distance focusing overpressure risk, hazard areas determination, maximum probable loss determination, flight safety systems, software safety, and system safety. This support also requires significant knowledge of, and, where requested, expertise in, space launch and reentry vehicle operations, current launch and reentry vehicle systems, launch and reentry range operations, and public safety issues associated with launch and reentry site operations, as implemented in accordance with U.S. Commercial Space Transportation regulations.

C.2.1 Contract/Program Management

- a. The Government will conduct, and the Contractor will participate in a Kickoff Meeting. The Government plans to conduct this meeting ten (10) business days after contract award with a date, time, and location determined by and at the sole discretion of the Government. The purpose of the meeting is for the Parties to review the SOW requirements and ensure the Contractor has a clear understanding of the scope of work and deliverables.
- b. The contractor must prepare a Project Management Status Report (PMSR) to provide a synopsis of the project's activity over the reporting period.
- c. The contractor must conduct a quarterly Program Management review. This report will include a Performance and Cost Report, as an Attachment, to provide status and projected requirements of funds, man-hours and work completion of all projects within the program.
- d. The contractor must be responsible for management and control of all subcontractors/team members to ensure compliance with all contract requirements.
- e. The contractor must implement a quality management system that ensures all activities are accomplished in accordance with contract requirements.

C.2.2 Operational Safety Support

- a. The contractor must support AST in the evaluation and inspection of applicants/operators with respect to compliance with the safety-related regulations in 14 CFR Chapter III, at the FAA's discretion. The technical subject areas for such support are as follows:
 - i. Systems Safety
 - 1. Safety criteria and risk acceptance
 - 2. Safety organization
 - 3. Hazard identification
 - 4. Lifecycle management
 - 5. Configuration management
 - 6. Records management
 - 7. System safety analysis
 - 8. Safety-critical hardware development (ground and flight), including flight termination systems
 - 9. Safety-critical computing systems development, including automated flight safety systems
 - 10. Safety-critical personnel requirements
 - 11. Communication systems
 - 12. Reliability and probability of failure analysis
 - 13. Safety-critical procedures
 - 14. Mishap and emergency response
 - 15. Explosive siting
 - 16. Human factors
 - 17. Spaceflight participant safety

- vii. Developing and packaging technical data for use by industry
- viii. Administrative support for rulemaking and policy
- ix. Support to draft policy statements
- x. Technical support to draft Advisory Circulars

C.2.3 Research and Development

- a. The contractor must perform both basic and applied research and development in support of AST’s statutory missions (1) to protect the public health and safety, the safety of property, and the national security and foreign policy interests of the United States during commercial launch and reentry activities, (2) to encourage, facilitate, and promote US commercial space transportation, and (3) to support the continuous improvement of the safety of launch and reentry vehicles designed to carry humans, including spaceport operations. Activities that would be considered “research” in this context include:
 - i. Analytic and computational model development
 - ii. Analytic and computational modeling.
 - iii. Testing, data collection, and analysis, including that to provide technical rationale in support of the development of regulations and regulatory documentation (e.g. guides and advisory circulars).
 - iv. Development of experiment test plans.
- b. Activities that would be considered “development” in this context include:
 - i. Development of reference data, including geospatial data and historical data on past launch/reentry operations, useful to accomplish AST’s statutory mission, such as data to characterize the probability of failure of launch/reentry operations and the exposure of the public and critical assets to hazards posed by launch or reentry operations.
 - ii. Designing, implementing, and analyzing tests and measurements to obtain data relevant to the safety analysis and safety-critical systems of launch or reentry operations.
 - iii. Development of data, processes, automation tools, or methodologies to improve the accuracy, precision, or efficiency of the FAA in its licensing determinations of candidate systems.
 - iv. Specific research and development activities may include:
 - 1. Research on advanced modeling concepts and computational tools for use in flight safety and system safety analyses and assessments, such as the modeling of debris generation, debris trajectories, aerothermal demise, aircraft vulnerability, ship vulnerability, critical asset vulnerability, probability of failure, explosion hazards, launch/reentry vehicle trajectories, toxic hazards, overpressure hazards, hazard areas, population and critical asset exposure, and maximum probable loss.

2. Research to support development of regulations and guidance for commercial launches and reentries, launch and reentry site operations, experimental permits, safety approvals, and amateur rocket activities.

C.3 Deliverables

Specific obligations of the Parties with respect to any of the support activities noted above and any corresponding deliverable requirements will be specified in individual Task Orders developed in accordance with this SIR.

(End of Section C)

DRAFT

PART III - SECTION D PACKAGING AND MARKING

D.1 PACKING AND PACKAGING

All deliverables under this contract must be preserved and packaged in accordance with the most economical and best commercial practices to assure delivery at the destination and to prevent deterioration and damage due to shipping, handling and storage hazards.

D.2 GENERAL MARKING

In addition to information provided with shipping instructions, all deliverables must be marked on the outside of the packaging with the following:

1. FAA contract number;
2. Contractor's name and address; and
3. List of contents.

D.3 TRANSMISSION OF DELIVERABLES

All deliverable items required by this contract will be shipped F.O.B. destination, within the consignee's premises, with all mailing and transport expenses prepaid by the Contractor.

(End of Section D)

PART IV - SECTION E

INSPECTION AND ACCEPTANCE

E.1 FAA AMS 3.1-1 CLAUSES AND PROVISIONS INCORPORATED BY REFERENCE (JULY 2019)

This screening information request (SIR) incorporates by reference the provisions or clauses listed below with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make the full text available, or Offeror's and Contractors may obtain the full text via Internet at:

<https://fast.faa.gov/contractclauses.cfm>

The following contract clause or clauses pertinent to this section are hereby incorporated by reference:

- 3.10.4-4** Inspection of Services - Both Fixed-Price & Cost Reimbursement (April 1996)
- 3.10.4-5** Inspection - Time-and-Material and Labor-Hour (April 1996)
- 3.10.4-16** Responsibility for Supplies (April 1996)

E.2 INSPECTION AND ACCEPTANCE

(a) The CO, or his or her duly authorized representative, is authorized to perform inspection on behalf of the Government for the purpose of acceptance of all materials, data, or services to be provided. In this regard, the Contracting Officer's Representative (COR) is an authorized representative of the CO. Final acceptance of all deliverables under this contract must be made by the CO or designee, in writing.

(b) Inspection, review or the anticipation of acceptance/approval of a deliverable item during the course of its preparation must not be construed as assurance of acceptance of the finished product.

(End of Section E)

PART V - SECTION F DELIVERIES OR PERFORMANCE

F.1 FAA AMS 3.1-1 CLAUSES AND PROVISIONS INCORPORATED BY REFERENCE (JULY 2019)

This Screening Information Request (SIR) or contract, as applicable, incorporates by reference the provisions or clauses listed below with the same force and effect as if they were given in full text. Upon request, the Contracting Officer (CO) will make the full text available, or Offerors and Contractors may obtain the full text via Internet at: <https://fast.faa.gov/contractclauses.cfm>

The following contract clause or clauses pertinent to this section are hereby incorporated by reference:

- 3.10.1-9 Stop-Work Order** (October 1996)
- 3.10.1-11 Government Delay of Work** (April 1996)
- 3.10.1-24 Notice of Delay** (March 2009)
- 3.11-34 F.O.B. Destination** (April 1999)

F.2 PERIOD OF PERFORMANCE

The period of performance for the base year will begin on the date of award or the effective date of the contract.

Base Year	Date of Award through 12 months thereafter
Option Year One	13 th month through 24 th month
Option Year Two	25 th month through 36 th month
Option Year Three	37 th month through 48 th month
Option Year Four	49 th month through 60 th month

The contract period of performance is effective upon execution of the contract by the Contractor and the FAA CO. If the Government elects to exercise any of the available Option periods, written notification of the Government's intent to exercise an option will be provided to the Contractor in accordance with the procedures in AMS 3.2.4-35 Option to Extend the Term of the Contract. The Government reserves the right to exercise an Option period unilaterally in accordance with Sections B and F of this contract and at rates and estimated values established in Section B.

F.4 TASK ORDERS PERFORMANCE PERIOD

TOs may be issued at any time during the base and/or option periods. The performance period will be specified in the TO and may include option periods which extend the TO up to twelve (12) months beyond the expiration date of this contract.

All orders issued during the effective date of the contract and not completed within that period must be completed by the Contractor within the time specified in the order. The rates prevailing immediately prior to contract expiration must apply to all such work. Any costs incurred prior to the beginning date or after the ending date of a TO will not be directly allowable without the written consent of the CO via contract modification.

F.5 DELIVERY

The services required under each individual TO must be delivered and received at destination within the time frame specified in each order.

F.6 PLACE OF PERFORMANCE

Place of performance will be at the contractor site. Any travel needs will be identified in individual task orders.

F.7 DELIVERABLES

(a) All applicable TO deliverables, their required delivery dates, destination of delivery, and schedule for completion of work to be performed will be specified in TOs issued under this contract, as applicable.

(b) For purposes of delivery, all deliverables must be made by 4:30 P.M. local time at destination, Monday through Friday, unless stated otherwise in the TO.

(c) All deliverables submitted in electronic format must be free of any known computer virus or defects. If a virus or defect is found, the initial deliverable will not be accepted. The replacement file must be provided within two (2) business days after notification of the presence of a virus.

(d) Each TO-level deliverable must be accompanied by a cover letter from the Contractor on Company letterhead. Multiple deliverables may be delivered with a single cover letter describing the contents of the complete package. All deliverables are to be submitted in electronic format to the Technical Customer, COR and designated Knowledge Services Network (KSN) site unless otherwise specified in a TO. The contractor will be provided access to the FAA's KSN site after contract award.

(e) In the event the Contractor anticipates difficulty in complying with any contract-level delivery schedule, the Contractor must immediately provide written notice to the CO, Contracting Officer's Representative (COR), and the Program Manager (PM). For any task order level deliverable, the Contractor must provide written notification immediately to the CO and COR. Each notification must give pertinent details, including the date by which the Contractor expects to make delivery, provided that this data must be informational only in character and that receipt thereof must not be construed as a waiver by the Government of any contract delivery schedule or any rights or remedies provided by law or under this contract.

(End of Section F)

PART VI - SECTION G

CONTRACT ADMINISTRATION DATA

G.1 FAA AMS 3.1-1 CLAUSES AND PROVISIONS INCORPORATED BY REFERENCE (JULY 2019)

This Screening Information Request (SIR) or contract, as applicable, incorporates by reference the provisions or clauses listed below with the same force and effect as if they were given in full text. Upon request, the Contracting Officer (CO) will make the full text available, or Offerors and Contractors may obtain the full text via Internet at: <https://fast.faa.gov/contractclauses.cfm>

The following contract clause or clauses pertinent to this section are hereby incorporated by reference:

3.10.1-22 Contracting Officer's Representative (April 2012)

G.2 CONTRACT ADMINISTRATION (FAA)

a. Contracting Officer:

FEDERAL AVIATION ADMINISTRATION
Attn: AAQ 460
800 Independence Avenue, S.W., Room
Email: 9-AFN-AWA-AAQ460-Contracting-Team@faa.gov

b. Contracting Officer's Representative (COR):

FEDERAL AVIATION ADMINISTRATION
Attn: To be provided at time of award
800 Independence Avenue, S.W. Washington, DC 20591
Phone:

G.3 CONTRACTING OFFICER'S AUTHORITY

The CO assigned to this contract has responsibility for ensuring the performance of all necessary actions for effective contracting, ensuring compliance with the terms of the contract, and safeguarding the interests of the United States in its contractual relationships. In this regard, the CO is the only individual who has the authority to enter into, administer, or terminate this contract. In addition, the CO is the only person authorized to approve changes to any of the requirements under this contract, and notwithstanding any provision contained elsewhere in this contract, the said authority remains solely with the CO.

The Contractor must immediately notify the CO for clarification when a question arises regarding the authority of any person to act for the CO under the contract or when the Contractor

receives direction that appears outside contract scope.

It is the responsibility of the Contractor to contact the CO immediately if there is even the appearance of any technical direction that is or may be outside the scope of the contract. Costs incurred that were not authorized by the CO and work outside the scope of the contract will be considered unallowable costs and will not be reimbursed by the Government.

G.4 CONTRACTING OFFICER'S REPRESENTATIVE

The COR is responsible for the technical administration of the contract and is the technical liaison with the Contractor. The COR is not authorized to change the scope of work or specifications in the contract, to make any commitments or otherwise obligate the Government or authorize any changes which affect the contract price, delivery schedule, period of performance, or other terms and conditions of the contract.

The COR is responsible for monitoring progress and overall technical management of the work hereunder and must be contacted regarding questions or problems of a technical nature.

In no event, however, will any understanding or agreement, modification, change order, or other matter deviating from the terms of the contract between the Contractor and any person other than the CO be effective or binding upon the Government, unless a contract modification or letter of direction is executed by the CO prior to completion of this contract.

On all matters that pertain to contract terms, the Contractor will contact the CO. When, in the opinion of the Contractor, the COR requests effort outside the existing scope of the contract, the Contractor must promptly notify the CO. The Contractor under such request must take no action unless and until the CO has issued a letter of direction or a contract modification.

G.5 CORRESPONDENCE PROCEDURES

To promote timely and effective contract administration, correspondence submitted under this contract (except invoices and deliverable items) must be subject to the following procedures:

- (a) Technical correspondence of a routine nature must be addressed to the COR with an information copy of the correspondence to the CO listed in Section G.2.
- (b) Other considerations including technical correspondence involving technical issues and correspondence proposing or otherwise involving waivers, deviations or modifications to the contract, must be addressed to the CO listed in Section G.2, with information copies to the COR.
- (c) All correspondence must include the contract number and a Task Order (TO) number (if appropriate).

G.6 ELECTRONIC COMMUNICATIONS

The Contractor must assure an electronic means for communicating with FAA personnel. The

Contractor must ensure that the communications are compatible with the FAA's electronic mail system which is currently MS Outlook. The Contractor must also ensure that the Contractor's electronic mail has the capability to receive and retrieve attachments.

All contract reports/deliverables, including invoices, must be made in electronic format with all linkages and interdependencies readily traceable.

G.7 ORDERING PROCEDURE

Performance under this contract must be subject to the ordering procedure discussed below.

- (i) All work to be performed under this contract must be within the scope of the Statement of Work (SOW) contained in Section C and must not commence until so authorized by the CO under a specific Task Order (TO) issued under this contract. The Contractor must incur costs only in the performance of TOs issued in accordance with these ordering procedures. No other costs are authorized under this contract without the express written consent of the Contracting Officer.
- (ii) From time to time during the period of performance of this contract, the FAA CO will request proposals from the Contractor for proposed TOs.
- (iii) The Contractor must submit, within fourteen (14) calendar days after receipt of each proposed TO document provided by the CO, a Contractor Technical and Pricing proposals on forms specified and/or provided by the Government. On an individual TO basis, the CO may allow for more or less time to submit the proposals. The Contractor's proposals must include the following (as applicable & subject to the CO's discretion to add additional task order submission requirements or waiver certain submission requirements for specific task orders):
 - (1) Contractor's approach to accomplishing the proposed TO.
 - (2) Date of commencement of work, and any necessary revisions to the schedule of performance.
 - (3) Identification of any potential Organization Conflict of Interest (OCI); if no OCIs are identified, a certification that the Contractor is not aware of any potential OCI.
 - (4) Direct labor-hours, monthly, by applicable labor category, and total labor-hours, including those in (7) below, estimated to complete the task.
 - (5) Rationale for labor-hours, by applicable labor category, estimated in (4) above.
 - (6) The travel, material cost, and other direct cost estimate, including rationale for each.
 - (7) A price estimate for subcontractors and consultants that support the subcontractor and consultant labor-hours in (4) above.
 - (8) The total estimated price for completion of the TO, including price element breakdown of total estimated price.
- (iv) The Contractor's proposal is subject to the review of the Government and approval of the Contracting Officer. A TO will be issued by the Contracting Officer once an acceptable technical and pricing proposal has been provided to the Government.

- (v) Once a TO is issued, the Contractor is not authorized to incur costs or expend level of effort (labor-hours) more than those established in the TO without written approval of the Contracting Officer. After a TO is issued, if any revision becomes necessary to the fixed price or not-to-exceed price of the task order, the Contractor must promptly submit to the Contracting Officer a revised proposal with explanatory notes. Revised proposals submitted by the Contractor are subject to the review and approval of the Contracting Officer.
- (vi) All TOs will be issued in writing by the Contracting Officer to cover specific work assignments within the scope of the contract. The TOs will be issued on forms specified and provided by the Government. The TOs will be numbered. A revision to a TO will be identified by an alpha designation after the existing TO number, indicating the revision sequence. All TOs must contain the following information:
- TO number.
 - FAA technical point-of-contact.
 - Period of performance.
 - Description of the work to be performed.
 - Fixed Price or Not-to-Exceed Price
 - Estimated labor hours/mix.
 - Anticipated Travel requirements.
 - Start and completion dates, with major milestones.
 - Deliverables with required delivery dates.
 - Personnel Security and Security requirements; and
 - List of Government Furnished Property, Equipment, and/or Information (GFP/GFE/GFI).

G.8 BILLING INSTRUCTIONS

The Department of Transportation (DOT) uses the Delphi financial system located at the Enterprise Services Center (ESC) to process invoice payments for the FAA. DOT has implemented a program to automate the invoice payment process via Delphi's e-Invoicing web-portal. The Delphi e-Invoicing web-portal is a real-time electronic invoicing tool that improves efficiency and data transparency by reducing the time between invoice submission and payment, and by providing suppliers with accurate invoice status reporting capabilities.

- (a) Invoices must be submitted monthly in accordance with AMS 3.2.4-5, Allowable Cost and Payment (October 2019). Payment is subject to review, approval and certification by the CO and COR. In the event of questioned costs, the CO may withhold any or all invoice amounts until the Contractor provides all required data to the satisfaction of the CO. The payment will be made pursuant to FAA AMS 3.3.1-34 Payment by Electronic Funds

Transfer- System for Award Management.

(b) Compliance with these instructions will reduce correspondence and other causes for delay to a minimum and will thus promote prompt payments to the Contractor. Invoices must be submitted no more frequently than once per month unless prior written consent is obtained from the CO and supporting cost documentation is as described in this section or in the relevant task order.

(c) Invoices must be submitted in electronically via the Delphi e-Invoicing web-portal in accordance with AMS clause 3.3.1-40, Electronic Submission of Payment Requests (October 2024) . The instructions and information required to set-up a Delphi e-Invoicing web-portal account are below:

1. Please provide the following information to the ESC via:
9-AMC-FAA-iSupplier@faa.gov
 - a. Name
 - b. Email Address
 - c. Phone Number
2. Once verified, ESC will generate a new Delphi user account and email it to you.
3. Once you receive a user account in Delphi, you will be required to create a Login.gov account (<https://login.gov/>) using the same e-mail address provided to the ESC for the Delphi e-Invoicing web-portal account. An email containing instructions to complete this process will be sent to you once your Delphi account has been established.
4. When the login.gov account is established, you will use this account to access the Delphi e-Invoicing web-portal.

For changes to existing accounts or system issues (i.e. login issues) related to your Delphi account please contact the ESC Delphi Help Desk at (405) 954-3000; or (866) 641-3500. For additional Delphi user account creation, please provide the following information to ESC at: 9-AMC-FAA-iSupplier@faa.gov.

- a. Name
- b. Email Address
- c. Phone Number

(d) Upon completion, termination, or expiration of the contract, the Contractor must submit a final voucher clearly marked “FINAL”. The final voucher must contain an itemized accounting of total contract costs that includes:

- Certification that all contractual requirements have been satisfied; and
- Certification that all previous Contractor vouchers have been paid.

G.9 ALLOWABILITY AND PAYMENT OF SELECTED ITEMS OF COST UNDER

THIS CONTRACT

(a) Training: The Government will not allow costs, nor reimburse costs associated with the Contractor training employees in an effort to attain and/or maintain minimum personnel qualification requirements of the contract. Other training may be approved on a case-by-case basis within an approved TO. Attendance at workshops or symposiums is considered training for the purposes of this clause.

(b) General Purpose Office Equipment (GPOE) and Information Technology (IT): The cost of acquisition of GPOE and IT will not be allowable as direct charges to this contract. The Contractor is expected to have the necessary GPOE and IT required to perform the TOs issued under this contract. GPOE means equipment normally found in a business office such as desks, chairs, typewriters, calculators, file cabinets, etc. IT means any equipment or interconnected system or subsystem of equipment that is used in the automatic acquisition, storage, manipulation, movement, control, display, switching, interchange, transmission, or reception of data or information. IT includes computers, ancillary equipment, software, firmware and similar products, services (including support services), and related resources.

(c) Only costs expended in support of specific approved and issued TOs are allowable under this contract. When specific TOs appropriately require purchase of material, equipment, hardware or software, said items will be called out in the TOs as being required in direct support of administration or performance of the TO.

G.10 TRAVEL REIMBURSEMENT

G.10.1 Reimbursement

The Contractor will only be reimbursed for travel expenses that are allocable, allowable, and reasonable. All Contractor travel must be identified in an approved TO (and approved in advance in writing by the CO). Except as otherwise provided herein, the Contractor must be reimbursed for travel on the basis of actual expenses incurred subject to the FAA Contract Cost Principles and AMS Clause 3.3.2-1, FAA Cost Principles, and subject to the following:

- All travel whether it is within the continental United States or outside the continental United States, must be accomplished by commercial carrier, rail, privately-owned automobile or auto rental, and the cost paid by the Contractor. The Government will reimburse the Contractor in accordance with the FAA Contract Cost Principles for domestic transportation.
- Reimbursable travel includes only that travel (commercial carrier, or private automobile or auto rental) performed from the Contractor's facilities to the site of work, between worksites, and from the site of work to the Contractor's facilities. Travel within a Government installation where Government transportation is available, and travel performed for personal convenience, including daily travel to and from work, will not be reimbursed.

- Relocation costs and travel costs incidental to relocation must be approved in advance by the FAA CO in order to be reimbursable under this contract.
- The Contractor must use alternate airports where available and within a reasonable commuting distance if it will result in lower costs.
- The Contractor must conduct a cost analysis prior to the start of travel to determine the overall most cost effective means of transportation.

G.10.2 Per-Diem

The Contractor will be reimbursed for the expense of meals, lodging, transportation between places of lodging or business and places where meals are taken, and any other miscellaneous travel and living expenses incurred in the performance of this contract at the per diem rate as set forth in the FAA Contract Cost Principles. Per Diem must be payable only when the Contractor's employee is in an authorized travel status. The per diem rate must be established in accordance with the FAA Contract Cost Principles. Receipts are required for all Per Diem Expenses exceeding \$75.00. If the Contractor can demonstrate to the FAA CO that copies of receipts can be made available upon request, the CO may waive the requirement to submit receipts over \$75.

G.10.3 Contractor Travel

To the maximum extent practicable, and consistent with travel requirements, the Contractor must use the most economical transportation rates available.

G.11 RELEASE OF GOVERNMENT OBLIGATION

The Contractor, and each assignee under an assignment entered into under this contract, and in effect at the time of final payment under this contract, must execute and deliver, as a condition precedent to final payment under this contract, a release discharging the Government, its officers, agents, and employees of and from all liabilities, obligations, and claims arising out of or under this contract, subject only to the following exceptions:

Specified claims in stated amounts, or in estimated amounts if the amounts are not susceptible of exact statement by the Contractor; and

Claims, together with reasonable incidental expenses, based upon the liabilities of the Contractor to third parties arising out of performing this contract, that are not known to the Contractor on the date of the execution of the release, and of which the Contractor gives notice in writing to the CO not more than one (1) year after the date of the release or the date of any notice to the Contractor that the FAA is prepared to make final payment, whichever is earlier.

G.12 CONTRACTOR'S REMITTANCE ADDRESS

Contractor's remittance address and banking information is contained in the Contractor's System for Award Management (SAM) records. Contractor is responsible for maintaining the currency of this information.

G.13 ACCOUNTING AND APPROPRIATION DATA

Accounting and appropriation data is included in each individual TO.

G.14 REPORTS OF PROBLEMS

In addition to any TO reporting requirements, the Contractor must bring actual or potential problems to the attention of the CO and/or COR as soon as they are known. Oral reports must be followed by written narrative.

In no event, however, will any understanding or agreement, modification, change order, or other matter deviating from the terms of the contract between the Contractor and any person other than the Contracting Officer be effective or binding upon the Government, unless a contract modification or letter of direction is executed by the Contracting Officer prior to completion of this contract.

On all matters that pertain to contract terms, the Contractor will contact the Contracting Officer. When the COR requests effort that may be outside the existing scope of the contract, the Contractor must promptly notify the Contracting Officer. The Contractor under such request will take no action unless and until the Contracting Officer has issued a letter of direction or a contract modification. (See also section G.2 above.)

G.15 ELECTRONIC COMMUNICATIONS

The Contractor must assure an electronic means for communicating with FAA personnel. The Contractor must ensure that the communications are compatible with the FAA's electronic mail system and software, which is Microsoft Outlook. The Contractor must also ensure that the Contractor's electronic mail has the capability to receive and retrieve attachments.

G.16 INTERPRETATION OR MODIFICATION

No verbal statement by any person, and no written statement by anyone other than the Contracting Officer, or his/her authorized representative acting within the scope of his/her authority, will be interpreted as modifying or otherwise affecting the terms of this solicitation or any resulting contract. All requests for interpretation or modification will be made in writing to the Contracting Officer.

(End of Section G)

PART VII - SECTION H SPECIAL CONTRACT PROVISIONS

H.1 FAA ACQUISITION MANAGEMENT SYSTEM CLAUSES INCORPORATED IN FULL TEXT

3.1.9-1 Electronic Commerce and Signature (July 2020)

- (a) The Electronic Signatures in Global and National Commerce Act (E-SIGN) establishes a legal equivalence between: (1) Contracts written on paper and contracts in electronic form; (2) Pen-and-ink signatures and electronic signatures; and (3) Other legally-required written records and the same information in electronic form.
- (b) With the submission of an offer, the offeror acknowledges and accepts the utilization of electronic commerce as part of the requirements of this solicitation and the resultant contract.
- (c) Certain documents may need to be provided or maintained in original form, such as large-scale drawings impractical to convert to electronic format or a document with a raised seal signifying authenticity. This clause does not change or affect any other requirements that a document must be in paper format to satisfy legal requirements such as for certain real estate transactions.
- (d) The use of electronic signature technology is authorized under this solicitation and the resulting contract.
- (e) Contractors must not digitally sign any documents with software that uses the Secure Hash Algorithm 1 (SHA-1). All digitally signed documents and contracts sent to the FAA must use a SHA-256 or higher hash algorithm. This is based on the National Institute of Standards and Technology (NIST) Policy Statement on Hash Functions dated August 5, 2015. Further guidance on the use of SHA-256 is in NIST Special Publication (SP) 800-57 Part 1, section 5.6.2 as amended and SP 800-131A, Revision 1 dated November 6, 2015. Additional guidance on the use of SHA-3 is in NIST SP 800-185 as amended.
- (f) Contractors do not have to update documents previously digitally signed using SHA-1 hash algorithms unless the document requires updating. The FAA and contractors may continue to use SHA-1 for the following applications: Verifying old digital signatures and time stamps, generating and verifying hash-based message authentication codes (HMACs), key derivation functions (KDFs), and random bit/number generation.

(End of Clause)

3.8.2-17 Key Personnel and Facilities (July 2019)

- (a) The personnel and/or facilities as specified below are considered essential to the work being performed hereunder and may, with the consent of the contracting parties, be changed from time to time during the course of the contract.

(b) Prior to removing, replacing, or diverting any of the specified personnel and/or facilities, the Contractor must notify in writing, and receive consent from, the Contracting Officer reasonably in advance of the action and must submit justification (including proposed substitutions) in sufficient detail to permit evaluation of the impact on this contract.

(c) No diversion will be made by the Contractor without the written consent of the Contracting Officer.

(d) The key personnel and/or facilities under this contract are:

Project/Program Manager

Technical Subject Expert – SECRET level clearance required

Principal Engineer/Scientist – SECRET level clearance required

(End of clause)

3.13-15 Confidentiality of Data and Information (November 2016)

(a) In performance of this contract, the contractor and any of its subcontractors, may need access to and use various data and information in the possession of the Government. This data and information may have been obtained under conditions which restrict the Government's right to use and disclose this data and information or which may be adverse to the interests of the Government or other parties if it is disseminated or used in a capacity other than in performance of this contract. Therefore, the contractor and its subcontractors agree to abide by any restrictive use conditions on such data and not to: (1) knowingly disclose such data and information to others without written authorization from the Contracting Officer, unless it is already publicly available; or (2) use for any purpose other than the performance of this contract any data or information which bears a restrictive marking or legend which the contractor has gained access to through the performance of this contract, or information that should be marked according to FAA Order 1600.75 "Protecting Sensitive Unclassified Information (SUI)". For the sole purpose of this clause, "information" means any communication or representation of knowledge such as facts, data, or opinions in any medium or form, including textual, numerical, graphic, cartographic, narrative or visual form.

(b) In the event the work required to be performed under this contract requires access to proprietary data and information of other companies, the contractor must obtain agreement from such other companies for such use unless such data are provided or made available to the contractor by the Government. Two copies of such company-to-company agreements must be furnished promptly to the Contracting Officer for information only. These agreements must prescribe the scope of authorized use and disclosure of the proprietary data and information as well as any other terms and conditions to be agreed upon between the parties thereto. It is agreed by the contractor that any such data or information, whether obtained by the contractor pursuant

to the aforesaid agreement or from the Government, must be protected from unauthorized use by or unauthorized disclosure to any individual, corporation, or organization so long as it remains proprietary.

(c) The contractor agrees to conduct formal training to make employees aware of the requirement to maintain confidentiality of data and information as required above., The contractor must obtain from each employee in connection with this contract a signed Non-Disclosure Agreement. This agreement must provide that the employee will not, during employment or anytime thereafter, disclose or use for current or future benefit of any party any of the data (to include any form of Sensitive Unclassified Information (SUI) described in FAA Order 1600.75) or information not publicly available received in connection with the work under the contract.

(d) The contractor agrees to hold the Government harmless and indemnify the Government as to any cost/loss resulting from the unauthorized use or disclosure of third party data or software by the contractor, its employees, subcontractors, or agents.

(e) The contractor agrees to include the substance of this clause in all subcontracts awarded under this contract. The Contracting Officer will consider case-by-case exceptions to this requirement for individual subcontracts in the event that: (1) the contractor considers this clause to be inappropriate and unnecessary in the case of a particular subcontract; (2) the contractor provides a written statement affirming absolute unwillingness of a subcontractor to perform, absent some relief from the substance of this prohibition and the reason why; (3) use of an alternate subcontract source would unreasonably detract from the quality of effort; and (4) the contractor provides the Contracting Officer timely written advance notice of these and any other extenuating circumstances.

(f) Except as the Contracting Officer specifically authorizes in writing, upon completion of all work under this contract, the contractor must return all such data and information described above obtained from the Government, including all copies, modifications, adaptations, or combinations thereof, to the Contracting Officer. Data obtained from another company must be disposed of in accordance with the contractor's agreement with that company, or if the agreement makes no provision for disposition, must be returned to that company. The contractor must further certify in writing to the CO that all copies, modifications, adaptations, or combinations of such data or information which cannot reasonably be returned to the Contracting Officer (or to the appropriate company), have been deleted from the contractor's (and any subcontractor's) records and destroyed. The FAA reserves the right to audit the deletion. The FAA must provide notice of the audit 10 calendar days prior to the audit.

(g) These restrictions do not limit the contractor's (or subcontractor's) right to use and disclose any data and information obtained from another source without restriction.

(End of clause)

H.2 REPRESENTATIONS AND CERTIFICATIONS

Representations and Certifications executed by the Contractor under Section K herein and

included in the response to the SIR must be deemed to be incorporated herein by reference and made a part of the contract.

H.3 INTERPRETATION OF CONTRACT (NOTICE OF AMBIGUITIES)

- (a) This written contract and any and all identified writings or documents incorporated by reference herein or physically attached hereto, constitute the parties' complete agreement, and no other prior or contemporaneous agreements either written or oral must be considered to change, modify or contradict it. Any ambiguity in the contract will not be strictly construed against the drafter of the contract language, but must be resolved by applying the most reasonable interpretation under the circumstances, giving full consideration to the intentions of the parties at the time of contracting.
- (b) It is the obligation of the Contractor to exercise due diligence to discover and to bring to the attention of the Contracting Officer at the earliest possible time, any ambiguities, discrepancies, inconsistencies, or conflicts in or between the specifications and the applicable drawings or other documents incorporated by reference herein. Failure to comply with such obligations may be deemed a waiver and release of any and all claims for extra costs or delays arising out of such ambiguities, discrepancies, inconsistencies and conflicts.

H.4 FAA RIGHT TO PERFORM OR CONTRACT

The Government reserves the right to accomplish any work within the scope of this contract either by Government personnel or by another separate contract.

H.5 PERSONAL SERVICES

- (a) No personal services must be performed under this Contract. No Contractor employee will be directly supervised by the Government. All individual Contractor employee assignments, and daily work direction, must be given by the applicable Contractor supervisor. If the Contractor believes that any Government action or communication has been given that would create a personal services relationship between the Government and any Contractor employee, the Contractor must promptly notify the Contracting Officer of this communication or action.
- (b) The Contractor must not perform any inherently governmental functions under this contract. No Contractor employee may hold him or herself out to be a Government employee, agent or representative. No Contractor employee may state orally or in writing at any time that he or she is acting on behalf of the Government. In all communications with third parties in connection with this contract, Contractor employees must identify themselves as Contractor employees and specify the name of the company for which they work. In all communications with other Government Contractors in connection with this contract, the Contractor employees must state that they have no authority to in any way change the contract and that if the other Contractor believes this communication to be a direction to change its contract, it should notify the Contracting Officer for that contract

and not carry out the direction until a clarification has been issued by the Contracting Officer.

- (c) The Contractor must ensure that all of its employees working on this contract are informed of the substance of this clause. Nothing in this clause must limit the Government's rights in any way under any other provision of the contract, including those related to the Government's right to inspect and accept the services to be performed under this Contract. The substance of this clause must be included in all subcontracts at any tier.

H.6 QUALIFICATION OF PERSONNEL

All personnel assigned to this Contract must satisfy the requirements set forth in Attachment J002 - Labor Category Descriptions and Qualifications.

H.7 KEY PERSONNEL

Key Personnel and/or facilities may be designated on a TO basis in accordance with AMS Clause 3.8.2-17, Key Personnel and Facilities. All personnel and facilities considered to be "Key" must be specifically designated as such in the executed TO.

H.8 SUBSTITUTION OF KEY PERSONNEL

The Contractor must notify the CO prior to making any changes in Key Personnel. No changes in Key Personnel will be made unless the Contractor can demonstrate that the qualifications of prospective replacement personnel are equal to the qualifications of the Key Personnel being replaced. The CO must be notified in writing of any proposed substitution at least thirty (30) calendar days in advance of the proposed substitution. Such notification must include:

- (a) Explanation of the circumstances necessitating the substitution;
- (b) Complete resume of the proposed substitute; and
- (c) Other information requested to enable the CO to judge whether or not the Contractor is maintaining the same high quality of personnel as initially provided.

The CO will evaluate the Key Personnel substitution request and promptly notify the Contractor of its approval or disapproval in writing. All disapprovals will require resubmission of another substitution within fifteen (15) calendar days by the Contractor.

H.9 SECURITY OF GOVERNMENT INFORMATION SYSTEMS

When using computer, network, and/or communication systems operated by or on behalf of the FAA, the Contractor must comply with the security requirements outlined in OMB Circular A-130 Appendix III, Security of Federal Automated Information Resources, the DOT Information Systems Security Guide (DOT H 1350.250), DOT Network Security Guide (DOT H 1350.251), and FAA Security Orders, including FAA Personnel Security Order 1600.1, and FAA Order

1370.82, Information Systems Security. Contractor personnel must complete annual Information System Security LOB Awareness Training and any other security training required by the DOT/FAA. Documentation of completed training must be submitted to the CO via e-mail.

H.10 CONTRACTOR PERSONNEL REQUIREMENTS

H.10.1 Contractor Personnel

Contractor Personnel include employees of the prime contractor and all subcontractors engaged by the Prime Contractor to perform work efforts under the contract.

H.10.2 Access to Government Facilities

- a) Part of the effort to be performed under this contract may be at facilities operated by the Federal Aviation Administration (FAA). The Contractor will be granted ingress and egress at the specific site where the effort is to be accomplished. Access to the site must be coordinated with the COR.
- b) While Contractor personnel are at Government facilities, they are required to comply with all rules and regulations of the site, particularly in the areas of health and safety. The facilities to which the Contractor has access at all times will be in the custody of the Federal Government and will not be considered "Government Property" furnished to the Contractor.
- c) The scheduling of access to Government facilities must be under the control of the Government. Facility availability will be scheduled to permit timely performance of contract requirements. However, Contractor personnel must be prepared to work outside the normal daytime shift if conditions at the facility so require.
- d) The Contractor must require that all Contractor personnel who perform work at FAA facilities wear identification badges which clearly identify individuals as Contractor employees.
- e) The Government reserves the right to issue its own Contractor identification badges. If Government badges are required, they will be issued in accordance with Government procedures.

- f) If it is brought to the attention of the Government that any Contractor or subcontractor employee working on this contract does not meet the minimum work requirements, the Contractor will be advised in writing by the CO, and access to FAA facilities may be denied for that employee.

H.10.3 Employee Work Hours

Individual TOs may establish work hours specific to that TO.

H.10.4 Contractor Staff Training

- (a) The Contractor must provide fully trained and experienced personnel (including replacement personnel) required for performance of this contract. This includes training necessary for keeping personnel abreast of industry advances and for maintaining proficiency within an employee's labor category. Training of personnel must be performed by the Contractor at its own expense, except for the following upon COR approval:
- When the CO has given prior approval for training to meet special requirements that are peculiar to a particular TO;
 - Limited training of Contractor employee(s) may be authorized when the Government changes software during performance of this contract and it is determined to be in the best interest of the Government; and
 - Training for Contractor employees to attend seminars, symposia, or user group conferences when certified by the Contractor, COR and CO that attendance is mandatory for the performance of a TO.
- (b) When training is authorized by the Government under the conditions set forth above, the Government may reimburse the Contractor for labor, tuition, and travel. However, each occurrence will be handled and negotiated on a case-by-case basis.

H.10.5 Observance of Legal Holidays

Unless otherwise specified in a TO, Contractor staff assigned to work at an FAA facility must observe these Federal holidays and closures:

- | | |
|-----------------------------------|-----------------------|
| (1) New Year's Day | (7) Labor Day |
| (2) Martin Luther King's Birthday | (8) Columbus Day |
| (3) President's Day | (9) Veterans' Day |
| (4) Memorial Day | (10) Thanksgiving Day |
| (5) Juneteenth | (11) Christmas Day |
| (6) Independence Day | |

- (a) When one of the above-designated holidays falls on a Sunday, the following Monday will generally be observed as a legal holiday. When a legal holiday falls on a Saturday, the preceding Friday is generally observed as a holiday.
- (b) In addition to the days designated as holidays, the Government observes the following days:
 - (1) Any other day designated by Federal Statute
 - (2) Any other day designated by Executive Order
 - (3) Any other day designated by the President's Proclamation

H.10.6 Employee Termination

The Contractor must notify the COR within 24 hours, or the next business day, whenever an employee performing work under this contract terminates employment. The Contractor will be responsible for returning all Department of Transportation (DOT)-issued Contractor/employee identification and all other DOT property, including Government-furnished information, to the COR. The Contractor must maintain and provide to the FAA upon request a current Staffing In/Out Processing Checklist.

H.11 SUBCONTRACTS

H.11.1 Clauses Applicable to Subcontracts

The Prime Contractor is responsible for flow down of all applicable AMS and Section H clauses to its subcontractors.

H.11.2 Responsibility of Prime Contractor to Make Payment to Subcontractors

The Prime Contractor is responsible for making flow down payments due to subcontractors in a timely manner consistent with FAA payments to the Prime Contractor or, if appropriate, sooner. The Contractor must not infer that payments to subcontractors are predicated or guaranteed solely on FAA payments to the Prime Contractor.

H.12 NOTIFICATION OF DEBARMENT/SUSPENSION STATUS

The Contractor and its subcontractors must provide immediate notice to the CO in the event of being suspended, debarred or declared ineligible by any Federal Government Agency or Department, or upon receipt of a notice of proposed suspension, debarment or ineligibility from any Federal Government Agency or Department during the performance of this contract.

H.13 DISSEMINATION OF CONTRACT INFORMATION

The Contractor must not publish, permit to be published, or distribute for public consumption any information, oral or written, concerning the results or conclusions made pursuant to the

performance of this contract, without the prior written consent of the CO. This statement includes seminars, professional society meeting and conferences, and meetings with foreign dignitaries both government and from the private sector. Soft copies of any material proposed to be published or distributed must be submitted to the CO. The following schedule is established as a guideline when requesting consent (business days):

- a. Written information - 20 days
- b. Oral information - 20 days
- c. Congressional information - 15 days

For any Contractor proposals for prospective work, exclusive of this contract, for which the Contractor may employ information generated in the performance of this contract, the Contractor must request in writing and obtain permission in writing from the CO before submitting such information as part of a proposal. Such request must include a brief description of the requirement for which the Contractor is proposing and indicate the Government or business entity to which the proposal is being submitted.

H.14 NOTICE TO THE GOVERNMENT OF DELAYS

In the event the Contractor encounters difficulty in meeting performance requirements, or when difficulty is anticipated in complying with the contract delivery schedule or date, or whenever the Contractor has knowledge that any actual or potential situation is delaying or threatens to delay the timely performance of this contract, the Contractor must immediately notify the Contracting Officer and the COR, in writing, giving pertinent details, provided that this data must be informational only in character and that compliance with this provision must not be construed as a waiver by the Government of any delivery schedule or date or of any rights or remedies provided by law or under this contract.

H.15 SAVE HARMLESS AND INDEMNITY AGREEMENT

The Contractor must save and keep harmless and indemnify the Government against any and all liability, claims, and costs of whatever kind and nature, for injury to or death of a person or persons and for loss or damage to any property (Government or otherwise) occurring in connection with or arising out of the occupancy, use, service, operations, or performance of work in connection with this contract, resulting from the negligent acts, fault or omissions of the Contractor, any subcontractor, or any employee, agent, or representative of the Contractor or any subcontractor.

H.16 SECTION 508 OF THE REHABILITATION ACT AMENDMENT OF 1998

The Contractor must comply with the applicable portions of Section 508 of the Rehabilitation Act of 1973, as amended (29 U.S.C. § 794d) and as implemented by 36 C.F.R. part 1194, to ensure that Federal employees with disabilities have access to and use of information and data that is comparable to the access and use by Federal employees who are not individuals with disabilities. Section 508 does not require the installation of specific accessibility-related software or the attachment of an assistive technology device at a workstation of a Federal

employee who is not an individual with a disability.

H.17 EXERCISE OF OPTIONS

Any option, if exercised, will be by the Contracting Officer's issuance of a unilateral signed modification to this contract. Within the timeframes set forth below, the Contracting Officer may require the Contractor to furnish the services set forth in Section B for CLINs 1001 through 4001:

<u>CLIN(s)</u>	<u>Option Exercise Date/Timeframe</u>
1001	Within 1 year after Contract Award
2001	Within 1 year after exercise of Option CLIN 1001
3001	Within 1 year after exercise of Option CLIN 2001
4001	Within 1 year after exercise of Option CLIN 3001

H.18 RELATIONSHIPS, INTERPRETATIONS AND MODIFICATIONS

The Contractor must provide support to the Government by completing work within the SOW and as assigned under this contract in TOs. The Contractor must not provide technical direction of, or assume the Government's responsibility under any programs. Although the effort under this contract may include recommendations to the Government, specific Government approval and action will be necessary before such recommendations can become effective. The Contractor's efforts must not be binding on other Government Contractors. The Contractor must not take any action with respect to other Contractors which causes any change in their contract scope of work, cost, or scheduling. No oral statement of any person, and no written statement of anyone other than the CO or the COR, acting within the limits of the authority specified in such designation, must modify or otherwise affect any provision of this contract.

H.19 CONTRACTOR ACQUIRED PROPERTY

Title to material, equipment and property that the contractor is authorized to purchase under this contract as a direct cost to the Government must pass to and vest in the Government upon receipt of the equipment or property by the Contractor. This property must be controlled in accordance with the FAA's Acquisition Management System (AMS) Clause 3.10.3-2 Government Property - Basic Clause. Inspection and acceptance provisions for this property will be identified at the time the purchase is authorized.

H.20 POST AWARD CONFERENCE

The Contractor must participate in a post award conference that will be held within thirty (30) business days after contract award. The purpose of the post award conference is to aid both the

Contractor and the Government in achieving a clear and mutual understanding of all contract requirements and identifying and resolving potential problems.

The CO is responsible for establishing the time and place of the conference and will notify the appropriate Government representatives and the Contractors. The conference may be conducted at a location within the Washington, DC, commuting area at the Government's discretion.

The Contractor further agrees to attend post award conferences on TOs as required. The TO post award conferences will establish work level points of contact for the TO, determine the TO administration strategy, roles and responsibilities and ensure prompt payment and TO close-out.

H.21 PRESIDENTIAL DIRECTIVES

FAA shall comply with all Presidential directives. If any clause, provision, term, or condition in this SIR or contract is inconsistent with any Executive Order or Presidential Memoranda issued on or after January 20, 2025, or implementing guidance thereof, FAA will take action it deems appropriate and as permitted by law to correct any such inconsistency to include finding a provision or clause invalid. Applicable Executive Orders include, but are not limited to:

- Executive Order 14148 of January 20, 2025, Initial Recissions of Harmful Executive Orders and Actions.
- Executive Order 14151 of January 20, 2025, Ending Radical and Wasteful Government DEI Programs and Preferencing.
- Executive Order 14154 of January 20, 2025, Unleashing American Energy.
- Executive Order 14168 of January 20, 2025, Defending Women From Gender Ideology Extremism and Restoring Biological Truth to the Federal Government
- Executive Order 14173 of January 21, 2025, Ending Illegal Discrimination and Restoring Merit-Based Opportunity.

(End of Section H)

PART II - SECTION I CONTRACT CLAUSES

Provisions through AMS Clause Change 122 April 2025

I.1 3.1-1 CLAUSES AND PROVISIONS INCORPORATED BY REFERENCE (July 2019)

This screening information request (SIR) or contract, as applicable, incorporates by reference the provisions or clauses listed below with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make the full text available, or Offeror's and Contractors may obtain the full text via Internet at: <https://fast.faa.gov/contractclauses.cfm>.

- 3.1.7-1 Exclusion From Future Agency Contracts (July 2018)
- 3.1.7-2 Organizational Conflicts of Interest (January 2023)
- 3.1.7-4 Organizational Conflict of Interest - Mitigation Plan Required (October 2019)
- 3.1.7-5 Disclosure of Conflicts of Interest (July 2018)
- 3.1.8-1 Cancellation, Rescission and Recovery of Funds for Illegal or Improper Activity (April 2024)
- 3.1.8-2 Price or Fee Adjustment for Illegal or Improper Activity (April 2024)
- 3.2.2.3-8 Audits and Records (July 2010)
- 3.2.2.3-29 Integrity of Unit Prices (July 2004)
- 3.2.2.3-30 Termination of Defined Benefit Pension Plans (April 2023)
- 3.2.2.3-33 Order of Precedence (April 2024)
- 3.2.2.3-36 Reversing or Adjusting of Plans for Postretirement Benefits Other Than Pensions (PRB) (April 2023)
- 3.2.2.3-81 Prohibition Against Contracting with Inverted Domestic Corporations – Representation (July 2024)
- 3.2.2.3-83 Prohibition against Contracting with Inverted Domestic Corporations (October 2015)
- 3.2.2.7-6 Protecting the Government's Interest when Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment (April 2023)
- 3.2.2.7-8 Disclosure of Team Arrangements (April 2008)
- 3.2.4-27 Limitation of Price and Contractor Obligations (October 2019)
- 3.2.4-28 Cancellation of Items (October 2019)
- 3.2.5-1 Officials Not to Benefit (October 2024)
- 3.2.5-3 Gratuities or Gifts (October 2024)
- 3.2.5-4 Contingent Fees (October 2024)
- 3.2.5-5 Anti-Kickback Procedures (October 2024)
- 3.2.5-6 Restrictions on Subcontractor Sales to the FAA (October 2024)
- 3.2.5-7 Disclosure Regarding Payments to Influence Certain Federal Transactions (October 2024)
- 3.2.5-8 Whistleblower Protection for Contractor Employees (April 2024)
- 3.2.5-13 Contractor Code of Business Ethics and Conduct (October 2024)

- 3.2.5-14 Display of Hotline Poster(s) (October 2024)
- 3.3.1-1 Payments (July 2018)
- 3.3.1-5 Payments under Time and Materials and Labor Hour Contracts (October 2024)
- 3.3.1-6 Discounts for Prompt Payment (July 2018)
- 3.3.1-8 Extras (October 2024)
- 3.3.1-10 Availability of Funds (April 2024)
- 3.3.1-14 Limitation of Funds (October 2024)
- 3.3.1-15 Assignment of Claims (July 2018)
- 3.3.1-17 Prompt Payment (October 2024)
- 3.3.1-20 Providing Accelerated Payment to Small Business Subcontractors (October 2012)
- 3.3.1-34 Payment by Electronic Funds Transfer-System for Award Management (October 2024)
- 3.3.1-39 **Incremental Funding - Time-and-Materials and Labor-Hour Contracts (October 2024)**
- 3.3.2-1 FAA Cost Principles (October 2019)
- 3.3.2-2 Reimbursement for Travel and Subsistence (October 2024)
- 3.4.1-10 Insurance- Work on a Government Installation (October 2020)
- 3.4.1-11 Insurance–Liability to Third Persons (October 2019)
- 3.4.1-12 Insurance (October 2019)
- 3.4.1-13 Errors and Omissions (July 1996)
- 3.4.2-6 Taxes - Contracts Performed in U.S. Possessions or Puerto Rico (October 1996)
- 3.4.2-8 Federal, State, and Local Taxes - Fixed Price Contract (July 2019)
- 3.5-1 Authorization and Consent (April 2023)
- 3.5-2 Notice and Assistance Regarding Patent and Copyright Infringement (January 2009)
- 3.5-3 Patent Indemnity (April 2017)
- 3.5-13 Rights in Data – General (October 2024)
- 3.5-13 Alternate II Rights in Data – General (January 2009)
- 3.5-13 Alternate III Rights in Data – General (January 2009)
- 3.5-15 Additional Data Requirements (January 2009)
- 3.5-16 Rights in Data – Special Works (January 2009)
- 3.6.1-3 **Utilization of Small, Small Disadvantaged, Women-Owned, Service- Disabled Veteran Owned, and HUBZone Small Business Concerns (April 2025))**
- 3.6.1-4 **Small Business Subcontracting Plan (April 2025)**
- 3.6.1-5 Payments to Small Business Subcontractors (October 2022)
- 3.6.1-6 Liquidated Damages - Subcontracting Plan (October 2022)
- 3.6.1-7 Limitations on Subcontracting (July 2021)
- 3.6.1-15 Post-Award Small Business Program Re-representation (July 2023)
- 3.6.2-2 Convict Labor (April 1996)
- 3.6.2-12 Equal Opportunity for Veterans (April 2022)
- 3.6.2-13 Equal Opportunity for Workers With Disabilities (April 2022)
- 3.6.2-39 Trafficking in Persons (October 2024)
- 3.6.2-44 Notification of Employee Rights under the National Labor Relations Act (July 2023)
- 3.6.3-13 Affirmative Procurement of Recycled Content and Products under Service and Construction Contracts (October 2024)

3.6.3-14	Use of Environmentally Preferable Products (October 2024)
3.6.4-10	Restrictions on Certain Foreign Purchases (January 2010)
3.6.4-21	Export Control (July 2014)
3.6.5-1	Utilization of Indian Organizations and Indian Owned Economic Enterprises (January 2023)
3.6.6-1	Drug Free Workplace (April 2023)
3.6.6-2	Seat Belt Use by Contractor Employees (April 2023)
3.6.6-3	Contractor Policy to Ban Text Messaging While Driving (July 2023)
3.8.2-11	Continuity of Services (October 2018)
3.8.2-19	Prohibition on Advertising (July 2019)
3.8.9-2	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment (July 2023)
3.9.1-1	Contract Disputes (January 2020)
3.9.1-2	Protest After Award (August 1997)
3.10.1-7	Bankruptcy (April 1996)
3.10.1-12	Alternate I Changes – Fixed Price (April 1996)
3.10.1-14	Changes- Time and Materials or Labor Hours (April 2022)
3.10.1-25	Novation and Change-Of-Name Agreements (October 2007)
3.10.1-28	Changes Required by AMS (January 2024)
3.10.2-3	Subcontracts (Time and Materials and Labor Hours Contracts (July 2023)
3.10.3-2	Government Property – Basic Clause (April 2022)
3.10.3-2	Alt I Government Property – Basic Clause (Oct 2018)
3-10.3-5	Use and Charges (October 2018)
3.10.5-1	Product Improvement/Technology Enhancement (April 1996)
3.10.6-1	Termination for Convenience of the Government (Fixed Price) (October 1996)
3.10.6-3	Alternate IV Termination (Cost-Reimbursement) (January 2015)
3.10.6-5	Default (Fixed-Price Research and Development) (January 2020)
3.10.6-4	Default (Fixed-Price Supply and Service) (October 1996)
3.10.6-7	Excusable Delays (October 1996)
3.13-11	Plain Language (July 2006)
3.13-14	Reporting Executive Compensation and First-Tier Subcontract Awards (October 2023)
3.14-5	Sensitive Unclassified Information (SUI) (January 2022)
3.14-6	Privacy or Security Safeguards (Nov 2016)

I.2 3.1.7-6 Disclosure of Certain Employee Relationships (April 2023)

(a) The policy of the FAA is to avoid doing business with contractors, subcontractors, and consultants who have a conflict of interest or an appearance of a conflict of interest. The purpose of this policy is to maintain the highest level of integrity within its workforce and to ensure that the award of procurement contracts is based upon fairness and merit.

(b) The contractor must provide to the Contracting Officer the following information with its proposal and must provide an information update within 30 days of the award of a contract, any

subcontract, or any consultant agreement, or within 30 days of the retention of a Subject Individual or former FAA employee subject to this clause:

(1) The names of all Subject Individuals who:

(i) participated in preparation of proposals for award; or

(ii) are planned to be used during performance; or

(iii) are used during performance; and

(2) The name of each individual, retained in any capacity by the contractor, who was employed by FAA during the five-year period immediately prior to the date of award; and

(3) The date on which the initial expression of interest in a future financial arrangement was discussed with the contractor by any former FAA employee whose name is required to be provided by the contractor pursuant to subparagraph (2); and

(4) The location where any Subject Individual or former FAA employee whose name is required to be provided by the contractor pursuant to subparagraphs (1) and (2), are expected to be assigned.

(c) "Subject Individual" means a current FAA employee's father, mother, son, daughter, brother, sister, uncle, aunt, first cousin, nephew, niece, husband, wife, father-in-law, mother-in-law, son-in-law, daughter-in-law, brother-in-law, sister-in-law, stepfather, stepmother, stepson, stepdaughter, stepbrother, stepsister, half brother, half sister, spouse of an in-law, or a member of his/her household.

(d) The contractor must incorporate this clause into all subcontracts or consultant agreements awarded under this contract and must further require that each such subcontractor or consultant incorporate this clause into all subcontracts or consultant agreements at any tier awarded under this contract unless the Contracting Officer determines otherwise.

(e) The information as it is submitted, must be certified as being true and correct. If there is no such information, the certification must so state.

(f) Remedies for nondisclosure: The following are possible remedies available to the FAA should a contractor misrepresent or refuse to disclose or misrepresent any information required by this clause:

(1) Termination of the contract.

(2) Exclusion from subsequent FAA contracts.

(3) Other remedial action as may be permitted or provided by law or regulation or policy or by the terms of the contract.

(g) Annual Certification. The contractor must provide annually, based on the anniversary date of contract award, the following certification in writing to the Contracting Officer:

**ANNUAL CERTIFICATION OF DISCLOSURE OF CERTAIN EMPLOYEE
RELATIONSHIPS**

The contractor represents and certifies that to the best of its knowledge and belief that during the prior 12 month period:

[] A former FAA employee(s) or Subject Individual(s) has been retained to work under the contract or subcontract or consultant agreement and complete disclosure has been made in accordance with subparagraph (b) of AMS Clause 3.1.7-6.

[] No former FAA employee(s) or Subject Individual(s) has been retained to work under the contract or subcontract or consultant agreement, and disclosure required by AMS Clause 3.1.7-6 is not applicable.

Authorized Representative

Company Name

Date

(h) The contractor agrees to include the substance of this clause in all subcontracts awarded under this contract. The Contracting Officer will consider case-by-case exceptions to this requirement for individual subcontracts in the event that: (1) the contractor considers this clause to be inappropriate and unnecessary in the case of a particular subcontract; (2) the contractor provides a written statement affirming absolute unwillingness of a subcontractor to perform, absent some relief from the substance of this prohibition and the reason why; (3) use of an alternate subcontract source would unreasonably detract from the quality of effort; and (4) the contractor provides the Contracting Officer timely written advance notice of these and any other extenuating circumstances.

(End of clause)

3.2.4-5 Allowable Cost and Payment (October 2019)

(a) Invoicing. The Government will make payments to the Contractor when requested as work progresses, but (except for small business concerns) not more often than once every 2 weeks, in

amounts determined to be allowable by the Contracting Officer in accordance with the Federal Aviation Administration's (FAA) "Contract Cost Principles" in effect on the date of this contract and the terms of this contract (upon request, the Contracting Officer will provide a copy of the FAA Contract Cost Principles). The Contractor may submit to an authorized representative of the Contracting Officer, in such form and reasonable detail as the representative may require, an invoice or voucher supported by a statement of the claimed allowable cost for performing this contract. Any payments for costs under this contract, particularly for costs of Indirect Rates under paragraph (d), must be subject to the provisions of the "Limitation of Costs" clause, or the "Limitation of Funds" clause, if applicable. The Contractor must be responsible to manage and control the allowable cost of performance of the contract, such that payments for any allowable costs, including Indirect Rates under paragraph (d), must not exceed the estimated cost set forth in the schedule, or the funded amount, less an allowance for fee, if the contract is incrementally funded.

(b) Reimbursing costs.

(1) For the purpose of reimbursing allowable costs (except as provided in subparagraph (2) below, with respect to pension, deferred profit sharing, and employee stock ownership plan contributions), the term costs includes only:

(i) Those costs the Contractor has incurred and recorded at the time of the request for reimbursement;

(ii) When the Contractor is not delinquent in paying costs of contract performance in the ordinary course of business, costs incurred, but not necessarily paid for-

(A) Materials issued from the Contractor's inventory and placed in the production process for use on the contract;

(B) Direct labor;

(C) Direct travel;

(D) Other direct in-house costs; and

(E) Properly allocable and allowable indirect costs, as shown in the records maintained by the Contractor for purposes of obtaining reimbursement under FAA contracts; and

(iii) The amount of payments that have been paid to the Contractor's subcontractors under similar cost standards.

(2) Contractor contributions to any pension or other post-retirement benefit, profit-sharing or employee stock ownership plan funds that are paid quarterly or more often may be included in indirect costs for payment purposes: Provided, that the Contractor pays the contribution to the fund within 30 days after the close of the period covered. Payments made 31

days or more after the close of a period must not be included until the Contractor actually makes the payment. Accrued costs for such contributions that are paid less often than quarterly must be excluded from indirect costs for payment purposes until the Contractor actually makes the payment.

(3) Notwithstanding the audit and adjustment of invoices or vouchers under paragraph (g) below, allowable indirect costs under this contract must be obtained by applying indirect cost rates established in accordance with paragraph (d) below.

(4) Any statements in specifications or other documents incorporated in this contract by reference designating performance of services or furnishing of materials at the Contractor's expense or at no cost to the Government will be disregarded for purposes of cost-reimbursement under this clause.

(c) Small business concerns. A small business concern may be paid more often than every 2 weeks and may invoice and be paid for recorded costs for items or services purchased directly for the contract, even though the concern has not yet paid for those items or services.

(d) Final indirect cost rates.

(1) Final annual indirect cost rates and the appropriate bases must be established for the period covered by the indirect cost rate proposal.

(2) The Contractor must, within 180 days after the expiration of each of its fiscal years, or by a later date approved by the Contracting Officer, submit to the cognizant Contracting Officer and to the cognizant audit activity proposed certified final indirect cost rates for that period and supporting cost data specifying the contract and/or subcontract to which the rates apply. The proposed rates must be based on the Contractor's actual cost experience for that period. The appropriate Government representative and Contractor will establish the final indirect cost rates as promptly as practical after receipt of the Contractor's proposal.

(i) An adequate indirect cost rate proposal must include the following data unless otherwise specified by the cognizant Contracting Officer:

(A) Summary of all claimed indirect expense rates, including pool, base, and calculated indirect rate.

(B) General and Administrative expenses (final indirect cost pool).
Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts).

(C) Overhead expenses (final indirect cost pool). Schedule claimed expenses by element of cost as identified in accounting records (Chart of Accounts) for each final indirect cost pool.

(D) Occupancy expenses (intermediate indirect cost pool). Schedule of claimed expenses by element of cost as identified in accounting records (Charts of Accounts) and expense reallocation to final indirect cost pools.

(E) Claimed allocation bases, by element of cost, used to distribute indirect costs.

(F) Facilities capital cost of money factors computation.

(G) Reconciliation of books of account (i.e., General Ledger) and claimed direct costs by major cost elements.

(H) Schedule of direct costs by contract and subcontract and indirect expense applied at claimed rates, as well as a subsidiary schedule of Government participation percentages in each of the allocation base amounts.

(I) Schedule of cumulative direct and indirect costs claimed and billed by contract and subcontract.

(J) Subcontract information. Listing of subcontracts awarded to companies for which the contractor is the prime or upper-tier contractor (include prime and subcontract numbers; subcontract value and award type; amount claimed during the fiscal year; and the subcontractor name, address, and point of contract information).

(K) Summary of each time-and-materials and labor-hour contract information, including labor categories, labor rates, hours, and amounts; direct materials; other direct costs; and, indirect expense applied at claimed rates.

(L) Reconciliation of total payroll per IRS form 941 to total labor costs distribution.

(M) Listing of decisions/agreements/approvals and description of accounting/organizational changes.

(N) Certificate of final indirect cost.

(O) Contract closing information for contracts physically completed in this fiscal year (include contract number, period of performance, contract ceiling amounts, contract fee computations, level of effort, and indicate if the contract is ready to close).

(3) The Contractor and the appropriate Government representative will execute a written understanding setting forth the final indirect cost rates. The understanding will specify (i) the agreed-upon final annual indirect cost rates, (ii) the bases to which the rates apply, (iii) the periods for which the rates apply, (iv) any specific indirect cost items treated as direct costs in the settlement, and (v) the affected contract and/or subcontract, identifying any with advance agreements or special terms and the applicable rates. The understanding will not change any

monetary ceiling, contract obligation, or specific cost allowance or disallowance provided for in this contract. The understanding is incorporated into this contract upon execution.

(4) After final annual direct cost rates are established for specific period, the contractor must update the billings on all contracts to reflect the final settled rates and update the schedule of cumulative direct and indirect costs claimed and billed as required by paragraph d(2)(i)(1) of this clause.

(5) Failure by the parties to agree on a final annual indirect cost rate may be the basis of a claim under the "Contract Disputes" clause.

(e) Billing rates. Until final annual indirect cost rates are established for any period, the Government will reimburse the Contractor at billing rates established by the Contracting Officer or by an authorized representative (the cognizant auditor), subject to adjustment when the final rates are established. These billing rates-

(1) Must be the anticipated final rates; and

(2) May be prospectively or retroactively revised by mutual agreement, at either party's request, to prevent substantial overpayment or underpayment.

(f) Quick-close-out procedures. When the Contractor and Contracting Officer agree, the quick-close-out procedures may be used.

(1) Procedures. Settlement of indirect cost rates must apply to this contract, in advance of the determination of final indirect cost rates, if:

(i) The contract is physically complete;

(ii) The amount of unsettled indirect cost to be allocated to this contract is not more than \$5,000,000 and the cumulative unsettled indirect costs to be allocated to one or more contracts in a single fiscal year do not exceed 15 percent of the estimated, total unsettled indirect costs allocable to cost-type contracts for that fiscal year; and

(iii) Agreement can be reached on a reasonable estimate of allocable dollars.

(2) The settlement must be final for this contract and no adjustment will be made to other contracts for over- or under-recoveries of costs allocated or allocable to this contract.

(3) The settlement will not be considered a binding precedent when establishing the final indirect costs for other contracts.

(4) These procedures may also be used for the settlement of direct and indirect costs for individual task and delivery orders.

(g) Audit. At any time or times before final payment, the Contracting Officer may have the Contractor's invoices or vouchers and statements of cost audited. Any payment may be (1)

reduced by amounts found by the Contracting Officer not to constitute allowable costs or (2) adjusted for prior overpayments or underpayments.

(h) Final payment.

(1) The Contractor must submit a completion invoice or voucher, designated as such, promptly upon completion of the work, but no later than 120 days (or longer, as the Contracting Officer may approve in writing) after settlement of final annual indirect rates for all years. Upon approval of that invoice or voucher, and upon the Contractor's compliance with all terms of this contract, the Government will promptly pay any balance of allowable costs and that part of the fee (if any) not previously paid.

(2) The Contractor must pay to the Government any refunds, rebates, credits, or other amounts (including interest, if any) accruing to or received by the Contractor or any assignee under this contract, to the extent that those amounts are properly allocable to costs for which the Contractor has been reimbursed by the Government. Reasonable expenses incurred by the Contractor for securing refunds, rebates, credits, or other amounts will be allowable costs if approved by the Contracting Officer. Before final payment under this contract, the Contractor and each assignee whose assignment is in effect at the time of final payment must execute and deliver-

(i) An assignment to the Government, in form and substance satisfactory to the Contracting Officer, of refunds, rebates, credits, or other amounts (including interest, if any) properly allocable to costs for which the Contractor has been reimbursed by the Government under this contract; and

(ii) A release discharging the Government, its officers, agents, and employees from all liabilities, obligations, and claims arising out of or under this contract, except-

(A) Specified claims stated in exact amounts, or in estimated amounts when the exact amounts are not known;

(B) Claims (including reasonable incidental expenses) based upon liabilities of the Contractor to third parties arising out of the performance of this contract; provided, that the claims are not known to the Contractor on the date of the execution of the release, and that the Contractor gives notice of the claims in writing to the Contracting Officer within 6 years following the release date or notice of final payment date, whichever is earlier; and

(C) Claims for reimbursement of costs, including reasonable incidental expenses, incurred by the Contractor under the patent clauses of this contract, excluding, however, any expenses arising from the Contractor's indemnification of the Government against patent liability.

(End of clause)

I.3 3.2.4-16 Ordering (October 2024)

(a) Any supplies and services to be furnished under this contract must be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the contract. Such orders may be issued from contract award through the last day of the option period.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of a conflict between a delivery order or task order and this contract, the contract must control.

(c) If mailed, a delivery order or task order is considered "issued" when the FAA deposits the order in the mail. Orders issued by facsimile, email or other electronic commerce methods are considered "issued" when the FAA sends the order. Orders may be issued orally only if authorized in the contract.

(End of clause)

I.4 3.2.4-17 Order Limitations (October 2019)

(a) Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than \$25,000.00, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) Maximum order. The Contractor is not obligated to honor-

(1) Any order for a single item in excess of \$4,000,000;

(2) Any order for a combination of items in excess of \$8,000,000; or

(3) A series of orders from the same ordering office within 30 days that together call for quantities exceeding the limitation in subparagraph (1) or (2) above.

(c) If this is a requirements contract, the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) above.

(d) Notwithstanding paragraphs (b) and (c) above, the Contractor must honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 30 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

I.5 3.2.4-20 Indefinite Quantity (October 2019)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance must be made only as authorized by orders issued in accordance with the "Ordering" clause. The Contractor must furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the maximum. The Government must order at least the quantity of supplies or services designated in the Schedule as the minimum.

(c) Except for any limitations on quantities in the "Order Limitations" clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period must be completed by the Contractor within the time specified in the order. The contract must govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; provided, that the Contractor must not be required to make any deliveries under this contract after one year following the expiration of the contract.

(End of clause)

3.2.4-34 Option to Extend Services (October 2019)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder must not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within the period specified in the Schedule.

(End of clause)

I.6 3.2.4-35 - Option to Extend the Term of the Contract (July 2021)

(a) The Government may extend the term of this contract by written notice (contract modification) to the Contractor prior to the expiration of the current period of performance provided, that the Government will give the Contractor a preliminary written notice of its intent to extend at least thirty (30) days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract must be considered to include this option provision.

(c) The total duration of this contract, including the exercise of any options under this clause, must not exceed five (5) years.

(End of clause)

I.7 3.2.5-15 Attorney-Client Privilege (October 2024)

((a) During performance of the contract, the Contractor may be required to attend meetings at which FAA employees seek and receive legal advice from FAA attorneys. The FAA intends, and the Contractor agrees, that such advice must be treated as confidential legal advice, that the Contractor must not discuss with or otherwise disclose such legal advice to any person, that such advice must not be included in notes (electronic or otherwise), written reports, or minutes of such meetings, and that such advice must not be redistributed, forwarded or otherwise transmitted. For the purposes of asserting the Attorney-Client privilege with regard to such information, the Contractor and its employees must be considered agents of the FAA.

(b) During performance of this Contract, the Contractor also may encounter, come into possession of, or otherwise become aware of documents or other communications and/or their contents which reflect legal advice from FAA attorneys. The FAA intends, and the Contractor agrees, that such advice must be treated as confidential legal advice, that the Contractor must not discuss with or otherwise disclose such legal advice to any person, that such advice must not be included in notes (electronic or otherwise), written reports, or minutes of such meetings, and that such advice must not be redistributed, forwarded or otherwise transmitted. For the purposes of asserting the Attorney-Client privilege with regard to such information, the Contractor and its employees must be considered agents of the FAA.

(c) Employees of the Contractor may be asked to participate as witnesses in judicial or administrative meetings, litigation, or other proceedings where Contractor employees' participation is necessary. In such proceedings involving third parties to which the Contractor is not a named party, the Contractor must support the FAA by promptly providing to the FAA any documents requested which the Contractor may have in its possession and by making Contractor employees available to assist FAA attorneys. This clause does not preclude the Contractor or the Contractor employees from being represented by Counsel retained by the Contractor or the Contractor employee, provided such representation is at no direct cost to the FAA.

(d) The contractor must consider any and all other communications between attorney and client it encounters, however denominated, as communications that are part of the FAA deliberative process, attorney-client or attorney-work product, all of which are privileged and not subject to disclosure outside the Agency or to the public.

(e) If the Contractor believes it cannot or will not comply with the obligations set forth in this clause, it has an affirmative obligation immediately to notify the Contracting Officer. Any failure by the Contractor to ensure compliance by its employees with this clause will be considered by the FAA to be a material breach of the contract. The obligations set forth in this clause survive the contract.

(End of clause)

I.8 3.3.1-33 System for Award Management (January 2024)

(a) Definitions. As used in this clause

"Registered in the SAM database" means that the Contractor has entered all mandatory information, including the Unique Identity Identifier (UEI) or the Electronic Funds Transfer indicator, into the SAM database.

"System for Award Management (SAM) database" means the primary Government repository for Contractor information required for the conduct of business with the Government.

"Unique Entity Identifier (UEI)" (also known as the Unique Entity ID) means a number or other identifier used to identify a specific commercial, nonprofit, or Government entity. See www.sam.gov for the designated entity for establishing unique entity identifiers.

"Electronic Funds Transfer indicator" means a 4-character suffix to the Unique Entity Identifier. This 4-character suffix may be assigned at the discretion of the business concern to establish additional SAM records for identifying alternative Electronic Funds Transfer (EFT) accounts for the same parent concern.

(b)(1) By submission of an offer, the offeror acknowledges the requirement that a prospective awardee must be registered in the SAM database prior to award, during performance, and through final payment of any contract, basic agreement, basic ordering agreement, or blanket purchasing agreement resulting from this solicitation.

(2) The offeror must enter, in Representations, Certifications and Other Statements of Offerors Section of the solicitation, the UEI or EFT indicator that identifies the offeror's name and address exactly as stated in the offer. The UEI will be used by the Contracting Officer to verify that the offeror is registered in the SAM database.

(c) If the offeror does not have a UEI, it should contact www.sam.gov directly to obtain one.

The offeror should be prepared to provide the following information:

(1) Company legal business name.

(2) Tradestyle, doing business, or other name by which your entity is commonly recognized.

(3) Company Physical Street Address, City, State, and ZIP Code.

(4) Company Mailing Address, City, State and ZIP Code (if different from physical street address).

- (5) Company Telephone Number.
 - (6) Date the company was started.
 - (7) Number of employees at your location.
 - (8) Chief executive officer/key manager.
 - (9) Line of business (industry).
 - (10) Company Headquarters name and address (reporting relationship within your entity).
- (d) If the offeror does not become registered in the SAM database in the time prescribed by the Contracting Officer, the Contracting Officer may proceed to award to the next otherwise successful registered offeror.
- (e) Processing time should be taken into consideration when registering. Offerors who are not registered should consider applying for registration immediately upon receipt of this solicitation.
- (f) The Contractor is responsible for the accuracy and completeness of the data within the SAM database, and for any liability resulting from the Government's reliance on inaccurate or incomplete data. To remain registered in the SAM database after the initial registration, the Contractor is required to review and update on an annual basis from the date of initial registration or subsequent updates its information in the SAM database to ensure it is current, accurate and complete. Updating information in SAM does not alter the terms and conditions of this contract and is not a substitute for a properly executed contractual document. If registered in SAM as a Service-Disabled Veteran-Owned Small Business (SDVOSB), by submission of an offer, the offeror acknowledges that they are certified as an SDVOSB under the Small Business Administration's Veteran Small Business Certification Program (VetCert).
- (g)(1)(i) If a Contractor has legally changed its business name, "doing business as" name, or division name (whichever is shown on the contract), or has transferred the assets used in performing the contract, but has not completed the necessary requirements regarding novation and change-of-name agreements in AMS Procurement Guidance, the Contractor must provide the responsible Contracting Officer a minimum of one business day's written notification of its intention to:
- (A) Change the name in the SAM database;
 - (B) Comply with the requirements of AMS regarding novation and change-of-name agreements; and
 - (C) Agree in writing to the timeline and procedures specified by the responsible Contracting Officer. The Contractor must provide the Contracting Officer with the notification, sufficient documentation to support the legally changed name.

(ii) If the Contractor fails to comply with the requirements of paragraph (g)(1)(i) of this clause, or fails to perform the agreement at paragraph (g)(1)(i)(C) of this clause, and, in the absence of a properly executed novation or change-of-name agreement, the SAM information that shows the Contractor to be other than the Contractor indicated in the contract will be considered to be incorrect information within the meaning of the "Suspension of Payment" paragraph of the electronic funds transfer (EFT) clause of this contract.

(2) The Contractor must not change the name or address for EFT payments or manual payments, as appropriate, in the SAM record to reflect an assignee for the purpose of assignment of claims. Assignees must be separately registered in the SAM database. Information provided to the Contractor's SAM record that indicates payments, including those made by EFT, to an ultimate recipient other than that Contractor will be considered to be incorrect information within the meaning of the "Suspension of payment" paragraph of the EFT clause of this contract.

(h) Offerors and Contractors may obtain information on registration and annual confirmation requirements via the internet at <http://www.sam.gov>.

(End of Clause)

I.9 3.3.1-36 Availability of Funds - Option Periods under a Continuing Resolution (October 2024)

Due to the possibility of the enactment of a continuing resolution in lieu of an annual appropriation, full fiscal year funding may not be available for an entire contract option period. In the event of a continuing resolution, FAA will only be liable for an amount based on the time period specified by the continuing resolution. The amount of funds made available by the continuing resolution will be specified by subsequent modification. If the contractor provides services in excess of the funded amount or beyond the covered period, the contractor does so at its own risk.

(End of Clause)

I.10 3.3.1-40 Electronic Submission of Payment Requests (October 2024)

(a) Definitions. As used in this clause—

(1) “Contract financing” is a contractual authorization for payments to a contractor prior to acceptance of products or services by FAA.

(2) “Payment request” means a bill, voucher, invoice, or request for contract financing payment or invoice payment with associated supporting documentation. The payment request must comply with the requirements identified in this clause and the applicable Payment clause and invoicing requirements included in this contract.

(3) “Electronic form” means an automated system transmitting information electronically according to the accepted electronic data transmission methods and formats identified in

paragraph (c) of this clause. Facsimile, email, and scanned documents are not acceptable electronic forms for submission of payment requests.

(4) “Invoice payment” means a Government disbursement of monies to a contractor under a contract or other authorization for supplies or services accepted by the Government. This includes payments for partial deliveries that have been accepted by the Government, final payments under T&M and labor-hour contracts, and final cost or fee payments where amounts owed have been settled between the Government and the contractor.

(b) Electronic payment requests. Except as provided in paragraph (f) of this clause, the Contractor must submit payment requests in electronic form. Purchases paid with a Government purchase card are considered to be an electronic transaction for purposes of this rule, and therefore no additional electronic invoice submission is required.

(c) The Federal Aviation Administration utilizes the Delphi eInvoicing web-portal for processing invoices. Contractors submitting invoices are required to submit invoices via the Delphi eInvoicing web portal which is accessed and authenticated via www.login.gov

(d) In order to receive payment and in accordance with prompt payment standards, the Contractor must submit a proper invoice. All invoices submitted as attachments in the Delphi eInvoicing web-portal must contain the following:

- (1) Invoice number and invoice date.
- (2) Period of performance covered by invoice.
- (3) Contract number and title.
- (4) Task/Delivery Order number and title (if applicable).
- (5) Amount billed (by CLIN), current and cumulative.
- (6) Total (\$) of billing.
- (7) Cumulative total billed for all contract work to date.
- (8) Name, title, phone number, mailing address, and email address (if available) of person to be contacted in the event of a defective invoice.

If the contract includes allowances for travel, all invoices that include charges pertaining to travel expenses must catalog a breakdown of reimbursable expenses with the appropriate receipts to substantiate the travel expenses.

(e) Payment system registration. Each person accessing the Delphi eInvoicing web-portal will be required to have a unique user Delphi eInvoicing ID and password and be credentialed through login.gov.

(1) Electronic authentication. See www.login.gov for instructions. Click on the following link for instructions on establishing a login.gov account: <https://login.gov/help/creating-an-account/how-do-i-create-an-account-with-logingov/>.

(2) To create a login.gov account, the user will need a valid email address and a working phone number. The user will create a password and then login.gov will reply with an email confirming the email address.

(3) DELPHI registration instructions. New users should request access to Delphi eInvoicing by sending an email to 9-AMC-FAA-iSupplier@faa.gov. Once access is granted, users should navigate to <http://einvoice.esc.gov> to activate the account. Users are required to log in every 45 days to keep it active.

(4) Training on DELPHI. To facilitate use of DELPHI, comprehensive user information is available at <http://einvoice.esc.gov>

(5) Account Management. Contractors must contact the DELPHI Help Desk when their firm's points of contact will no longer be submitting invoices so they can be removed from the system. Instructions for contacting the DELPHI Help D can be found at <http://einvoice.esc.gov>

(f) Waivers: If the Contractor does not believe electronic invoicing can be used if they are awarded this contract, the Contractor must respond accordingly to AMS clause 3.3.1-41 Electronic Invoicing-Representation. Waiver requests must be approved by the FAA and DOT and will be processed expeditiously upon contract award. If the waiver request is not approved, the Contractor must use electronic invoicing consistent with this clause. If the waiver request is approved, conversion to electronic invoicing at a later date may be required. While the waiver is in effect, the current invoicing process must be used per AMS Guidance T3.3.1A.14 and the terms of the contract. The decision regarding a waiver request is not subject to AMS clause 3.9.1-1 Contract Disputes

(End of clause)

I.11 3.6.2-14 Employment Reports on Veterans (April 2022)

(a) Unless the contractor is a State or local government agency, the contractor must report at least annually, as required by the Secretary of Labor, on:

(1) The total number of employees in the contractor's workforce, by job category and hiring location, who are protected veterans (i.e., active duty wartime or campaign badge veterans, Armed Forces service medal veterans, disabled veterans, and recently separated veterans),

(2) The total number of new employees hired during the period covered by the report, and of the total, the number of protected veterans; and

- (3) The maximum number and minimum number of employees of the Contractor or subcontractor at each hiring location during the period covered by the report.
- (b) The above items must be reported by completing the VETS-4212 “Federal Contractor Veterans’ Employment Report” (see “VETS-4212 Federal Contractor Reporting” and “Filing Your VETS-4212 Report” at <http://www.dol.gov/vets/vets4212.htm>).’
- (c) The Contractor must submit VETS-4212 Reports no later than September 30 of each year.
- (d) The employment activity report required by paragraphs (a)(2) and (a)(3) of this clause shall reflect total new hires, and maximum and minimum number of employees, during the most recent 12-month period preceding the ending date selected for the report. Contractors may select an ending date:
- (1) As of the end of any pay period between July 1 and August 31 of the year the report is due; or
 - (2) As of December 31, if the Contractor has prior written approval from the Equal Employment Opportunity Commission to do so for purposes of submitting the Employer Information Report EEO-1 (Standard Form 100).
- (e) The count of veterans reported must be based on data known to the contractor when completing the VETS-4212. The Contractor's knowledge of veterans status may be obtained in a variety of ways, including an invitation to applicants to self-identify (in accordance with 41 CFR 60-300.42), voluntary self-disclosure by employees, or actual knowledge of veteran status by the contractor. This paragraph does not relieve the employer of liability for a determination under 38 U.S.C. 4212.
- (f) Subcontracts. The Contractor must include the terms of this clause in every subcontract or purchase order of \$150,000 or more unless exempted by rules, regulations, or orders of the Secretary of Labor.
- (End of clause)

I.12 3.6.2-41 Employment Eligibility Verification (April 2025)

(a) Definitions:

"Employee assigned to the contract" means an employee who was hired after November 6, 1986, who is directly performing work, in the United States, under a contract that is required to include the Employment Eligibility Verification clause. An employee is not considered to be directly performing work under a contract if the employee—

- (1) Normally performs support work, such as indirect or overhead functions; and
- (2) Does not perform any substantial duties applicable to the contract.

"Subcontract" means any contract entered into by a subcontractor to furnish supplies or services for performance of a prime contract or a subcontract. It includes but is not limited to purchase

orders, and changes and modifications to purchase orders.

"Subcontractor" means any supplier, distributor, vendor, or firm that furnishes supplies or services to or for a prime Contractor or another subcontractor.

"United States", as defined in 8 U.S.C. 1101(a)(38), except as otherwise specifically provided (in this statute) means the 50 States, the District of Columbia, Puerto Rico, Guam, the U.S. Virgin Islands, and the Commonwealth of the Northern Mariana Islands.

(b) Enrollment and verification requirements.

(1) If the Contractor is not enrolled as a Federal Contractor in Department of Homeland Security's (DHS) Employment Eligibility Verification system ("E-Verify") at time of contract award, the Contractor must use E-Verify, located on DHS.gov, and –

- (i) Enroll. Enroll as a Federal Contractor in the E-Verify program within 30 calendar days of contract award;
- (ii) Verify all new employees. Within 90 calendar days of enrollment in the E-Verify program, begin to use E-Verify to initiate verification of employment eligibility of all new hires of the Contractor, who are working in the United States, whether or not assigned to the contract, within 3 business days after the date of hire (but see paragraph (b)(3)); and
- (iii) Verify employees assigned to the contract. For each employee assigned to the contract, initiate verification within 90 calendar days after date of enrollment or within 30 calendar days of the employee's assignment to the contract, whichever date is later (but see paragraph (b)(4)).

(2) If the Contractor is enrolled as a Federal Contractor in E-Verify at time of contract award, the Contractor must use E-Verify to initiate verification of employment eligibility of—

(i) All new employees.

(A) Enrolled 90 calendar days or more. The Contractor must initiate verification of all new hires of the Contractor, who are working in the United States, whether or not assigned to the contract, within 3 business days after the date of hire (but see paragraph (b)(3)); or

(B) Enrolled less than 90 calendar days. Within 90 calendar days after enrollment as a Federal Contractor in E-Verify, the Contractor must initiate verification of all new hires of the Contractor, who are working in the United States, whether or not assigned to the contract, within 3 business days after the date of hire (but see paragraph (b)(3)); or

(ii) Employees assigned to the contract. For each employee assigned to the contract, the Contractor must initiate verification within 90 calendar days after date of contract award or within 30 calendar days after assignment to the contract, whichever date is later (but see paragraph (b)(4)).

(3) If the Contractor is an institution of higher education (as defined at 20 U.S.C. 1001(a)); a State or local government or the government of a Federally recognized Indian tribe; or a surety performing under a takeover agreement entered into with a Federal agency pursuant to a performance bond, the Contractor may choose to verify only employees assigned to the contract, whether existing employees or new hires. The Contractor must follow the applicable verification requirements at paragraph (b)(1) or (b)(2), respectively, except that any requirement for verification of new employees applies only to new employees assigned to the contract.

(4) Option to verify employment eligibility of all employees. The Contractor may elect to verify all existing employees hired after November 6, 1986, rather than just those employees assigned to the contract. The Contractor must initiate verification for each existing employee working in the United States who was hired after November 6, 1986, within 180 calendar days of—

- (i) Enrollment in the E-Verify program; or
- (ii) Notification to E-Verify Operations of the Contractor's decision to exercise this option, using the contact information provided in the E-Verify program Memorandum of Understanding (MOU).

(5) The Contractor must comply, for the period of performance of this contract, with the requirements of the E-Verify program MOU.

- (i) DHS or the Social Security Administration may terminate the Contractor's MOU and deny access to the E-Verify system in accordance with the terms of the MOU. In such case, the Contractor will be referred to a suspension or debarment official by the terminating agency.
- (ii) During the period between termination of the MOU and a decision by the suspension or debarment official whether to suspend or debar, the Contractor is excused from its obligations under paragraph (b) of this clause. If the Contractor is suspended or debarred as a result of the MOU termination, the contractor is not eligible to participate in E-Verify during the period of its suspension or debarment. If the suspension or debarment official determines not to suspend or debar the Contractor, then the Contractor must reenroll in E-Verify.

(c) Individuals previously verified. The Contractor is not required by this clause to perform additional employment verification using E-Verify for any employee—

- (1) Whose employment eligibility was previously verified by the Contractor through the E-Verify program;
- (2) Who has been granted and holds an active U.S. Government security clearance for access to confidential, secret, or top secret information in accordance with the National Industrial Security Program Operating Manual; or
- (3) Who has undergone a completed background investigation and been issued credentials pursuant to Homeland Security Presidential Directive (HSPD)-12, Policy for a Common Identification Standard for Federal Employees and Contractors.

(d) Subcontracts. The Contractor must include the requirements of this clause, including this paragraph (d) (appropriately modified for identification of the parties), in each subcontract that is

for Noncommercial services or construction with a value greater than \$10,000 and includes work that is performed in the United States.

(End of clause)

**I.13 3.8.9-4 Prohibition on Contracting for Hardware, Software, and Services
Developed or Provided by Kaspersky Lab Entities (January 2024)**

(a) Definitions. As used in this clause—

Kaspersky Lab covered article means any hardware, software, or service that—

- (1) Is developed or provided by a Kaspersky Lab covered entity;
- (2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab covered entity; or
- (3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab covered entity.

Kaspersky Lab covered entity means—

- (1) Kaspersky Lab;
- (2) Any successor entity to Kaspersky Lab, including any change in name, e.g. “Kaspersky”;

(3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or

(4) Any entity of which Kaspersky Lab has a majority ownership.

(b) Prohibition. Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits Government use of any Kaspersky Lab covered article. The Contractor is prohibited from—

(1) Providing any Kaspersky Lab covered article that the Government will use; and

(2) Using any Kaspersky Lab covered article in the development of data or deliverables first produced in the performance of the contract.

(c) Reporting requirement.

(1) In the event the Contractor identifies a Kaspersky Lab covered article provided to the Government during contract performance, or the Contractor is notified of such by a subcontractor at any tier or any other source, the Contractor must report this in writing to the Contracting Officer. For indefinite delivery contracts, the Contractor must report this in writing to the Contracting Officer for the indefinite delivery contract and the Contracting Officer(s) for any affected order.

(2) The Contractor must report the following information pursuant to paragraph (c) (1) of this clause:

(i) Within 3 business days from the date of such identification or notification: the contract number; the order number(s), if applicable; supplier name; brand; model number (Original Equipment Manufacturer (OEM) number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the report pursuant to paragraph (c)(1) of this clause: any further available information about mitigation actions undertaken or recommended. In addition, the Contractor must describe the efforts it undertook to prevent use or submission of a Kaspersky Lab covered article, any reasons that led to the use or submission of the Kaspersky Lab covered article, and any additional efforts that will be incorporated to prevent future use or submission of Kaspersky Lab covered articles.

(d) Subcontracts. The Contractor must insert the substance of this clause, including this paragraph (d), in all subcontracts including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

I.14 3.8.9-5 - Prohibition on Using ByteDance Covered Applications Including TikTok (July 2023)

(a) Definitions. As used in this clause-

"Covered Application" means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

"Information technology," as defined in 40 U.S.C. 11101(6)-

(1) Means any equipment, or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a Contractor under a contract with the executive agency that requires the use-

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal Contractor incidental to a Federal contract.

(b) Prohibition. Section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328), the No TikTok on Government Devices Act, and its implementing guidance under Office of Management and Budget (OMB) Memorandum M-23-13, dated February 27, 2023, "No TikTok on Government Devices" Implementation Guidance, collectively prohibit the presence or use of a covered application on executive agency information technology, including certain equipment used by Federal contractors. The Contractor is prohibited from having or using a covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor's employees; however, this prohibition does not apply if the Contracting Officer provides written notification to the Contractor that a waiver has been granted in accordance with AMS Guidance T3.8.9C.3.c.(2).

(c) Subcontracts. The Contractor must insert the substance of this clause, including this paragraph (c), in all subcontracts including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

I.15 3.8.9-7 Federal Acquisition Supply Chain Alert Security Orders- Prohibition

(January 2024)

(a) Definitions. As used in this clause—

Covered article, as defined in 41 U.S.C. 4713(k), means—

- (1) “Information technology,” as defined in 40 U.S.C. 11101, including cloud computing services of all types;
- (2) “Telecommunications equipment” or “telecommunications service,” as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);
- (3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or
- (4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring the removal of covered articles from executive agency information systems or the exclusion of one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201–1.303(d) and (e):

- (1) The Secretary of Homeland Security may issue FASCSA orders applicable to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.
- (2) The Secretary of Defense may issue FASCSA orders applicable to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.
- (3) The Director of National Intelligence (DNI) may issue FASCSA orders applicable to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following—

- (1) The Office of the Director of National Intelligence;
- (2) The Central Intelligence Agency;
- (3) The National Security Agency;

- (4) The Defense Intelligence Agency;
- (5) The National Geospatial-Intelligence Agency;
- (6) The National Reconnaissance Office;
- (7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;
- (8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;
- (9) The Bureau of Intelligence and Research of the Department of State;
- (10) The Office of Intelligence and Analysis of the Department of the Treasury;
- (11) The Office of Intelligence and Analysis of the Department of Homeland Security; or
- (12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

- (1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or
- (2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Reasonable Inquiry means an inquiry designed to uncover any information in the entity's possession about the identity of any covered articles, or any products or services produced or provided by a source. This applies when the covered article or the source is subject to an applicable FASCSA order. A reasonable inquiry excludes the need to include an internal or third-party audit.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

(b) Prohibition.

(1) Unless an applicable waiver has been issued by the issuing official, Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by any applicable FASCSA orders identified by the checkbox(es) in this paragraph (b)(1).

[The Contracting Officer must select either “yes” or “no” for each of the following types of FASCSA orders:]

Yes ☒ No ☐ DHS FASCSA orders

Yes ☐ No ☒ DoD FASCSA orders

Yes ☐ No ☒ DNI FASCSA orders

(2) The Contractor must search for applicable FASCSA orders of the type identified in paragraph (b)(1) of this clause in the System for Award Management (SAM). Issued FASCSA Orders may be identified by selecting the “View FASCSA Orders” button from the SAM homepage (<https://www.sam.gov>) and viewing or downloading FASCSA orders from the Supply Chain Security Orders webpage.

(3) The FAA may identify in the SIR additional FASCSA orders that are not in SAM, which are effective and apply to the SIR and resultant contract.

(4) A FASCSA order issued after the publication date of the SIR applies to this contract only if added by an amendment to the SIR or by modification to the contract. However, see paragraph (c) of this clause.

(5) Contractor request for waivers.

(i) Required disclosures. If the contractor wishes to ask for a waiver of the requirements of an existing order identified in a SIR or contract or for a

waiver of the requirements of a new FASCSA order being applied through modification, then the Contractor must disclose the following:

(A) Name of the product or service provided to the Government;

(B) Name of the covered article or source subject to a FASCSA order;

(C) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied or supplies the covered article or the product or service to the Offeror;

(D) Brand;

(E) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(F) Item Description;

(G) Reason why the applicable covered article or the product or service is being provided or used;

(ii) FAA review of disclosures. The Contracting Officer will review disclosures provided in paragraph (b)(5)(i) to determine if any waiver is warranted. A Contracting Officer may choose not to pursue a waiver for covered articles or sources otherwise covered by a FASCSA order and to instead pursue other appropriate action.

(c) Notice and reporting requirement.

(1) During contract performance, the Contractor is required to:

(i) Comply with all FASCSA orders identified under paragraph (b) of this clause; and

(ii) Review SAM.gov at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (b) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor must conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance.

(3) If the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a covered source was provided to the Government or used during contract performance and is subject to a FASCSA order(s) identified in paragraph (b) of this clause, or a new FASCSA order identified in paragraph (c)(2) of this clause, the Contractor must submit a report to the Contracting Officer. For indefinite delivery contracts, the Contractor must report to both the Contracting Officer for

the indefinite delivery contract and all the respective Contracting Officer(s) of any other affected orders.

(4) The Contractor must report the following information for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order, pursuant to paragraph (c) of this clause:

(i) Within 3 business days from the date of such identification or notification:

(A) Contract number;

(B) Order number(s), if applicable;

(C) Name of the product or service provided to the Government or used during performance of the contract;

(D) Name of the covered article or source subject to a FASCSA order;

(E) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Contractor;

(F) Brand;

(G) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(H) Item description; and

(I) Any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the information in paragraph (c)(4)(i) of this clause:

(A) Any further available information about mitigation actions undertaken or recommended.

(B) In addition, the Contractor must describe the efforts it undertook to prevent submission or use of the covered article or the product or service

produced or provided by a source subject to an applicable FASCSA order, and any additional efforts that will be incorporated to prevent future submission or use of the covered article or the product or service produced or provided by a source that is subject to an applicable FASCSA order.

(d) Removal. Upon notification from the contracting officer, during the performance of the contract, the Contractor must promptly make any necessary changes or modifications to remove

any covered article or any product or service produced or provided by a source that is subject to an applicable Governmentwide FASCSA order.

(e) Subcontracts.

(1) The Contractor must insert the substance of this clause, including this paragraph (e) and excluding paragraph (c)(1) of this clause, in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products and commercial services.

(2) The Government may identify in the SIR additional FASCSA orders that are not in SAM, which are effective and apply to the contract and any subcontracts and other contractual instruments under the contract. The Contractor or higher-tier subcontractor must notify their subcontractors, and suppliers under other contractual instruments, that the FASCSA orders in the SIR that are not in SAM apply to the contract and all subcontracts.

(End of Clause)

I.16 3.10.1-26 Contractor Performance Assessment Reporting System (July 2023)

(a) The Federal Aviation Administration (FAA) will submit an electronic record of contractor performance on this contract in the Contractor Performance Assessment Reporting System (CPARS) at www.cpars.gov. An interim, final, or an addendum past performance evaluation (as applicable) will be conducted on this contract in order to record contractor performance.

(b) The past performance evaluation process is a paperless process using CPARS. CPARS is a web-based system that allows for electronic processing of the performance evaluation report. All completed reports are accessible in CPARS for Government use in evaluating past performance as part of a source selection action.

(c) The Contractor must furnish the Contracting Officer with the name, position title, phone number, and email address for each person(s) designated to have access to past performance evaluation(s) for this contract no later than 30 days after award.

(d) The designated Contractor Representative(s) will receive an automatically generated email with detailed login instructions. Additional details on CPARS, including systems requirements, and training information for CPARS, are available on the CPARS website, www.cpars.gov. The CPARS User Manual and registration for On-Line Training for Contractor Representatives are also available through the above website.

(e) The designated Contractor Representative(s) will have the ability to provide comments in the Contractor portion of the report and state whether the Contractor agrees or disagrees with the evaluation, before returning the report to the FAA Assessing Official (AO). The assessment report information must at all times be protected as source selection sensitive information not releasable to the public.

(f) Within 60 days after the end of a performance period, the FAA AO for the contract will complete an interim, final, or an addendum (as applicable) past performance evaluation. The report will be accessible for comment by the Contractor Representative(s) through the CPARS website. Comments are limited to the space provided in CPARS and comments must focus on objective facts in the AO's rating, narrative, and the contractor's performance of the contract. In addition to the ratings and supporting narratives, Contractor Representative(s) should ensure all information in the evaluation is accurate, as it includes key fields that may be used by the Government to identify the contractor in future source selection actions. The contractor can acknowledge receipt of the evaluation absent any comments. However, the contractor will not be able to sign and submit the evaluation back to the Government without a statement in the Contractor Comments section. Therefore, the contractor can indicate "No comment" in combination with signing and dating the form. If the contractor does not sign and submit the CPARS assessment within 60 days after receipt of the CPARS assessment, it will automatically be returned to the Government and will be annotated as follows, "The report was delivered/received by the contractor on (date). The contractor neither signed nor offered comment in response to this assessment."

(g) The following guidelines apply concerning contractor's use of the past performance evaluation:

(1) Protect the evaluation as "source selection information."

(2) Strictly control access to the evaluation within the contractor's organization, and ensure the evaluation is never released to persons or entities outside of the organization's control.

(3) Prohibit the use of or reference to evaluation data for advertising, promotional material, pre-award surveys, responsibility determinations, production readiness reviews, or other similar purposes.

(h) If the contractor wants to discuss a past performance evaluation, requests must be submitted in writing to the AO no later than seven days following the date the FAA submits an evaluation to CPARS.

(i) If the parties cannot resolve any disagreement in the content of the CPARS evaluation, the original evaluation and the contractor's comments will be referred to the Reviewing Official (RO). The RO will make a final determination on the performance evaluation and include the contractor's comments with its finalized report.

(j) The completed and finalized past performance assessment report will be accessible in CPARS and available for Government use in support of any future source selection actions.

(End of clause)

I.17 3.13-16 Records Management (October 2023)

(a) Definitions.

Federal record as defined in 44 U.S.C. § 3301, means all recorded information, regardless of form or characteristics, made or received by a Federal agency under Federal law or in connection with the transaction of public business and preserved or appropriate for preservation by that agency or its legitimate successor as evidence of the organization, functions, policies, decisions, procedures, operations, or other activities of the United States Government or because of the informational value of data in them. The term Federal record:

- (1) Includes all FAA records.
- (2) Does not include personal materials.
- (3) Applies to records created, received, or maintained by Contractors pursuant to a FAA contract.
- (4) May include deliverables and documentation associated with deliverables.

(b) Requirements.

(1) Compliance. The contractor must comply with all applicable records management laws and regulations, as well as National Archives and Records Administration (NARA) records policies, including but not limited to the Federal Records Act (44 U.S.C. chapters 21, 29, 31, 33), NARA regulations at 36 CFR Chapter XII Subchapter B, and those policies associated with the safeguarding of records covered by Privacy Act of 1974 (5 U.S.C. 552a), to the extent that the Privacy Act applies to any records maintained by the Contractor. These policies include the preservation of all Federal records, regardless of form or characteristics, mode of transmission, or state of completion.

(2) Applicability. All data created for Government use and delivered to, or falling under, the legal control of the Government, are Federal records subject to the provisions of 44 U.S.C. chapters 21, 29, 31, and 33. Such Federal records must be managed and scheduled for disposition only as permitted by the Federal Records Act, relevant statute or regulation, and FAA Order 1350.14 Records Management” at https://www.faa.gov/documentLibrary/media/Order/FAA_1350.14B.pdf.

(3) Records maintenance. While in Contractor’s custody, the Contractor is responsible for preventing the alienation or unauthorized destruction of FAA records, including all forms of mutilation. Records may not be removed from the legal custody of FAA or destroyed except in accordance with the provisions of the agency records schedules and with the written concurrence of the FAA Agency Records Officer (ARO) (or the ARO’s designate) and Contracting Officer, as appropriate. Willful and unlawful destruction, damage or alienation of Federal records is subject to the fines and penalties imposed by 18 U.S.C. 2701. In the event of any unlawful or accidental removal, defacing, alteration, or destruction of records, the Contractor must report the event to the Contracting Officer in accordance with 36 CFR 1230, Unlawful or Accidental Removal, Defacing, Alteration, or Destruction of Records, for reporting to NARA by FAA Records Management. Electronic records and associated metadata must be accompanied by sufficient technical documentation to permit understanding and use of the records and data.

(4) Unauthorized disclosure. The Contractor must notify the Contracting Officer within 2 (two) hours of discovery of any inadvertent or unauthorized disclosures of information, data,

documentary materials, records or equipment. Disclosure of non-public information is limited to authorized personnel with a need-to-know as described in the contract. The Contractor must ensure that the appropriate personnel, administrative, technical, and physical safeguards are established to ensure the security and confidentiality of this information, data, documentary material, records and/or equipment is properly protected. The Contractor must not remove material from Government facilities or systems, or facilities or systems operated or maintained on the Government's behalf, without the express written permission of the FAA ARO (or the ARO's designate) and the Contracting Officer. Destruction of records is expressly prohibited unless in accordance with the contract.

(c) Records management contracts – where the contractor is required to design, develop, and/or operate a system of records, the following additional requirements apply:

During the contract, the FAA ARO (or ARO's designate) has the right to inspect where the records are stored (digitally or paper records) in order to ensure they are properly protected from the elements and/or loss. This inspection must be coordinated through the Contracting Officer or the Contracting Officer's Representative. The contractor must be provided 30 calendar days' notice of such inspections. This clause may be tailored to provide for a different notice period. Additional details regarding such inspections consistent with this clause may be specified in the Statement of Work.

For contracts where the contractor is responsible for managing FAA records, when the records are no longer required or at the completion of the contract, the records must be returned to FAA control. Items returned to the FAA must be hand carried, mailed, or securely electronically transmitted to the Contracting Officer or address indicated in the contract.

(d) Non-public information. The Contractor must not create or maintain any records containing any non-public FAA information that are not specifically tied to or authorized by the contract.

(e) Ownership. Consistent with all applicable data rights clauses in this contract, the FAA is the sole owner of the rights to all data and records produced as part of this contract. All deliverables under the contract are the property of the U.S. Government for which FAA will have unlimited rights to use, dispose of, or disclose such data contained therein as it determines to be in the public interest. Any Contractor rights in the data or deliverables must be identified as required by applicable data rights clauses in this contract.

(f) Notification of third party access requests. The Contractor must notify the Contracting Officer promptly of any requests from a third party for access to Federal records, including any warrants, seizures, or subpoenas it receives, including those from another Federal, State, or local agency. The Contractor must cooperate with the Contracting Officer to take all measures to protect Federal records, from any unauthorized disclosure.

(g) Training. All Contractor employees assigned to this contract who create, work with, or otherwise handle records are required to take FAA-provided records management training upon starting under the contract and annually thereafter as per the FAA Electronic Learning Management System (eLMS). If the contractor does not have access to eLMS, the contractor is to contact the Contracting Officer or Contracting Officer's Representative (COR) who will advise the ARO who will in turn make arrangements to ensure the contractor has access. The Contractor is responsible for confirming to the Contracting Officer in an annual report due by September 30 of each year under the contract that training, including initial training and annual refresher training, has been completed in accordance with agency policies. This annual report must list the employee names and dates of initial or annual refresher training.

(h) Agency Records Officer (ARO) – regarding clause provisions above that cite the ARO or designate, information as to the name of the ARO or the ARO designate for particular locations outside FAA Headquarters may be obtained from the FAA Records and Information Management Team (RIM) at 9-faa-records-management-program@faa.gov.

(i) Subcontractor flowdown requirements. The Contractor must incorporate the substance of this clause, its terms and requirements including this paragraph (i), in all subcontracts under this contract.

(End of clause)

3.14-1 Security Requirements - Classified Contracts (July 2021)

(a) This clause applies to the extent that this contract involves access to information that is classified as "Confidential," "Secret," or "Top Secret."

(b) The Contractor must comply with (1) the Security Agreement (DD Form 441) including the National Industrial Security Program Operating Manual (32 CFR 117); (2) any revisions to that manual, notice of which has been furnished to the Contractor, and (3) the Contract Security Classification Specification (DD Form 254) issued to the contractor. If the Contractor has access to classified information at an FAA owned or FAA leased facility, it must comply with the security requirements of the FAA.

(c) If, subsequent to the date of this contract, the security classification or security requirements under this contract are changed by the Government and if the changes cause an increase or decrease in security costs or otherwise affect any other term or condition of this contract, this change will be addressed under the applicable Changes clause of this contract.

(d) The Contractor agrees to insert terms that conform substantially to the language of this clause, including this paragraph d) but excluding any reference to the "Changes" clause of this contract, in all subcontracts under this contract that involve access to classified information.

(End of clause)

I.18 3.14-2 Contractor Personnel Suitability Requirements (April 2024)

CLAUSE:

1. No contractor employee will be allowed unescorted access to any FAA facility; access to FAA classified information; access to FAA Sensitive Unclassified Information (SUI); or access to FAA systems or resources unless they have been authorized by the FAA Office of Personnel Security (AXP).

2. Definitions.

a. “Contractor Employee” means a person employed as or by a contractor, subcontractor, or consultant supporting FAA or any non-FAA person who performs work or services for FAA within FAA facilities.

b. Sensitive Unclassified Information (SUI) means unclassified information, in any form including print, electronic, visual, or aural forms, that must be protected from uncontrolled release to persons outside the FAA and indiscriminate dissemination within the FAA. It includes aviation security, homeland security, and protected critical infrastructure information. SUI may include information that may qualify for withholding from the public under the Freedom of Information Act (FOIA).

3. Consistent with FAA Order 1600.1F, AXP must approve designated risk levels for the positions under the contract, to be determined by the FAA Operating Office (the organization with the requirement) in coordination with the COR, using the OPM Position Designation Automated Tool (PD Tool).

4. For all contractor employees requiring access to FAA facilities, classified information, sensitive unclassified information, systems, or resources, the contractor must submit to its responsible AXP office and CO/COR a point of contact (POC) who will be responsible for entering all contractor applicant data, to include subcontractor data, into the Vendor Applicant Portal (VAP) system (vap.faa.gov) or successor system, for security processing. The contractor must not enter contractor employees in VAP unless they have a legitimate need for access to FAA facilities, classified information, sensitive unclassified information and/or systems according to the terms of the contract. Contractor employees who will not require the aforementioned types of access or who would be under escort of other badged personnel are not required to be entered in VAP.

5. If an applicant has had a previous US Government conducted background investigation, which meets the investigative requirements for the position and meets established reciprocity guidelines, it will be accepted by the FAA. The FAA reserves the right to conduct further investigations, including requesting additional information from the applicant, if necessary.

6. If no previous investigation exists, or if the previous investigation does not meet investigative requirements for the position, AXP will:

- a. Send the applicant an e-mail with instructions for completing investigative requirements.
- b. Instruct the applicant how to enter and complete a background investigation questionnaire through the National Background Investigation System (NBIS) electronic application (eAPP) or successor system;
- c. Provide where to upload, or send/fax applicable forms; and
- d. Provide instructions regarding fingerprinting. (any fees associated with obtaining fingerprints are not the responsibility of the FAA)

The contractor employee must complete the investigative requirements and submit required material within 15-calendar days of receiving the e-mail from AXP. If items must be submitted outside of the eApp system, the contractor must submit the required information, referencing the contract number, to the AXP POC noted in the instruction email.

7. No contractor employee identified as requiring a background investigation under the contract will work in any position unless AXP has authorized them to begin work. The authorization will be in the form of an Interim or Final Suitability email notification from AXP to the VAP POC and CO.

8. No contractor employees will be issued a FAA Personal Identity Verification (PIV) card, or other FAA-issued ID card, unless they have been granted an Interim or Final suitability from AXP.

9. The contractor VAP POC must inform the CO/COR and submit a VAP removal record in VAP within twenty-four (24) hours after any contractor employee resigns, is terminated, is transferred, or is otherwise removed from the contract. If the FAA issued the contractor employee a PIV card, or other ID card, the contractor must collect the card within twenty-four hours and return it to AXP no later than five business days of the employee's termination or transfer.

10. The CO will provide notice to the contractor within 24 hours after receipt of a determination by AXP (or in the case of classified information in accordance with FAA Order 1600.2, AXF) that the contractor or its employee has not complied with security-related contract requirements or security-related FAA Orders, or if a contractor employee's conduct is objectionable or contrary to the public interest, or inconsistent with the best interest of national security. The notice will instruct the contractor to remove its employee's access to FAA premises or networks, or otherwise remedy the contractor's performance. The FAA Facility Manager has authority to remove a contractor employee from FAA facility premises when the Facility Manager determines a contractor employee's conduct is objectionable or contrary to the public interest. The Facility Manager must notify the CO within 24-hours of such removal.

11. The contractor must immediately comply with the CO's direction to remedy its security performance at the contractor's expense, including removing the employee from FAA premises

and networks. If the contractor employee is working under an interim suitability authorization, the contractor must take appropriate action, including the removal of the contractor employee from working on the FAA contract, at the contractor's expense. Once the contractor has taken action to remedy its security performance, the contractor must report the action via the VAP within the timeframe prescribed in paragraph 8 of this clause.

12. After coordination with AXP, the CO may require contractor employees to submit any other security information deemed reasonably necessary to protect the interests of the FAA. This includes submitting to additional fingerprinting, responding to letters of inquiry, and background reinvestigations required under Federal Investigative Standards. In this event, the contractor must provide, or cause each of its employees to provide, such security information to AXP. Failure to cooperate with security processing will result in an unfavorable suitability determination.

13. The contractor must retrieve a current roster report through VAP on a quarterly basis to ensure the roster is accurate, and immediately correct any discrepancies with the responsible AXP office. The contractor is responsible for the accuracy of its subcontractors' rosters as well.

14. Contractor employees must take the following training courses, as applicable.

a. All contractor employees subject to the requirements of this clause must take the FAA Security Awareness Virtual Initiative (SAVI) training within 90 days of reporting to work and annually thereafter. This training is available on the FAA's Electronic Learning Management System (eLMS). Contractors without access to eLMS please see <https://my.faa.gov/org/linebusiness/ash/programs/savi.html> for instructions.

b. All contractor employees that will access the FAA network must complete the FAA's Information Security and Privacy Awareness Training course in eLMS (a distinct course from SAVI) and read and sign the FAA Rules of Behavior, upon initial connection to the FAA and annually thereafter. Contractor employees who do not complete the mandatory information security and privacy awareness training course and accept the FAA Rules of Behavior within the required timeframes may have their access to FAA systems, networks, or information suspended or terminated.

c. All contractor personnel that connect to the FAA network must complete all other mandatory and role-based training as required by FAA Order 1370.121B.

15. The contractor must contact the CO or COR, and AXP within one business day in the event an employee (who has been cleared for FAA access by AXP) is arrested (i.e., taken into custody by law enforcement for any offenses, other than minor traffic offenses) or is involved in theft of government property or the contractor becomes aware of any information that may raise a question about the suitability of a contractor employee.

16. Failure to submit information required by this clause within the time required may be determined by the CO a material breach of the contract and may result in suspension or revoked access for the contractor employee.

17. If subsequent to the effective date of this contract, the security classification or security requirements under this contract are changed by the Government and if the changes cause an

increase or decrease in direct contract costs or otherwise affect any other term or condition of this contract, the contract will be subject to an equitable adjustment.

18. The contractor agrees to insert terms that conform substantially to the language of this clause, excluding any reference to the Changes clause of this contract, in all subcontracts under this contract that involve access and where the exceptions under FAA Order 1600.1F do not apply.

(End of Clause)

I.19 3.14-3 Foreign Nationals as Contractor Employees (July 2023)

(a) Definition. "Foreign National" is any citizen or national of a country other than the United States who has not immigrated to the United States and is not a Legal Permanent Resident (LPR) of the United States.

(b) Each contractor or subcontractor employee under this contract having access to FAA facilities, sensitive information, or resources must be a citizen of the United States, or a foreign national who has been lawfully admitted for permanent residence as evidenced by a Permanent Resident Card I-551, or a foreign national who presents other evidence from the U.S. Citizenship and Immigration Service that employment must not affect his/her immigration status.

(c) Foreign Nationals proposed under this contract must meet the following conditions in accordance with FAA Order 1600.1F, chapter 8, paragraph 10:

(1) Must have resided within the United States for a minimum of the last three (3) years unless a waiver of this requirement is requested and approved in accordance with the requirements stated in FAA Order 1600.1F, chapter 8, paragraph 10;

(2) A risk or sensitivity level designation can be made for the position; and

(3) The appropriate security-related background investigation can be adequately conducted, as determined by the Office of Security and Hazardous Materials Safety (ASH) Office of Personnel Security (AXP).

(d) Foreign Nationals proposed under this contract must meet the following additional conditions:

(1) Provide their date of birth, place of birth, country of citizenship, and any supporting residency status documentation in order to begin the background investigation process in accordance with FAA Order 1600.1F, Personnel Security Program; and,

(2) Successfully pass an export control review as outlined in FAA Order 1240.13 FAA Export Control Compliance.

(End of Clause)

I.20 3.14-4 Access to FAA Facilities, Systems, Government Property, and Sensitive Information (April 2024)

1. Terms defined in the AMS Clause 3.14-2 “Contractor Personnel Suitability Requirements” have the same meaning in this clause.
2. It may become necessary for the Government to grant access to FAA systems or issue Government property, to include FAA issued ID cards, or sensitive unclassified information (SUI), to contractor employees. The FAA shall have the authority to restrict or deny unescorted access into FAA facilities to anyone. The FAA shall also have the authority to determine the number of PIV cards to be issued to contractor employees, based on operational necessity. Individuals requiring non-routine access for maintenance purposes shall be escorted by FAA personnel and be issued appropriate FAA visitor badges. Prior to or upon completion or termination of the work under the contract, the contractor must return all such Government property and SUI to the Contracting Officer's Representative (COR).
3. Improper use, possession or alteration of Government property is subject to penalties under Title 18, USC 499, 506, 701, and 1030.
4. In the event such Government property is lost, stolen, or not returned, the contractor understands and agrees that the Government may, in addition to any other withholding provision of the contract, withhold the value of the asset for each item of Government property not returned. If the Government property, to include FAA issued ID cards, or SUI is not returned within 30-calendar-days from the date the withholding action was initiated, any amount so withheld is forfeited by the contractor. Any portable devices that are lost, stolen, or not returned must be reported by the contractor within one (1) hour to the FAA Security Operations Center (phone 1(866)-580-1852(Option 1) or email 9-AWA-SOC@faa.gov).
5. Access to aircraft ramp/hangar areas is authorized only to those persons displaying a flight line identification card and for vehicles, with a current ramp permit issued pursuant to Title 49, Part 1542, Code of Federal Regulations.
6. The Government retains the right to inspect inventory, or audit Government property or sensitive information issued to the contractor in connection with the contract and do so at the convenience of the Government. Any items not accounted for, to the satisfaction of the Government, will be assumed to be lost and the provisions of section (3) of this clause apply.
7. The issuance of Government property to include SUI must be approved by the COR who will require the contractor employee to sign a receipt for each item. Lost or stolen Government property or SUI must immediately be reported concurrently to the Contracting Officer (CO), COR, and the FAA SOC at the telephone number and email address listed under section (3) above.
8. Each contractor employee, during all times of on-site performance at an FAA facility, must

prominently display his/her current and valid FAA Personal Identity Verification (PIV) card, or other FAA issued ID card, on the front portion of his/her body between the neck and waist. Each FAA ID cardholder must not affix pins, stickers, or other item to the card.

9. Prior to any contractor employee obtaining a FAA ID Card or other government property, IAW FAA Order 1600.78 the contractor is required to enter data for each employee into the VAP (Vendor Applicant Portal) as described in AMS clause 3.14-2, Contractor Personnel Suitability Requirements.

10. The Office of Personnel Security (AXP) will determine whether a favorable interim and/or final suitability determination can be granted to:

- a. Exercise reciprocity when applicable.
- b. Initiate the contractor applicant into the National Background Investigation System (NBIS) electronic application (eAPP) or subsequent system, so that the applicant can complete the investigative forms.

Interim suitability determination (ISD) cannot be granted until all background investigation forms are completed and fingerprints and signature pages are submitted to AXP.

Authorization for the contractor employee to begin work on the FAA contract will be an Interim or Final Suitability notification from AXP.

11. To apply for a FAA PIV card, IAW FAA Order 1600.78, the contractor employee must submit an identification card application (DOT 1681) using the automated system located at <https://idms.faa.gov/1681>. The application must be approved by the CO or COR. The contractor employee will be notified when the identification card application has been approved and is ready for processing by the FAA Identification Card issuer (e.g., PIV Administrator). The contractor must contact AXP to obtain the procedures for obtaining their FAA PIV Card.

12. Off-Boarding. The contractor is responsible for ensuring final off-boarding is accomplished for all departing contractor employees. This includes termination, resignation, retirement, death, change of employment status (i.e., transferring from a contractor to a FAA employee), transfer to another FAA contract, and (with CO approval) extended leave of absence. The contractor may appoint an off-boarding coordinator to oversee the off-boarding process.

- a. For each departing employee having access to FAA facilities and/or Information Technology (IT) systems, the contractor must submit a completely filled out and signed "FAA Contractor Employee Off-Boarding Form" (located in FAA Procurement Forms) to the CO no later than thirty (30) calendar days after the employee's departure. The contractor must ensure that the Form confirms that all applicable Government property (including FAA-issued ID cards) and sensitive information (including Classified National Security Information (CNSI)) has been collected and access to all FAA assets has been terminated.

- b. When the contractor is not located or within local driving distance of the responsible AXP office, the Contractor must collect the Personal Identity Verification (PIV) Card or other FAA-issued ID card, and any other tokens and provide to the CO or COR within one (1) business day of receiving the card/tokens from the departing employee.

c. In the event the contractor employee departs without completing the Form, the contractor is responsible for completing and submitting the Form on the employee's behalf. If the departing contractor employee served as the Property Custodian for the FAA contract, then the contractor must designate a new Property Custodian and ensure accountability of all property under the contract, or within fourteen calendar days with the CO's approval, provide to the CO the results of the associated inventory/property accountability.

d. The designated VAP POC must submit a VAP removal record for the departing employee within twenty-four (24) hours.

e. The contractor must also comply with any local Employee Off-Boarding Forms in use at the applicable FAA Facility.

13. All contractor employees with access to FAA systems must have a FAA-issued Personal Identity Verification (PIV) card and must use the PIV card to authenticate to the FAA system.

14. The FAA has established cybersecurity and privacy policies, procedures, and processes to protect the Confidentiality, Integrity, and Availability of its networks, systems, services, information, and data.

a. All contractor employees that access FAA systems must comply with all FAA cybersecurity and privacy policies, procedures, and processes, including Presidential Directives, Executive Orders, OMB Memorandum DHS CISA Binding Order Directives, and other Federal policies.

b. A copy of FAA information security and privacy orders, including FAA Order 1370.121B FAA Information Security and Privacy: Policy is found at the following link https://employees.faa.gov/tools_resources/orders_notices. (Internal FAA Link only)

15. The contractor must insert this clause in all subcontracts under the contract.

(End of Clause)

I.21 3.14-9 Information Security Continuous Monitoring (ISCM) and Forensics on Contractor Systems (July 2022)

(a) Definitions

"High Value Assets (HVAs)" are those assets, Federal information systems, information, and data for which an unauthorized access, use, disclosure, disruption, modification, or destruction could cause a significant impact to the United States' national security interests, foreign relations, economy, or to the public confidence, civil liberties, or public health and safety of the American people. HVAs may contain sensitive controls, instructions, data used in critical Federal operations, or unique collections of data (by size or content), or support an agency's mission essential functions, making them of specific value to criminal, politically motivated, or state-sponsored actors for either direct exploitation or to cause a loss of confidence in the U.S. Government.

"Indicator of Compromise" is an artifact observed on a network or operating system that with high confidence indicates a computer intrusion.

"Information Security Continuous Monitoring (ISCM)" is maintaining ongoing awareness of information security, vulnerabilities, and threats to support organizational risk management decisions.

(b) In support of the Information Security Continuous Monitoring (ISCM) objective to protect High Value Assets (HVAs) and information, the FAA has acquired security tools in order to conduct Indicator of Compromise (IOC) scans within the mandated timeframe. The Contractor must permit the FAA to install a separate ISCM server or agents on systems the FAA considers to be HVAs.

(c) The Contractor must install FAA-provided solution patches as directed by the FAA and provide evidence of implementation (e.g. scan results, reports of systems, configuration file listings, or other artifacts).

(d) The Contractor must support efforts to allow for the IOC scanning mandate referred to above. This may include installation of tool servers and/or agents within each system's environment and contractor-supported or supplied assets. The FAA will provide the contractor with a tool server(s) that must be reachable from a FAA-defined network path. The tool server(s) must be properly configured to reach all IT systems under this contract. The FAA will configure the ISCM devices and agents unless specified in the contract that the contractor is responsible for configuring the ISCM devices and agents. If specified in the contract, the FAA will provide the contractor with the required configuration settings and the contractor will configure the ISCM devices and agents per the provided FAA requirements and settings. The Contractor must provide credentialed accounts on the contractor systems to the FAA for IOC scans and tool interrogation. Accounts for the IOC scans must follow FAA Order 1370.121B FAA Information Security and Privacy: Policy at https://www.faa.gov/regulations_policies/orders_notices/ for account creation, least privileges, password strength, expiration, and other requirements.

(e) The Contractor must install (or permit the FAA to install) forensic software servlet/agents on supported Operating Systems on all relevant FAA contract supported computer devices and environments. The contractor must test and upgrade the servlet/agents as directed by the FAA.

(f) The FAA will provide a forensic software server that the contractor must install (or permit the FAA to install). The server must be reachable from a FAA-defined network path and must be primarily used for authentication and proxy functions. The Contractor must ensure that servers are properly configured so the FAA can reach all assets with installed agents.

(g) The Contractor must support FAA incident response and forensic investigation efforts. This includes authorization to connect FAA-authorized equipment where the forensic software servlet/agents are reachable to perform analysis.

(h) Upon discovery of a cybersecurity or privacy incident that affects a contractor information system or FAA information residing on the Contractor system, the Contractor must report the

incident as soon as it is discovered to the FAA incident response POC listed in the contract as per the incident reporting requirements, or failing that, to the COR. Except as noted in section (i) below, the Contractor must:

- (1) Preserve and protect images and relevant monitoring/packet capture data of all known affected information systems and allow FAA to perform forensic analysis;
 - (2) Provide access to additional information or equipment that is necessary to conduct a forensic analysis;
 - (3) Provide damage assessment of the incident to the FAA. If FAA elects to conduct the damage assessment or perform the forensic analysis, the contractor agrees to cooperate with the FAA forensic team;
 - (4) Provide updated POC information to the FAA in writing within 2 business days of the change in the Contractor POC or the contact information changes; and
 - (5) Provide equivalent replacement or substitute hardware, software, or service that is affected by the incident.
- (i) For contracts where the contractor provides services to the FAA using shared infrastructure service systems where the contractor also uses such systems to provide services to multiple clients, the Contractor must provide to the FAA incident response POC or COR:
- (1) Raw (not sanitized) log files;
 - (2) Applicable FAA incident data; and
 - (3) Vulnerability and security scan reports of standard scans.
- (j) FAA will protect properly marked proprietary information submitted by the contractor, but may release it to other entities as needed for incident response (e.g., to affected entities; to entities assisting in diagnosis, detection and remediation of the incident; to Government counterintelligence or law enforcement investigations; and to relevant support services contractors in support of the tasks listed above).
- (k) The contractor must insert this clause in all applicable subcontracts under the contract.
- (l) Except as noted in section (i) above, the monitoring and forensics requirements of this clause do not apply to contracts where the contractor provides services to the FAA using shared infrastructure service systems where the contractor also uses such systems to provide services to multiple clients.

(End of clause)

I.22 3.14.10 Privacy Act Notification (October 2018)

The Contractor will be required to design, develop, and/or operate a system of records on individuals, to accomplish an agency function subject to the Privacy Act of 1974, Public Law 93-579, December 31, 1974 (5 U.S.C. 552a) and applicable agency regulations (49 CFR Part 10). Violation of the Act may involve the imposition of criminal penalties.(End of clause)

(End of clause)

I.23 3.14-11 Privacy Act (Oct 2018)

(a) The Contractor agrees to--(1) Comply with the Privacy Act of 1974 (the Act) and the agency rules and regulations (49 CFR Part 10) issued under the Act in the design, development, and/or operation of any system of records on individuals to accomplish an agency function when the contract specifically identifies-- (i) The systems of records; and (ii)

The design, development, and/or operation work that the contractor is to perform; (2) Include the Privacy Act notification contained in this contract in every solicitation and resulting subcontract and in every subcontract awarded without a solicitation, when the work statement in the proposed subcontract requires the redesign, development, and/or operation of a system of records on individuals that is subject to the Act; and (3) Include this clause, including this subparagraph (3), in all subcontracts awarded under this contract which requires the design, development, and/or operation of such a system of records.

(b) In the event of violations of the Act, a civil action may be brought against the agency involved when the violation concerns the design, development, and/or operation of a system of records on individuals to accomplish an agency function, and criminal penalties may be imposed upon the officers or employees of the agency when the violation concerns the operation of a system of records on individuals to accomplish an agency function. For purposes of the Act, when the contract is for the operation of a system of records on individuals to accomplish an agency function, the Contractor is considered to be an employee of the agency.

(c)(1) 'Operation of a system of records,' as used in this clause, means performance of any of the activities associated with maintaining the system of records, including the collection, use, and dissemination of records. (2) 'Record,' as used in this clause, means any item, collection, or grouping of information about an individual that is maintained by an agency, including, but not limited to, education, financial transactions, medical history, and criminal or employment history and that contains the person's name, or the identifying number, symbol, or other identifying particular assigned to the individual, such as a fingerprint or voiceprint or a photograph. (3) 'System of records on individuals,' as used in this clause, means a group of any records under the control of any agency from which information is retrieved by the name of the individual or by some identifying number, symbol, or other identifying particular assigned to the individual.

(End of clause)

I.24 13.14-13 Use of Contractor-Equipment or Software - Permitted (April 2024)

1. When the contractor connects to the FAA network and the FAA does not provide an endpoint device (laptop, desktop, or workstation) for the contractor to connect to the FAA network:

(a) The contractor must request in writing that the FAA provide a Virtual Desktop Infrastructure (VDI) connection;

(b) The FAA will establish a VDI connection for use by contractor personnel;

(c) The contractor must only use the VDI connection in the performance of contract tasks for the FAA;

(d) The contractor must use the FAA-issued PIV cards for authentication from the contractor endpoint device connecting to the VDI; and

(e) The contractor must ensure that contractor equipment is configured to accept and use FAA-issued PIV cards. The contractor must provide the appropriate equipment for the PIV card, while the FAA will furnish and configure the PIV software.

2. If the contractor cannot use the VDI connection and must instead connect contractor equipment directly to the FAA network, the contractor is permitted to connect contractor equipment directly to the FAA network, subject to the following conditions:

(a) All connections of contractor equipment or software to FAA systems or networks must have advance written approval of the FAA CIO or the FAA CIO's designee.

(b) Contractors must not connect any unapproved contractor equipment or software to an FAA system or network.

(c) Prior to connecting contractor equipment or software to the FAA system or network, the contractor must also:

(1) Provide the CO or COR with a list of all equipment and software they plan to connect to the FAA system or network.

(2) Follow FAA configuration guidelines. The contractor must document all exceptions and provide the FAA with a list of the exceptions.

(3) All approved contractor equipment or software must be visible to the FAA scanning tools and be actively scanned by the FAA Security Operations Center (SOC) in the same manner as any government furnished property (GFP).

(d) All users of approved contractor equipment or software must adhere to all FAA policies and procedures for connecting to the FAA network and use of FAA information.

(e) A copy of FAA information security and privacy orders, including FAA Order 1370.121B FAA Information Security and Privacy: Policy is found at the following link https://employees.faa.gov/tools_resources/orders_notices.

(f) The contractor must insert terms that conform substantially to the language of this clause in all subcontracts under this contract.

(End of clause)

I.25 3.14-15 Handling of FAA Data (April 2024)

(a) FAA Data means any data that is collected, generated, used, processed, transmitted, received, or stored on an FAA system, device, media, or file. FAA Data includes but is not limited to the following types of Sensitive Unclassified Information (SUI):

- Personally Identifiable Information (PII)
- Sensitive Personally Identifiable Information (SPII)
- Sensitive Security Information (SSI)
- For Official Use Only (FOUO)
- Sensitive Flight Data (SFD)

(b) Contractors who generate, create, process, use, transmit, receive, store, or dispose of FAA Data must use proper handling procedures required for the sensitivity of that data, in accordance with FAA Order 1600.75.

(c) Contractors requiring access to systems containing PII must follow the FAA's privacy requirements, in accordance with FAA Order 1370.121B. Contractors accessing other types of sensitive FAA Data must comply with the handling and processing requirements that are applicable to the sensitivity of that FAA Data.

(d) The contractor must not store or process FAA Data on any system, device, or media that does not meet applicable information security requirements.

(e) The contractor agrees to insert terms that conform substantially to the language of this clause in all subcontracts under this contract.

(End of clause)

I.26 3.14-16 Technical Requirements for Contractor Systems Containing FAA Data (April 2024)

All contractor systems, services, applications, and end user systems operated by the contractor on behalf of the FAA or used in support of other FAA systems, services, or applications must:

- (1) For all accounts, whether privileged or non-privileged, implement and enforce multi-factor authentication using FAA-provided credentials.

- (2) Encrypt all data, whether in transit or at rest, using FIPS 140-2 (Valid Until 2026) or FIPS 140-3 validated encryption mechanisms.
- (3) Install applicable FAA endpoint detection and response tools specified by the FAA and ensure the FAA security operations can reach and monitor the contractor systems, services, applications, and end user devices.
- (4) Enable logging on all systems in accordance with FAA auditing policy specified in FAA Order 1370.121B FAA Implementation of NIST Controls Supplemental Implementing Directive, Appendix 3, Audit and Accountability, and ensure the logs are accessible to the FAA security operations.
- (5) Prepare all applicable security assessment documents in accordance with FAA assessment requirements, using the current FAA templates, and submit the completed documents to the FAA Assessment Team within the FAA-established assessment timeline.
- (6) Report all cybersecurity incidents, system compromises, detection of malicious code, data breaches, etc. to the FAA Security Operations Center (SOC) within 1 hour of detecting the incident.
- (7) Coordinate response activity with the FAA SOC and the FAA Privacy Office (as applicable).

The contractor agrees to insert terms that conform substantially to the language of this clause in all subcontracts under this contract.

(End of clause)

(End of Section I)

PART III - SECTION J
LIST OF ATTACHMENTS

ATTACHMENT	DESCRIPTION	FILE NAME
J001*	Labor Rate Table	Labor_Rate_Table.pdf
J002	Labor Category Descriptions	Labor_Category_Description.pdf

*Attachment provided with awarded contract.

(End of Section J)

PART IV- SECTION K
REPRESENTATIONS, CERTIFICATIONS, AND OTHER STATEMENTS OF
OFFEROR’S

Provisions through AMS Clause Change 122 April 2025

K.1 3.1-1 CLAUSES AND PROVISIONS INCORPORATED BY REFERENCE (July 2011)

This screening information request (SIR) or contract, as applicable, incorporates by reference the provisions or clauses listed below with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make the full text available, or Offeror’s and Contractors may obtain the full text via Internet at: <https://fast.faa.gov/contractclauses.cfm>

(End of clause)

3.2.2.3-82 Prohibition on Conducting Restricted Business Operations in Sudan -
Certification (July 2012)

K.2 3.2.2.3-2 MINIMUM OFFER ACCEPTANCE PERIOD (April 2024)

- (a) 'Acceptance period,' as used in this provision, means the number of calendar days the FAA has to award a contract from the date the SIR specifies for receiving offers.
- (b) This provision supersedes any language about the acceptance period appearing elsewhere in this SIR.
- (c) The FAA requires a minimum acceptance period of 180 calendar days [the CO must insert the number of days].
- (d) The offeror may specify a longer acceptance period than the period shown in paragraph (c). To specify a longer period, fill in the blank: The offeror allows the following acceptance period: _____calendar days.
- (e) The FAA may reject an offer allowing less than the FAA's minimum acceptance period.
- (f) The offeror agrees to fulfill the offer completely if the FAA accepts the offer in writing within:
- (1) The acceptance period stated in paragraph (c) of this provision; or

(2) Any longer acceptance period stated in paragraph (d) of this provision.

K.3 3.2.2.3-3 Affiliated Offerors (April 2024)

(a) Business concerns are affiliates of each other when, either directly or indirectly,

(1) One entity controls or has the power to control the other, or

(2) A third party controls or has the power to control both.

(b) The offeror must represent below in (c) whether it has affiliates. If the offeror represents that it “has” affiliates, it must provide the required information below in (1) and/or (2).

(1) The names and addresses of all affiliates.

(2) The names and addresses of all persons and concerns that exercise control or ownership over the offeror and all the offeror’s affiliates, regardless of how they exercise control or ownership.

(c) Representation. The offeror represents that it ____has, ____does not have any, affiliates.

K.4 3.2.2.3-23 PLACE OF PERFORMANCE (April 2024)

(a) The offeror, in fulfilling any contract resulting from this SIR, [] intends, [] does not intend, (check applicable block) to use one or more plants or facilities located at a different address from the address stated in this offer.

(b) If the offeror checks “intends” in paragraph (a) above, insert the following information:

Place of Performance Street:

City: _____

State: _____

Zip Code: _____

Name of owner and operator, if other than the owner: _____

(End of provision)

K.5 3.2.2.3-81 PROHIBITION AGAINST CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS-REPRESENTATION (July 2024)

(a) Definition: "Inverted Domestic Corporation" and "subsidiary" are defined in AMS clause 3.2.2.3-83 "Prohibition Against Contracting with Inverted Domestic Corporations."

(b) The FAA is not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation or a subsidiary of an inverted domestic corporation unless the requirement is waived in accordance with applicable AMS guidance.

(c) Representation. By submission of its offer, the offeror represents that it is not an inverted domestic corporation and is not a subsidiary of one.

(End of provision)

K.6 3.2.2.7-7 CERTIFICATION REGARDING RESPONSIBILITY MATTERS (July 2024)

(a)(1) The Offeror certifies, to the best of its knowledge and belief, that:

(i) All representations and certifications, as reflected in the System for Award Management (SAM) are current and accurate as of the date the proposal/offer is submitted. If the Offeror represents itself as an SDVOSB, the Offeror certifies it is certified as an SDVOSB under the Small Business Administration's Veteran Small Business Certification Program (VetCert) at the time of offer. The Offeror must provide immediate written notice to the Contracting Officer if at any time prior to award the Offeror and/or any of its principals learns that any certification or representation in SAM or on VetCert was erroneous when this proposal/offer was submitted or has become erroneous by reason of changed circumstances.

(ii) The Offeror and/or any of its Principals-

(A) Are ____ are not ____ presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(B) Have _____ have not _____ within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public- (Federal, state, or local) contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws or receiving stolen property; and

(C) Are _____ are not _____ presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in subdivision (a)(1)(ii)(B) of this provision.

(D) Have _____, have not _____, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds \$10,000 for which the liability remains unsatisfied.

(1) Federal taxes are considered delinquent if both of the following criteria apply:

(i) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(ii) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(2) Examples-

(i) The taxpayer has received a statutory notice of deficiency, under I.R.C. Sec. 6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(ii) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. Sec. 6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. During the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(iii) The taxpayer has entered into an installment agreement pursuant to I.R.C. Sec. 6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(iv) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. 362 (the Bankruptcy Code). (E) The Offeror has _____ has not _____ within a three-year period preceding this offer, had one or more contracts terminated for default by any Federal agency.

(2) 'Principals,' for the purposes of this certification, means officers; directors; owners; partners; and persons having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a subsidiary, division, or business segment, and similar positions). THIS CERTIFICATION CONCERNS A MATTER WITHIN THE JURISDICTION OF AN AGENCY OF THE UNITED STATES AND THE MAKING OF A FALSE, FICTITIOUS, OR FRAUDULENT CERTIFICATION MAY RENDER THE MAKER SUBJECT TO PROSECUTION UNDER SECTION 1001, TITLE 18, UNITED STATES CODE.

(b) The Offeror must provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this SIR. However, the certification will be considered in connection with a determination of the Offeror's responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror non-responsible.

(d) Nothing contained in the foregoing must be construed to require establishment of a system of records to render, in good faith, the certification required by paragraph (a) of this provision. The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this SIR for default.

K.7 3.2.2.7-9 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (July 2024)

(a) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, the FAA will not enter into a contract with any corporation that

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the FAA is aware of the unpaid tax liability, unless the FAA has considered suspension or

debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the FAA is aware of the conviction, unless the FAA has considered suspension or debarment of the corporation and made a determination that the action is not necessary to protect the interests of the Government.

(b) The offeror represents that

(1) It is ____ is not ____ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is ____ is not ____ a corporation that was convicted of a felony criminal violation under a Federal criminal law within the preceding 24 months.

(End of provision)

K.8 3.3.1-35 Certification of Registration in System for Award Management (April 2022)

In accordance with Clause 3.3.1-33, System for Award Management (SAM), the offeror certifies that they are registered in the SAM Database and have entered all mandatory information including the Unique Entity Identifier (UEI) or Electronic Funds Transfer (EFT) indicator.

Name: _____

Title: _____

Phone Number: _____

(End of provision)

3.3.1-41 Electronic Invoicing – Representation (October 2024)

(a) The FAA intends to use electronic invoicing as per AMS clause 3.3.1-40 Electronic Submission of Payment Requests for this contract when it is awarded. Offerors must indicate whether they are currently using this form of electronic invoicing on other contract(s), or can easily adapt to it upon award of the contract.

Yes _____

No. _____

(b) If an offeror indicates “No” the offeror must explain in this space why a waiver of this requirement should be approved in the event they were awarded the contract.

(c) Waiver requests will be handled per paragraph (f) of AMS clause 3.3.1-40.

(End of provision)

**K.9 3.5-14 REPRESENTATION OF LIMITED RIGHTS DATA AND
RESTRICTED COMPUTER SOFTWARE (January 2010)**

(a) This Screening Information Request (SIR) sets forth the work to be performed if a contract award results, and the Government's known delivery requirements for data, as defined in the clause "Rights in Data-General." Any resulting contract may also provide the Government the option to order additional data under the "Additional Data Requirements" clause at AMS 3.5-15, if included in the contract. Any data delivered under the resulting contract will be subject to the "Rights in Data-General" clause that is to be included in this contract. Under the latter clause, a Contractor may withhold from delivery data that qualify as limited rights data or restricted computer software, and deliver form, fit, and function data instead. The latter clause also may be used with its Alternates II and/or III to obtain delivery of limited rights data or restricted computer software, marked with limited rights or restricted rights notices, as appropriate. In addition, use of Alternate V with this latter clause provides the Government the right to inspect such data at the Contractor's facility.

(b) By completing the remainder of this paragraph, the Offeror represents that it has reviewed the requirements for the delivery of technical data or computer software and states (Offeror check appropriate block) –

☐ (1) None of the data proposed for fulfilling the data delivery requirements qualifies as limited rights data or restricted computer software; or

☐ (2) Data proposed for fulfilling the data delivery requirements qualify as limited rights data or restricted computer software and are identified as follows:

(c) Any identification of limited rights data or restricted computer software in the Offeror's response is not determinative of the status of such data should the contract be awarded to the Offeror.

(End of Provision)

K.10 3.6.4-19 Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Related to Iran- Representation and Certifications (January 2024)

(a) Definitions.

"Person"

(1) Means

(i) A natural person;

(ii) A corporation, business association, partnership, society, trust, financial institution, insurer, underwriter, guarantor, and any other business organization, any other nongovernmental entity, organization, or group, and any governmental entity operating as a business enterprise; and

(iii) Any successor to any entity described in paragraph (1)(ii) of this definition; and

(2) Does not include a government or governmental entity that is not operating as a business enterprise.

"Sensitive Technology"

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically

(i) To restrict the flow of free, unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict the speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to Section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

(3) The offeror must e-mail any questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(b) Certification. Except as provided in paragraph (c) of this provision or if a waiver has been granted in accordance with AMS Iran Sanctions Guidance, by submission of its offer, the offeror

(1) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(2) Certifies that the offeror, or any other entity owned or controlled by, or person controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act of 1996. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and

(3) Certifies that the offeror, and any other entity owned or controlled by, or person controlled by the offeror, does not knowingly engage in any transaction that exceeds \$10,000 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act 50 USC 1701 et. seq. (see the Department of the Treasury's Office of Foreign Assets Control (OFAC) Specially Designated Nationals and Blocked Persons List on their website).

(c) The certification requirement of paragraph (b) of this provision does not apply if the acquisition is subject to the trade-related acts in AMS Trade Agreements Guidance.

K.11 3.8.2-18 Certification of Data (July 2023)

(a) The use of the term data within this clause means all information submitted in the offer (e.g., company profile, qualifications, background statements, brochures) with the exception of cost/price data.

(b) The offeror represents and certifies that to the best of its knowledge and belief, the information and/or data submitted with its offer is current, accurate, and complete as of the date of its offer.

(c) The offeror understands that any inaccurate data provided to the Department of Transportation may subject the offeror, its employees, or its representatives to: (1) prosecution for false statements pursuant to 18 U.S.C. 1001 and/or; (2) enforcement action for false claims or statements pursuant to the Program Fraud Civil Remedies Act of 1986, 31 U.S.C. 3801-3812 and 49 CFR Part 31 and/or; (3) termination for default under any contract resulting from its offer and/or; (4) debarment or suspension.

(d) The offeror agrees to obtain a similar certification from its subcontractors.

Signature: _____

Date: _____

Typed Name and Title: _____

Company Name: _____

This certification concerns a matter within the jurisdiction of an agency of the United States and the making of a false, fictitious, or fraudulent certification may render the maker subject to prosecution under Title 18, United States Code, Section 1001.

(End of provision)

K.12 3.8.9-1 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment (July 2023)

NOTE: The offeror must not complete the representation at paragraph (d) (1) in this provision if the offeror has represented that it does not provide covered telecommunications equipment or services as part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument in paragraph (c) (1) of provision 3.8.9-3 “Covered Telecommunications Equipment or Services – Representation”. The offeror must not complete the representation in paragraph (d) (2) of this provision if the offeror has represented that it does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services in paragraph (c) (2) of provision 3.8.9-3.

CLAUSE:

(a) Definitions. As used in this provision-

Backhaul, Covered telecommunications equipment or services, Critical technology, Interconnection Arrangements, Reasonable inquiry, Roaming and Substantial or essential component have the meanings provided in AMS clause 3.8.9-2 “Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment”.

(b) Prohibitions.

(1) Section 889(a) (1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in this prohibition will be construed to-

(i) Prohibit the head of the agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a) (1) (B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020 from entering into a contract or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential part of any system or as critical technology as part of any system. This prohibition applies to any entity that uses covered telecommunications equipment or services, including uses not in support of the Government. Nothing in this prohibition will be construed to-

(i) Prohibit the head of the agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Procedures: The offeror must review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from Federal awards for covered telecommunications equipment or services.

(d) Representations.

(1) The Offeror represents that it ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror must provide the additional disclosure information required at (e) if the Offeror responds “will” and

(2) After conducting a reasonable inquiry for purposes of this representation, the Offeror represents that it does ☐ does not ☐ use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror must provide the additional disclosure information required at paragraph (e) if the Offeror indicates “does”.

(e) Disclosures. Disclosure for the representation in paragraph (d) (1) of this provision

If the Offeror has responded “will” in the representation in paragraph (d) (1) of this provision, the Offeror must provide the following information as part of the offer--

(1) For covered equipment

(i) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known;

(ii) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(iii) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b) (1) of this provision.

(2) For covered services-

(i) If the service is related to item maintenance, a description of all covered telecommunications services offered (include on the item being maintained: brand, model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable; or

(ii) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed uses of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

Disclosure for representation in paragraph (d) (2) of this provision. If the Offeror has responded “does” to paragraph (d) (2) of this provision, the offeror must provide the following information as part of the offer—

(3) For covered equipment

(i) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known;

(ii) A description of all covered telecommunications equipment offered (include brand; model number, such as original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(iii) Explanation of the proposed use of covered telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b) (2) of this provision.

(4) For covered services-

(i) If the service is related to item maintenance, a description of all covered telecommunications services offered (include on the item being maintained: brand, model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(ii) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed uses of covered telecommunications services and any

factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of Provision)

3.8.9-3 Covered Telecommunications Equipment or Services- Representation (July 2023)

(a) *Definitions.* As used in this provision, “covered telecommunications equipment or services” and “reasonable inquiry” have the meanings per the clause 3.8.9-2 “Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment”.

(b) *Procedures.* The offeror must review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for covered telecommunications equipment or services.

(c) *Representation.*

- (1) The offeror represents that it _____ does, _____ does not provide covered telecommunications equipment or services as part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.
- (2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it _____ does, _____ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

K.13 3.8.9-6 Federal Acquisition Supply Chain Security Act Orders- Representation and Disclosures (January 2024)

(a) *Definitions.* As used in this provision, Covered article, FASCSA order, Intelligence community, National security system, Reasonable inquiry, Sensitive compartmented information, Sensitive compartmented information system, and Source have the meaning provided in the AMS Clause 3.8.9–7, Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(b) *Prohibition.* Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the prohibition is set out in an applicable Federal Acquisition Supply Chain Security Act (FASCSA) order, as described in paragraph (b)(1) of AMS Clause 3.8.9–7, Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(c) Procedures.

(1) The Offeror must search in the System for Award Management (SAM)(<https://www.sam.gov>) for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (b)(1) of AMS Clause 3.8.9–7, Federal Acquisition Supply Chain Security Act Orders—Prohibition. Issued FASCSA orders may be identified by selecting the “View FASCSA Orders” button from the SAM homepage (<https://www.sam.gov>) and viewing or downloading FASCSA orders from the Supply Chain Security Orders webpage.

(2) The Offeror must review the SIR for any FASCSA orders that are not in SAM but are effective and do apply to the SIR and resultant contract (see AMS Guidance T3.8.9.C.4.c.(2)(A)(ii)).

(3) FASCSA orders issued after the publication date of the SIR do not apply unless the order is subsequently added to the SIR via amendment.

(d) Representation. By submission of this offer, the offeror represents that it has conducted a “reasonable inquiry” (as defined in AMS Clause 3.8.9-7), and that the offeror does not propose to provide or use in response to this SIR any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the SIR was issued, except as waived by the SIR, or as disclosed in paragraph (e) Disclosures, below.

(e) Disclosures. The purpose for this disclosure is so the FAA may decide whether to issue a waiver. For any covered article, or any products or services produced or provided by a source, if the covered article or the source is subject to an applicable FASCSA order, and the Offeror is unable to represent compliance, then the Offeror must provide the following information as part of the offer:

(1) Name of the product or service provided to the Government;

(2) Name of the covered article or source subject to a FASCSA order;

(3) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Offeror;

(4) Brand;

(5) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(6) Item description; and

(7) Reason why the applicable covered article or the product or service is being provided or used.

(f) FAA review of disclosures. The Contracting Officer will review disclosures provided in paragraph (e) Disclosures, to determine if any waiver may be sought. A Contracting Officer may choose not to pursue a waiver for covered articles or sources otherwise subject to a FASCSA order and may instead make an award to an offeror that does not require a waiver.

K.14 3.13-4 CONTRACTOR IDENTIFICATION NUMBER – Unique Entity Identifier (April 2022)

(a) Definitions. As used in this provision:

"Contractor Identification Number," as used in this provision, means " Unique Entity Identifier" (UEI)(also known as the Unique Entity ID), which is a nine-digit number assigned by the System for Award Management (SAM) to identify unique business entities (taken from AMS Clause 3.3.1-33 "System for Award Management".)

"Electronic Funds Transfer indicator " means the 4-character suffix to the Unique Entity Identifier. This 4-character suffix may be assigned at the discretion of the business concern to establish additional SAM records for identifying alternative Electronic Funds Transfer (EFT) accounts for the same parent concern.

(b) Contractor identification is essential for receiving payment and complying with statutory contract reporting requirements. Therefore, the offeror must provide its UEI or EFT indicator below. The UEI will be used by the Contracting Officer to verify that the offeror is registered in the SAM database.

UEI or EFT indicator: _____

(c) If the offeror does not have a UEI, it should obtain one via www.sam.gov.

(d) The offeror should be prepared to provide the following information when requesting a UEI:

- (1) Company legal business name.
- (2) Tradestyle, doing business, or other name by which your entity is commonly recognized.
- (3) Company Physical Street Address, City, State, and ZIP Code.
- (4) Company Mailing Address, City, State and ZIP Code (if different from physical street address).
- (5) Company Telephone Number.
- (6) Date the company was started.
- (7) Number of employees at your location.
- (8) Chief executive officer/key manager.
- (9) Line of business (industry).
- (10) Company Headquarters name and address (reporting relationship within your entity)

(End of provision)

(End of Section K)

PART IV - SECTION L
INSTRUCTIONS, CONDITIONS AND NOTICES TO OFFERORS

Provisions through AMS Clause Change 122 April 2025

**L.1 3.1-1 CLAUSES AND PROVISIONS INCORPORATED BY REFERENCE
(JULY 2019)**

- (a) This screening information request (SIR) or contract, as applicable, incorporates by reference the provisions or clauses listed below with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make the full text available, or offerors and contractors may obtain the full text via Internet at:
<https://fast.faa.gov/contractclauses.cfm>.
- (b) The following contract clause or clauses pertinent to this section are hereby incorporated by reference:

3.2.2.3-1	False Statements in Offers (April 2024)
3.2.2.3-12	Amendments to Screening Information Requests (April 2024)
3.2.2.3-13	Submission of Information Documentation/Offer (April 2024)
3.2.2.3-14	Late Submissions, Modifications, and Withdrawals of Submittals (April 2023)
3.2.2.3-17	Preparing Offers (April 2024)
3.2.2.3-18	Prospective Offeror's Requests for Explanations (April 2024)
3.2.2.3-19	Contract Award (July 2004)

L.2 FAA AMS CLAUSES AND PROVISIONS PROVIDED IN FULL TEXT

L.2.1 3.2.2.3-16 Restricting, Disclosing and Using Data (April 2024)

If the offeror includes data in the offer that the offeror does not want to be disclosed to the public or for the FAA to use except for evaluation purposes-

(a) Mark the title page with the following legend: "This offer includes data that must not be (1) disclosed outside the FAA and (2) duplicated, used, or disclosed -in whole or in part- for any purpose other than to evaluate this offer."

(b) Contracts awarded as a result of this SIR are subject to the disclosure requirements specified in this SIR. This restriction does not limit the FAA's right to use information from another source that may be contained in the offer.

(c) Use the following space to identify the pages containing the restricted data:

Numbers or other identification of pages:

- (d) Mark each page the offeror wants to restrict with the following legend: “Using or disclosing data contained on this page is subject to the restriction on the title page of this offer.”

(End of provision)

L.2.2 3.2.2.3-20 Offers (January 2018)

- (a) The offeror (you) may submit responses to this SIR by email. Your offer must arrive at the place and by the time specified in the SIR.
- (b) Such offers must refer to this SIR and include, as applicable, the item or sub-items, quantities, unit prices, time and place of delivery, all representations and other information required and a statement specifying the extent of your agreement with all the FAA's (we) terms, conditions, and provisions.
- (c) We may decline to consider electronic offers that do not include required information, or that reject any of the terms, conditions and provisions of the SIR.
- (d) Send your offer electronically to Contracting Officer/Contract Specialist:

Attn: AAQ 460, email: 9-AFN-AWA-AAQ460-Contracting-Team@faa.gov

- (e) We will not be responsible for any failure attributable to transmitting or receiving the offer, unless it falls under section (a) of AMS provision 3.2.2.3-14 "Late Submissions, Modifications, and Withdrawals of Submittals".

(End of provision)

L.2.3 3.2.4-1 Type of Contract (April 1996)

The FAA contemplates award of an Indefinite Delivery/Indefinite Quantity (IDIQ), Time & Materials (T&M) type contract resulting from this Screening Information Request.

(End of provision)

L.2.4 3.6.1-17 North American Industry Classification System (NAICS) Code (October 2022)

The North American Industry Classification System (NAICS) code for this procurement is: 541330 (Engineering Services).

The small business size standard as defined by the Small Business Administration (SBA) is the following:

For NAICS codes based on SBA's calculation of annual receipts, the annual average receipts cannot exceed \$22.5M.

(End of provision)

L.2.5 3.9.1-3 Protest (April 2024)

AS A CONDITION OF SUBMITTING AN OFFER OR RESPONSE TO THIS SIR (OR OTHER SOLICITATION, IF APPROPRIATE), THE OFFEROR OR POTENTIAL OFFEROR AGREES TO BE BOUND BY THE FOLLOWING PROVISIONS RELATING TO PROTESTS:

(a) Protests concerning Federal Aviation Administration Screening Information Requests (SIRs) or awards of contracts shall be resolved through the Federal Aviation Administration (FAA) dispute resolution system at the Office of Dispute Resolution for Acquisition (ODRA) and shall be governed by the procedures set forth in 14 C.F.R. Parts 14 and 17, which are hereby incorporated by reference. Judicial review, where available, will be in accordance with 49 U.S.C. 46110 and shall apply only to final agency decisions. A protestor may seek review of a final FAA decision only after its administrative remedies have been exhausted.

(b) Offerors initially should attempt to resolve any issues concerning potential protests with the Contracting Officer. The Contracting Officer should make reasonable efforts to answer questions promptly and completely, and, where possible, to resolve concerns or controversies. The protest time limitations, however, will not be extended by attempts to resolve a potential protest with the Contracting Officer.

(c) The filing of a protest with the ODRA may be accomplished by mail, overnight delivery, hand delivery, or by facsimile or if permitted by order of the ODRA, by electronic filing. A protest is considered to be filed on the date it is received by the ODRA during normal business hours. The ODRA's normal business hours are from 8:30 am to 5:00 pm Eastern Time.

(d) Only an interested party may file a protest. An interested party is one whose direct economic interest has been or would be affected by the award or failure to award an FAA contract. Proposed subcontractors are not "interested parties" within this definition.

(e) A written protest must be filed with the ODRA within the times set forth below, or the protest shall be dismissed as untimely:

(1) Protests based upon alleged improprieties in a solicitation or a SIR that are apparent prior to bid opening or the time set for receipt of initial proposals shall be filed prior to bid opening or the time set for the receipt of initial proposals.

(2) In procurements where proposals are requested, alleged improprieties that do not exist in the initial solicitation, but which are subsequently incorporated into the solicitation, must be protested not later than the next closing time for receipt of proposals following the incorporation.

(3) For protests other than those related to alleged solicitation improprieties, the protest must be filed on the later of the following two dates:

(i) Not later than seven (7) business days after the date the protester knew or should have known of the grounds for the protest; or

(ii) If the protester has requested a post-award debriefing from the FAA Product Team, not later than five (5) business days after the date on which the Product Team holds that debriefing.

(f) Protests shall be filed at:

(1) For filing by hand delivery, courier or other form of in-person delivery:

Office of Dispute Resolution for Acquisition

Federal Aviation Administration

600 Independence Avenue SW., Room 2W100

Washington, DC 20591; or

For filing by U.S. Mail:

Office of Dispute Resolution for Acquisition

Federal Aviation Administration

800 Independence Avenue SW

Washington, DC 20591

[Attention: AGC-70, Wilbur Wright Bldg. Room 2W100]; or

Telephone: (202) 267-3290

Facsimile: (202) 267-3720

Alternate Facsimile: (202) 267-1293; or

(2) Other address as specified in 14 CFR Part 17.

(g) At the same time as filing the protest with the ODRA, the protester shall serve a copy of the protest on the Contracting Officer and any other official designated in the SIR for receipt of protests by means reasonably calculated to be received by the Contracting Officer on the same day as it is to be received by the ODRA. The protest shall include a signed statement from the protester, certifying to the ODRA the manner of service, date, and time when a copy of the protest was served on the Contracting Officer and other designated official(s).

(h) Additional information and guidance about the ODRA dispute resolution process for protests can be found on the ODRA Website at <http://www.faa.gov>.

(End of provision)

L.2.6 3.2.2.3-15 Authorized Negotiators (April 2024)

The offeror states that the following persons are authorized to negotiate on the offeror's behalf with the FAA in connection with this offer:

Name: _____

Title: _____

Phone number: _____

Email: _____

(End of provision)

L.3 SPECIAL NOTICE TO OFFERORS

Each Offeror is presumed to submit a proposal which represents its best efforts to respond to the SIR requirements, including the Statement of Work requirements. Any inconsistencies between the technical and cost proposals must be fully explained. A significant inconsistency, if unexplained, raises a fundamental question of the Offeror's understanding of the work required and ability to perform the contract. This may be grounds for either rejection of the proposal or a basis for a determination of non-compliance. Failure to submit any of the information requested by this SIR may be cause for unfavorable consideration or proposal rejection.

L.4 METHOD, DATE AND TIME FOR SUBMISSION OF PROPOSALS

- a) Offerors are instructed to assemble and identify proposal volumes in accordance with the table below. Offerors must ensure that all volume titles and associated content are compiled and delivered as shown in the table below.

PROPOSAL VOLUME	DUE DATE /SUBMISSION TIME
Volume I (Technical)	
Volume II (Past Performance)	

Volume III (Pricing Proposal)	To Be Determined
Volume IV (Small-Business Subcontracting Plan (Large Business only))	
Volume V Other Proposal Documentation (4 parts)	

- b) The FAA will not accept submission made by facsimile, telex, telegraph or similar means. If the Contracting Officer or designated representative does not receive a proposal by the specified date and time, it will not be evaluated. Offerors assume full responsibility for ensuring that the appropriate authority receives proposals no later than the date and time specified above.

L.5 NOTIFICATION OF INTENT TO WITHDRAW PROPOSAL

An Offeror may withdraw its proposal from competition in accordance with AMS 3.2.3-14, Late Submission, Modifications, and Withdrawals of Submittal by sending written notice, signed by an authorized representative, to the Contracting Officer at any time prior to Contract Award. Prior to such action, the Offeror must notify the Contracting Officer in writing of representatives authorized to withdraw the proposal. Proposals may be withdrawn via e-mail, but not by facsimile or mail.

L.6 ALTERNATE PROPOSALS

Alternate Proposals are not authorized to be submitted in response to this SIR. Therefore, with respect to specific terms or conditions of this SIR, any objection to any of the terms and conditions of this SIR may constitute an exception, which may make the offer unacceptable (i.e., ineligible for award).

L.7 PERIOD OF OFFER

Proposals must be binding for 180 calendar days from the SIR closing date. Offerors may propose more than 180 days; however, proposals offering less than 180 days may be deemed unacceptable.

L.8 SIR QUESTIONS, CONCERNS, AND CLARIFICATIONS

- a) The Contracting Officer is the sole point of contact for this acquisition. All Offeror questions, concerns, and clarification requests must be made in writing and submitted to the FAA via email to the Contracting Officer Attn: AAQ 460 at 9-AFN-AWA-AAQ460-Contracting-Team@faa.gov no later than **2:00 PM, Eastern Standard Time, TBD** The FAA will compile questions received and post them for review by all Offerors; however, the FAA will not post the author of each question.

- b) Written inquiries received within the timeframe specified in (a) above, will be answered in writing and provided to all Offerors prior to the required date for submittal of the Offeror's proposal. The FAA reserves the right to not answer any requests received outside of the above timeframe. Furthermore, Offerors must note that the proposal due date will not be extended solely on the basis of questions received after the timeframe mentioned above.
- c) The FAA will not provide verbal or written responses to Offeror questions, concerns, and clarification requests initiated via telephone.

L.9 EXPENSES RELATED TO OFFEROR SUBMISSIONS

- (a) The FAA will not pay for the information solicited, nor reimburse the Offerors for any costs incurred in the preparation or submission of any response to this SIR or in making necessary studies or designs for the preparation thereof.
- (b) No pre-contract costs will be allowed on this contract. Pre-contract cost are defined as any costs incurred at the Offeror's risk in anticipation that any such costs may later be charged to any resulting contract.

L.10 NOTIFICATION OF AWARD AND DEBRIEFING OF UNSUCCESSFUL OFFERORS

Written notice of award to unsuccessful Offerors will be provided within three (3) business days of contract award. Successful or unsuccessful Offerors may request a debriefing by providing a written request to the Contracting Officer within three (3) business days after receiving the notice of award. Debriefings will be conducted only after completion of source selection activities and award of contract. All Offerors who notify the Contracting Officer within three (3) business days of receipt of the award notification are entitled to a debriefing. The FAA will provide the debriefing within a reasonable period of time after receipt of the request for debriefing.

Debriefings will be provided in accordance with AMS Acquisition Management Policy 3.2.2.3.1.4, Debriefing, and AMS Procurement Guidance T.3.2.2.D.1.9, Debriefing of Offerors/Lessons Learned.

L.11 NUMBER OF AWARDS

The Government contemplates awarding one contract. However, the Government reserves the right to make multiple awards or to not make any award.

L.12 DISPOSITION OF PROPOSALS

Proposals from Offerors will not be returned. The FAA may elect to retain or destroy Offeror submissions.

L.13 FALSE STATEMENTS

Proposals must set forth full, accurate, and complete information as required by this solicitation, including attachments. The penalty for making false statements in proposals is prescribed in 18 U.S.C. § 1001.

L.14 NON-GOVERNMENT PERSONNEL PARTICIPATION

Offerors are hereby notified that the FAA may have responses to the SIR, to include any written technical proposals or other written information, reviewed by support service Contractor personnel serving as advisors to FAA evaluators during the evaluation phase of this acquisition. The exclusive responsibility for source selection will remain with the FAA. Any objection to disclosure of information to these non-Government evaluators and advisors must be provided in writing no later than 7 calendar days after SIR release and must include a detailed statement with the basis of the objection. All non-Government personnel will be required to sign non-disclosure of information agreements before they are provided access to any responses to this SIR.

The FAA currently intends for the following companies to participate in the evaluation but reserves the right to include others:

ITstrategy L.L.C.

The exclusive responsibility for source selection will remain with the FAA.

L.15 COMMUNICATIONS WITH OFFERORS

The FAA will conduct communications with Offerors in accordance with AMS Policy Section 3.2.2.3.1.2.2 and AMS Guidance T3.2.2.3.A.7. Communication with potential Offerors may take place throughout the source selection process. All communications between the FAA and offerors will be documented and controlled through the Contracting Officer. Per AMS Policy 3.2.2.3.1.2.2, the purpose of communications is to promote best value outcomes for agency acquisitions by reducing risk, increasing value, and ensuring mutual understanding between the FAA and offerors about all aspects of a procurement. . Information provided by the Offeror as a result of the FAA's written communication with an Offeror may be considered in the evaluation of an Offeror's submittal(s).

The FAA may hold one-on-one meetings with individual Offerors pertaining to their Offers. One-on-one communications may continue throughout the process, as required, at the FAA's discretion. Communications with one Offeror do not necessitate communications with other Offerors because communications will be Offeror-specific. Regardless of the varying levels of communications with individual Offerors, the CO will ensure such communications do not give any Offeror an unfair competitive advantage.

Offerors must provide in their submissions a Points of Contact (POCs), telephone numbers,

and e-mail addresses for this purpose. The POCs for the Government information are:

POCs:

1. Attn: AAQ 460
800 Independence Avenue, S.W., Room 406
Washington, DC 20591
Email: 9-AFN-AWA-AAQ460-Contracting-Team@faa.gov
2. Attn: AAQ 460
800 Independence Avenue, S.W., Room 406
Washington, DC 20591
Email: 9-AFN-AWA-AAQ460-Contracting-Team@faa.gov

L.16 ACQUISITION MILESTONES

The following acquisition milestones are provided for informational purposes only and are subject to change:

ACQUISITION MILESTONE	DATE
SIR Issued	To- Be-Determined
Deadline for Offeror's SIR Questions	
Receipt of Proposals	
Contract Award	

L.17 PROPOSAL GENERAL INSTRUCTIONS

- (a) Proposals must be complete and conform to the instructions in this section; incomplete proposals or proposals which contain deviations may result in the exclusion of such proposals from further consideration. General statements that the Offeror understands the requirements of the work to be performed or simple rephrasing or restating of the FAA's requirements, without further substantiation, will be considered unsupported, may result in lower evaluation ratings, and may be cause for rejection of the proposal.
- (b) It is the Offeror's responsibility to ensure the completeness of the proposal. The evaluation of proposals will be conducted on the basis of the information contained in the written proposal. The Government will not assume that an Offeror possesses any capabilities not specified in the written proposal.
- (c) Any data that may contain trade secrets, copyright data, and/or financial information which the Offeror or proposed Subcontractors do not want disclosed for any purpose other than the evaluation of the proposal must be marked in accordance with AMS 3.2.2.3-16, "Restriction on Disclosure and Use of Data (April 2024)."

- (d) The Contracting Officer will screen all timely proposals for completeness and accuracy (i.e., whether the proposal follows the requirements of Section L and includes all of the required information). If the Contracting Officer determines that a proposal is not accurate and/or complete, the Contracting Officer may eliminate the proposal from further consideration.
- (e) Each Offeror's proposal must contain five (5) Volumes, I through V, in accordance with Table L-1 below.
- (f) Electronic Proposals – An electronic cover sheet must be provided for each volume (Volume I through V), which clearly identifies each volume, volume number, SIR number, and the Offeror's name. This sheet must be part of each submitted volume, as opposed to a separate file and will not count against any page limitations. An electronic Table of Contents, Table of Tables, Table of Graphs, Table of Figures and List of Acronyms sheet must be provided for each volume, as applicable, and will not count against any page limitations.
- (g) Where signatures are required, the electronic format must be a scanned PDF or electronic signature.

Table L-1. Proposal Volume Instructions

VOLUME	VOLUME COMPONENTS	PAGE LIMIT*	FORMAT	XXX = COMPANY NAME/ACRONYM
Volume I - Technical	Sub-Factor 1 – Technical Approach	10 pages maximum - Includes graphics, if any. - Excludes title page, cover page, table of contents, acronym list, or executive summary, if provided.	Volume I documents must be in PDF format. Pages must be 8-1/2 x 11 inches, portrait. The font type must be Times New Roman and size 12-point with single line spacing. The exception is for charts, graphs, tables, and pictures, for which the font size must be no less than 8-point. Top, Bottom, Left and Right Margins are to be 1 inch. Foldouts (i.e., up to 11x17 inches) are permissible but count as two (2) pages each.	Vol. I Technical-XXX_MM-DD-YY.pdf
	Sub-Factor 2 – Resumes	6 pages maximum (total for all 3 resumes): Three (3) Resumes		
		Total maximum pages for Volume I – Technical is 16 pages		
II	Past Performance	- Past performance narrative in accordance with attachment L001 - Page 3 of L001 proposal is limited to two pages	In accordance with Attachment L001	Vol. I Past Performance - XXX_MM-DD-YY.pdf

VOLUME	VOLUME COMPONENTS	PAGE LIMIT*	FORMAT	XXX = COMPANY NAME/ACRONYM
III	Price	NA	In accordance with Attachment L002	Vol III Price Proposal - XXX_MM-DD-YY. xlxs
IV	Small-Business Subcontracting Plan (Large Business only)	None	Same as Technical	Vol IV SBP - XXX_MM-DD-YY. pdf
V	Other Proposal Documentation Part 1 - Exceptions, Deviations, or Assumption	NA	Same as Technical	Vol V Exceptions _Deviations, Assumptions - XXX_MM-DD-YY.pdf
V	Other Proposal Documentation Part 2 - Contract Documents and Associated Information	NA	Same as Technical	Vol V- Contract Documents XXX_MM-DD-YY.pdf
V	Other Proposal Documentation Part 3 - Responsibility Determination	NA	Same as Technical	Vol V- Resp. Det. XXX_MM-DD-YY.pdf
V	Other Proposal Documentation Part 4 – Organizational Conflict of Interest	NA	Same as Technical	Vol V- OCI. XXX_MM-DD-YY.pdf

* Proposal submissions must not exceed any page limitations established for the individual volumes. Any submission exceeding a page limitation will only be evaluated up to the established page limitation.

- (h) Within each Offeror's electronic submission, all proposal volumes and sections within each volume must be clearly identified. Files larger than 10Mb must be split into multiple, smaller files to ensure they are received by the FAA.
- (i) Each volume must be organized such that an extensive search of the proposal is not necessary for its review. Information not in its appropriate section and not appropriately referenced may be assumed to have been omitted. Each section within a volume must be consecutively numbered.

- (j) The FAA may decline to consider offers that do not include required information or follow the required submission format and versions, or that reject any of the terms, conditions, or provisions of the SIR.

L.18 VOLUME I (TECHNICAL) INSTRUCTIONS FOR PROPOSAL PREPARATION

For Volume I Technical Factor, the Offeror must address the following two (2) Sub Factors:

1) SubFactor 1: Technical Approach

The Offeror must provide a credible and comprehensive technical approach to demonstrate how the Offeror will complete the requirements identified in the Section C Statement of Work (SOW). The Offeror's technical approach must explain what tools, methods, technologies, steps, deliverables, and/or other actions the Offeror will employ to satisfy the SOW requirements.

2) SubFactor 2: Resumes

The offeror must provide resumes of three (3) proposed staff to support this project. The resumes must be for the proposed Project/Program Manager, a Technical Subject Expert (with Secret clearance) and a Principal Engineer/Scientist (with Secret clearance). These staff must meet the minimum education level and years of relevant experience as defined in the Labor Category Description (J002). No more than one resume may be from the Offeror's teammate (subcontractor). These three (3) resumes are considered "Key Personnel" positions in accordance with H.7 and H.8. The offeror must provide a letter of commitment for each member of key personnel they propose.

L.19 VOLUME II PAST PERFORMANCE INSTRUCTIONS FOR PROPOSAL PREPARATION

- (a) The Offeror must provide past performance information on three (3) past performance efforts. The past performance efforts must be recent (as defined in subsection (b) below). As described in Section M, the FAA will also evaluate the past performance efforts for relevance. If the Offeror has no past performance experience that is recent or relevant, the Offeror must include a statement to this effect in its proposal.
- (b) The Offeror must arrange for one (1) customer point of contact to complete the Past Performance Questionnaire (Attachment L001) for each past performance effort (for a total of three (3) Past Performance Questionnaires). Offerors must refer to Attachment L001 for explicit direction for the preparation and submission of required Past Performance information. The Offeror must complete Section A of the Past

Performance Questionnaire. The Offeror must provide the FAA with sufficient information in Part A for each past performance effort for the FAA to make a determination with respect to the recency and relevancy of the past performance effort. “Recent” is defined as performance that is currently ongoing or completed within the 36 months from the release date of this SIR. Relevancy will be evaluated in accordance with the definitions in M.4.b.

- (c) The FAA reserves the right to contact any customer point of contact to verify the information submitted.

L.20 VOLUME III (PRICE) INSTRUCTIONS FOR PROPOSAL PREPARATION

The Offeror’s completed pricing proposal (Attachment L002) must be submitted to the FAA in excel format.

Regarding the estimated hours filled into Attachment L002, the FAA is under no obligation to order in accordance with the estimated hours as these are used for evaluation purposes only. In addition, the inclusion of any option years in the Total Evaluated Price (TEP) does not bind the FAA to exercise any of the options. Finally, the amounts included for travel and ODCs are estimates for evaluation purposes only.

L.21 VOLUME IV (SMALL BUSINESS SUBCONTRACTING PLAN -LARGE BUSINESS OFFERORS ONLY) INSTRUCTIONS FOR PROPOSAL

The FAA is committed to assuring that, to the maximum extent practicable, opportunity is provided to Small Business concerns to participate in the performance of this contract, consistent with efficient performance. A subcontracting plan is required from all Offerors who are not small businesses. Each offeror that is a large business must provide a detailed subcontracting plan that fulfills all requirements contained within AMS clause 3.6.1-4, Small, Small Disadvantaged, Woman-Owned, and Service-Disabled Veteran Owned Small Business Subcontracting Plan (April 2024). The FAA has established the following minimum subcontracting goals.

- At least 43 percent of the total planned subcontract dollars to Small Business (SB);
- At least five (5) percent of the total planned subcontract dollars to Small Disadvantaged Businesses (SDB) (which includes 8a).
- At least five (5) percent of the total planned subcontract dollars to Women Owned Small Businesses (WOSB).
- At least five (5) percent of the total planned subcontract dollars to Service Disabled-Veteran Small Businesses (SDVOSB).
- At least three (3) percent of the total planned subcontract dollars to Historically Underutilized Business Zone (HUBZone) small business.

Each Large Business Offeror must submit an individual subcontracting plan or a current U.S. Government-approved master or commercial subcontracting plan. The five (5) bullets above must be explicitly addressed in the Offeror’s U.S. Government-approved master or commercial subcontracting plan.

Any Large Business Offeror that fails to submit an acceptable subcontracting plan or to correct

deficiencies within the time specified by the CO may be ineligible for award.

To the extent that the proposed plan goals deviate from the above goals, the Offeror must provide a detailed justification/rationale for the proposed goals. Proposed goals must apply over the life of the contract, including the base period and each option period.

L.22 VOLUME V ADDITIONAL PROPOSAL DOCUMENTATION

The following documents and information must be included in Volume V.

- Any Exceptions, Deviations, or Assumptions made regarding the SIR.
- Contract Documents and Associated Information
- Responsibility Determination Information
- OCI Information

L.22.1 Exceptions, Deviations and Assumptions

Any exceptions, deviations and assumptions taken with the requirements of the SIR must contain sufficient detail and justification to permit evaluation. All exceptions, deviations, and assumptions must be fully explained for each exception taken.

If no exceptions, deviations or assumptions are taken, **the proposal must affirmatively state that none have been taken.**

Offerors must clearly indicate to which Volume each exception, deviation and/or assumption applies. The Offeror must also group the exceptions, deviations and/or assumptions according to Volume (Technical, Past Performance, OCI Plan, SubK Plan, or Price) it relates to.

The Offeror is on notice that the FAA reserves the right to reject any exceptions, deviations, and/or assumptions and consider the rejection in the evaluation. The Offeror is on notice that the FAA reserves the right not to contact an Offeror if the FAA rejects any exceptions, deviations and/or assumptions.

L.22.2 Contract Documents and Associated Information

- A completed SF-33 and signed SF-30s (Amendments- if applicable).
- Completed Representations and Certifications, in accordance with Section K.
- The Offeror must complete the required fill-in portions of Section I, Contract Clauses, 3.1.7-6 Disclosure of Certain Employee Relationships and include Section I in the offer.

L.22.3 Responsibility Determination Information

Notwithstanding the evaluation methodology outlined in this SIR, the CO must also determine an Offeror to be responsible prior to the award of any resultant contract. In order

for the FAA to perform an analysis to determine Offeror's responsibility, the Offeror must submit sufficient information to demonstrate the financial capability to fund and perform a contract of this size and duration. This includes:

- o A Dun and Bradstreet Comprehensive Report (CR) for the Offeror dated no later than 6 months prior to the proposal submission date
- OR
- o Certified Financial Statements (Balance Sheet, Income Statement, and Statement of Cash Flow) for the Offeror for the last two (2) completed company fiscal years, certified by a CPA in good standing, as of the most recent fiscal year (FY 20).

AND (AS REQUIRED)

- o A description of all current or pending legal action under Federal Government contracts for the bidding entity within the past three (3) years resulting from but not limited to: Requests for Equitable Adjustments or pending or ongoing claims in excess of \$5M, pending or ongoing cure notices, or Terminations for Default;
- o Identification of any proposed team member that has been placed on the Excluded Parties List System (EPLS) or has otherwise been debarred, suspended, proposed for debarment, proposed for suspension, or otherwise declared or proposed to be declared ineligible to receive U.S.-government contracts, subcontracts, assistance, or benefits within the last three (3) years. If any team member is so identified, the Offeror must describe the relevant circumstances.

L.22.4 OCI Information

Each Offeror must disclose all potential conflicts in accordance with AMS clauses 3.1.7-1, 3.1.7-2, 3.1.7-4, 3.1.7-5, and 3.1.7-6 in the context of its performance of the subject contract relative to other contractual or corporate commitments and obligations that have been made or are planned by the Offeror (including team members and subcontractors).

The proposal must disclose all potential conflicts of interest or other related issues for the Offeror and its team members, including without limitation, if the Offeror or its team members have in the past, currently, or plan to perform work for an FAA applicant, including but not limited to as a contractor, and/or if the Offeror or its team members have historically been an applicant, are currently an applicant, or planning to become an applicant.

If appropriate and applicable, the Offeror must submit an Organizational Conflict of Interest (OCI) Mitigation Plan in accordance with AMS Clause 3.1.7-4.

L.23 SMALL BUSINESS SIZE STANDARD

- (a) The North American Industry Classification System (NAICS) code for this procurement is 541330 – Engineering Services. The size

standard under this code is \$22.5 million.

- (b) For proposal evaluation purposes, the FAA will determine whether or not an Offeror qualifies as a small business for this NAICS code based upon the SBA website. Offerors will have to qualify as a small business as of the projected award date of this SIR.

L.24 LIST OF ATTACHMENTS

ATTACHMENT	DESCRIPTION
Attachment L001	Past Performance Evaluation Questionnaire
Attachment L002	Pricing Worksheet

(End of Section L)

DRAFT

PART IV - SECTION M
EVALUATION FACTORS FOR AWARD

3.1-1 CLAUSES AND PROVISIONS INCORPORATED BY REFERENCE (JULY 2021)

- (a) This screening information request (SIR) or contract, as applicable, incorporates by reference the provisions or clauses listed below with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make the full text available, or offerors and contractors may obtain the full text via Internet at:
<https://fast.faa.gov/contractclauses.cfm>.
- (b) The following contract clause or clauses pertinent to this section are hereby incorporated by reference:

3.3.1-30 Progress Payments Not Included (October 2024)

3.2.4-31 Evaluation of Options (October 2024)

M.1 GENERAL

- (a) This acquisition will utilize the Best Value Trade-Off Approach for selecting an Offeror for award. The Best Value-Trade Off Approach is a method of selecting the proposals that represents the best value to the Government, based upon the evaluation of cost or price and other factors specified in the solicitation. Under the Best Value Trade-Off Approach, the Government will assess non-price factors and price factors based on the evaluation factors in this section and their relative importance, as defined in M.3, and select the proposal that represents the best value to the Government. This approach provides the opportunity for a trade-off between price and non-price factors and does not require that the awards be made to either the Offeror submitting the highest rated technical proposal or the Offeror submitting the lowest prices, although the ultimate award decision may be to either of these Offerors.
- (b) The Contracting Officer will screen all timely proposals for completeness and accuracy (i.e., whether the proposal follows the requirements of Section L and includes all of the required information). If the Contracting Officer determines that a proposal is not accurate and/or complete, the Contracting Officer may eliminate the proposal from further consideration.
- (c) Each proposal that the FAA determines is timely, accurate, and complete will be evaluated based on the information furnished by the Offerors; including proposals, responses to written communications questions (written), and revised proposals, if any (and only as explicitly allowed by the Contracting Officer). This evaluation will address the following:
 - Technical (Volume I);

- Past Performance (Volume II)
 - Price (Volume III)
 - SubK Plan (Volume IV) and
 - Additional Proposal Documentation (Volume V)
- (d) Proposals that fail to meet the requirements of the solicitation or are unrealistic in terms of technical content or schedule commitments may be deemed reflective of an inherent lack of technical competence or indicative of a failure to comprehend the technical complexity and risks of the contract requirements, and may be found ineligible for further evaluation and no longer considered for contract award.
- (e) Offerors are cautioned not to minimize the importance of an adequate response in any area because of importance or visibility. Offerors must furnish adequate and specific information in their responses in accordance with Section L of the SIR. Offerors must address all SIR instructions, terms and conditions, representations and certifications, technical requirements, and identified factors. The FAA reserves the right to eliminate from further consideration before evaluation of any proposal that is determined non-compliant with the terms and conditions of the SIR.
- (f) If at any time during the evaluation process the FAA concludes that an Offeror is not likely to receive award, the FAA may eliminate the Offeror from further consideration for award.
- (g) General statements that the Offeror understands the requirements of the work to be performed, or simple rephrasing or restating of the FAA's requirements, without further substantiation, will not be considered adequate and may be reflected in lower evaluation scores or may be cause for rejection of the proposal in its entirety.
- (h) In evaluating the proposals, the FAA may conduct written or oral communications with any or all Offerors. The FAA reserves the right to conduct communications with any individual Offeror, or all competing Offerors, as the situation warrants. Communications with one or more Offerors do not require communications with all Offerors.
- (i) Alternate proposals are not authorized to be submitted in response to this SIR, and will not be evaluated.
- (j) The FAA reserves the right to award a contract from the initial submissions without entering into communications, reject any and all offers, or waive any requirements, minor irregularities, or discrepancies, if it would be in the best interest of the FAA to do so.

M.2 BASIS FOR AWARD

- (a) The FAA intends to make a single contract award under this SIR; however, the FAA reserves its right to make multiple awards or no awards.
- (b) The FAA will evaluate proposals submitted under Volume I – Technical, Volume II – Past Performance, Volume III- Price, Volume IV- Small Business Subcontracting Plan, and Volume V– Additional Proposal Documentation, all in accordance with this Section M.
- (c) Prior to the award of any contract, the prospective Contractor must also be determined to be responsible in accordance with AMS 3.2.2.2. To assist in this determination, the Government reserves the right to conduct a pre-award survey of any Offeror, or Offeror’s subcontractors, if deemed necessary by the Contracting Officer. A pre-award survey does not necessarily mean that an Offeror has been selected for award.
- (d) Offerors must include proposed fixed labor rate pricing for all labor categories as specified in Attachment L002, so that all proposals may be properly evaluated. Failure to comply with this requirement may be cause for rejection of the entire offer.
- (e) Volume I (Technical) includes two (2) sub-factors that will each receive adjectival ratings (as defined in Section M.5). Both subfactors are considered of equal importance.
- (f) Volume II (Past Performance) will be assessed on a Confidence basis. An assessment of “No Confidence” will disqualify the Offeror from award consideration
- (g) Volume IV Small Business Subcontracting Plan (SubK Plan): In order to be eligible for award, a non-Small Business Offeror must submit a small business subcontracting plan that the CO determines (1) fulfills all requirements contained within AMS clause 3.6.1-4, Small, Small Disadvantaged, Woman-Owned, and Service-Disabled Veteran-Owned and HUBZone Small Business Subcontracting Plan (April 2022); and (2) proposes goals that meet or exceed the established subcontracting goals as set forth in Section L.21.
- (h) Volume V Additional Proposal Documentation will be evaluated as set forth in M.4(d).

M.3 ORDER OF IMPORTANCE FOR BEST VALUE TRADE-OFF

The following evaluation factors and subfactors are listed below in **descending** order of importance for the Best Value Trade-off:

Factor (1): Technical Capability (Volume I) – Most Important

Subfactor 1 – Technical Approach

Subfactor 2 – Resumes

Factor (2): Price (Volume III)

For the best value determination:

Volume I (Technical Capability) is significantly more important than Volume III (Price).

Both *subfactors* under Technical Capability are considered of equal importance.

As ratings for non-price factors become closer, then differences in Price (Volume II) increases in importance.

Volume II, Past Performance will be reviewed as set forth in Section M.4(b).

Volume IV, Small Business Subcontracting Plan will be reviewed as set forth in Section M.2(g) but will not be rated.

Volume V, Additional Proposal Documentation will be reviewed as set forth in Section M.4(d) but will not be rated.

M.4 EVALUATION FACTORS

(a) Technical (Volume I)

For Volume I Technical, the FAA will assign strengths, weaknesses, risks, and deficiencies (see Section M.6) to each of the technical subfactors. The FAA will then assign an adjectival rating (per Section M.5) to each technical subfactor. These three subfactors are considered of equal importance.

SubFactor 1: Technical Approach

The Offeror will be evaluated on the degree to which the Offeror demonstrates a comprehensive and credible technical approach to performing Section C of the AST Safety Engineering Support SOW requirements.

SubFactor 2: Resumes

The Offeror will be evaluated on the degree to which the proposed three (3) Key Personnel resumes demonstrate the requisite education/experience/skills to successfully perform Section C of the AST Engineering Support SOW requirements, including, without limitation, each proposed resume meets the requirements in J002 (Labor Category and Skill Descriptions) for the relevant labor category and is suitable for fulfilling the requirements of the SOW.

(b) Past Performance (Volume II)

The Government will assess its confidence in the likelihood of the Offeror's success based on its past performance, and will assign each Offeror's Past Performance Volume a confidence rating, as defined below. There are two aspects to the past performance evaluation. First, the Government will evaluate each past performance effort submitted by the Offeror to determine (1)

whether it is recent and (2) how relevant the past performance effort is to the effort to be acquired through this SIR. The FAA will consider the information that the Offeror provides in Part A of the Past Performance Questionnaire in making its determination with respect to the recency and relevancy of the past performance effort. The FAA may, at its discretion, consider information from other sources in making its recency and relevancy determinations, but it is not required to consider information outside of Part A of the Past Performance Questionnaire.

“Recent” is defined as performance that is currently ongoing or completed within the 36 months from the release date of this SIR. Each of the Offeror’s past performance efforts will be assigned a relevancy rating ranging from “Very Relevant” to “Not Relevant” in accordance with the definitions below. This relevancy rating is not a separate proposal rating but is rather used in developing overall past performance confidence assessment rating assigned to the Past Performance Volume.

Very Relevant	Performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires.
Relevant	Performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.
Somewhat Relevant	Performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires.
Not Relevant	Performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires.

The second aspect of the past performance evaluation is a determination the quality of the Offeror’s performance on recent and relevant past performance efforts. The FAA will not evaluate the quality of performance on a past performance effort that it deems not recent and/or not relevant (both as defined above). Quality of performance will be assessed based upon customer responses to Past Performance Questionnaires (L001). The FAA may, at its discretion, follow-up with the Offeror’s customer points of contact if no Past Performance Questionnaires are received. It is, however, the Offeror’s responsibility to ensure that customer point of contacts submit the Past Performance Questionnaire to the Contracting Officer by the due date for proposals. The FAA reserves the right to make an award to an Offeror whose past performance submission does not include the requested number of Past Performance Questionnaires. Conversely, the FAA reserves the right at any point during the evaluation to eliminate any Offeror from further consideration if its past performance submission does not include the requested number of Past Performance Questionnaires (i.e., three (3) Past Performance Questionnaires, one (1) for each past performance effort).

If the Government determines it to be appropriate, other sources of information may be used in determining the past performance confidence rating, such as: Past Performance Information Retrieval System (PPIRS), Contractor Performance Assessment Reporting System (CPARS),

program managers, contracting officers, and other sources known to the Government (including commercial sources) including references other than those identified by the Offeror. Offerors will be given the opportunity to address any negative performance information resulting from past performance assessment inquiries.

The FAA will assess the Offeror's past performance based upon an integrated assessment of the recentness, relevance and quality of performance using the following definitions:

Performance Confidence Assessments Rating Method Adjectival Rating	Description
Substantial Confidence	Based on the offeror's recent & relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the offeror's recent & relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.
Limited Confidence	Based on the offeror's recent & relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.
No Confidence	Based on the offeror's recent & relevant performance record, the Government has no expectation that the offeror will be able to successfully perform the required effort.
Unknown Confidence	No recent & relevant performance record is available, or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned.

In performing the best value trade-off, the FAA reserves the right (but is not required) to weigh a rating of "Substantial Confidence," "Satisfactory Confidence," or "Limited Confidence" more favorably than a rating of "Unknown Confidence."

(c) Price (Volume III)

The FAA will evaluate the proposals for completeness, reasonableness, and balance. Price Proposals will not be scored or rated.

In evaluating offers, the FAA will use a Total Evaluated Price (TEP), which includes the base ordering period and all subsequent ordering periods. The TEP will be the sum of the Offeror's proposed pricing as submitted on L002, Pricing Worksheet. The TEP will be utilized for the best-value analysis and is for evaluation purposes only. The FAA is under no obligation to exercise any options or order in accordance with Attachment L002.

The FAA will review each proposal to determine whether the proposal includes all required pricing information. Completeness shall be determined based on the information requested in Attachment L002. The FAA at its sole discretion might require additional information or reject proposals lacking completeness.

The FAA will evaluate each price proposal for balance in accordance with AMS Procurement Guidance T3.2.3(A)(1)(e)(4) Unbalanced Offers. Unbalanced pricing exists when, despite an acceptable TEP, the price of one or more CLINs is significantly over or understated as indicated by the application of price analysis methods. The FAA will evaluate all priced CLINs for balance. The FAA may, at its discretion, reject a proposal if the FAA determines the pricing proposal is materially unbalanced.

The FAA will evaluate proposals for reasonableness on both the TEP and each proposed labor rate in accordance with AMS Policy Section 3.2.3.2 and AMS Procurement Guidance Section T3.2.3. A price is reasonable if, in its nature and amount, it does not exceed that which would be incurred by a prudent person in the conduct of competitive business.

(d) Additional Proposal Documentation (Volume V)

- **Exceptions, Deviations and Assumptions**

The FAA will evaluate any proposed exceptions, deviations, and assumptions for supporting rationale and acceptability. Exceptions, deviations, and assumptions must contain sufficient detail and justification to permit evaluation.

- **Contract Documents and Associated Information**

The FAA will evaluate all proposed contract documents and associated to ensure they are complete and fully executed by the Offeror.

- **Responsibility Determination**

The CO will make a determination of Offeror responsibility in accordance with AMS Policy 3.2.2.2 requirements and the requirements below. Any Offeror that the CO determines is not "responsible" (as defined in AMS Policy 3.2.2.2 and herein) will be ineligible for award.

In addition to the Offeror's proposal Volume V Responsibility Determination Information (reference L.22.3), the FAA may rely on information from compliance and regulatory agencies and/or independent investigation to determine Offeror's responsibility.

As a minimum, to be determined responsible, a prospective Contractor must:

- a. Have or can obtain adequate financial resources to perform a contract;
 - b. Have the ability to meet any required or proposed delivery schedules;
 - c. Have a satisfactory performance history;
 - d. Have a satisfactory record of integrity and proper business ethics;
 - e. Have appropriate accounting and operational controls that may include, but are not limited to: production control, property control systems, quality assurance programs, and appropriate safety programs;
 - f. Have no unacceptable OCIs or OCI Mitigation Plans. Determination of acceptability or unacceptability of potential OCIs and any associated OCI Mitigation Plans are made by the CO in accordance with AMS 3.1.7 "Organizational Conflicts of Interest" and applicable OCI clauses; and
 - g. Be qualified and eligible to receive an award under applicable laws or regulations.
- **Organizational Conflict of Interest**
 - Determination of acceptability or unacceptability of potential OCIs and any associated OCI Mitigation Plans are made by the CO in accordance with AMS 3.1.7 "Organizational Conflicts of Interest" and applicable OCI clauses.

M.5 Adjectival Rating Definitions

The following adjectival ratings will be used to evaluate Volume I Technical proposals.

Rating	Description
Excellent	The Offeror's proposal contains no deficiencies and fully addresses all aspects of the requirements and demonstrates an excellent approach/solution and understanding of the requirements. One or more strengths are identified and the impact of the identified strength(s) far outweighs the impact of any weaknesses and/or risks identified.
Good	The Offeror's proposal contains no deficiencies; fully addresses all aspects of the requirements and demonstrates a very effective approach/solution and understanding of the requirements. One or more strengths are identified and the impact of the identified strength(s) outweighs the combined impact of any weaknesses and/or risks identified.

Satisfactory	The Offeror’s proposal contains no deficiencies; addresses all aspects of the requirements and demonstrates an adequate approach/solution and understanding of the requirements. The impact of any identified strengths is approximately equal to the combined impact of any identified weaknesses and/or risks. If a subfactor receives no strengths, weaknesses, risks, or deficiencies, it will receive a Satisfactory rating.
Marginal	The Offeror’s proposal may contain deficiencies; fails to address all of the requirements and does not demonstrate an adequate approach/solution or understanding of the requirements. One or more weakness or risks is identified. The combined impact of the identified weakness(es) and/or risk(s) outweighs the impact of any strengths identified.
Unsatisfactory	The Offeror’s proposal contains one or more deficiencies and does not address all aspects of the requirements and/or does not present evidence demonstrating an adequate approach/solution and understanding of the requirements. One or more weakness or risks is identified. The combined impact of the identified weakness(es) and/or risk(s) far outweighs the impact of any strengths identified.

M.6 Definition of Strength, Weakness, Deficiency, and Risk

The following terms will be used to evaluate Volume I Technical proposals.

Strength	An aspect of a proposal that would positively impact performance of the resulting contract, exceed the minimum requirements, or otherwise benefit the Government
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Weakness	An aspect of a proposal that would negatively impact performance of the resulting contractor is otherwise detrimental to the Government.
Deficiency	A material failure to meet one or more requirements in the SIR that increases the risk of unsuccessful performance to an unacceptable level.
Risk	An aspect an Offeror's proposal that presents an uncertainty as to the ability of the Offeror successfully to perform the required effort or the proposed approach.

(End of Section M)